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FEDERAL REGISTER

VOLUME 30 • NUMBER 110

Wednesday, June 9, 1965 • Washington, D.C.

Pages 7511–7552

Agencies in this issue—

Agricultural Stabilization and Conservation Service
Atomic Energy Commission
Civil Aeronautics Board
Civil Service Commission
Consumer and Marketing Service
Federal Aviation Agency
Federal Communications Commission
Federal Maritime Commission
Fish and Wildlife Service
Food and Drug Administration
Immigration and Naturalization Service
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Price: $1.50

Compiled by Office of the Federal Register, National Archives and Records Service, General Services Administration

Order from Superintendent of Documents, U.S. Government Printing Office, Washington, D.C., 20402

FEDERAL REGISTER

Area Code 202 Phone 963–3261

Published daily, Tuesday through Saturday (no publication on Sundays, Mondays, or on the day after an official Federal holiday), by the Office of the Federal Register, National Archives and Records Service, General Services Administration (mail address National Archives Building, Washington, D.C. 20408), pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U.S.C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President (1 CFR Ch. I). Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington, D.C. 20402.

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Chapter I—Civil Service Commission

PART 213—EXCEPTED SERVICE

Commission on Civil Rights

Section 213.3256 is added to show the exception under Schedule B until August 1, 1966, of three positions at grade GS–9 and above to engage in the preparation and dissemination of information relative to developments, legislation, and other pertinent happenings related to the field of civil rights gathered by the staff of the Commission on Civil Rights in carrying out its assigned functions. Effective on publication in the FEDERAL REGISTER, § 213.3256 is added as set out below.

§ 213.3256 Commission on Civil Rights.

(a) Until August 1, 1966, three positions at grade GS–9 and above to engage in the preparation and dissemination of information about the developments, legislation, and other pertinent happenings relating to the field of civil rights gathered by the Commission on Civil Rights in carrying out its assigned functions.

(R.S. 1753, sec. 2, 22 Stat. 403, as amended; 5 U.S.C. 631, 633; E.O. 10577, 19 F.R. 7521, 3 CFR, 1954–1958 Comp., p. 218)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] MARY V. WENZEL,
Executive Assistant to the Commissioners.

[F.R. Doc. 65-5967; Filed, June 8, 1965; 8:47 a.m.]

Title 7—AGRICULTURE

Chapter VII—Agricultural Stabilization and Conservation Service (Agricultural Adjustment), Department of Agriculture

SUBCHAPTER C—SPECIAL PROGRAMS

[Amdt. 6]

PART 775—FEED GRAINS

Subpart—1964 and 1965 Feed Grain Program Regulations

MISCELLANEOUS AMENDMENTS

The regulations governing the 1964 and 1965 Feed Grain Program, 29 F.R. 590, as amended, are hereby further amended as follows:

§ 775.301 [Amended]

1. Section 775.301(a) is amended by changing the words "guar, sesame, safflower, sunflower, castor beans, and mustard seed" in the first sentence thereof to "substitute crops."

§ 775.302 [Amended]

2. Section 775.302 is amended as follows:

a. Paragraph (g) is amended by changing the period to a comma at the end thereof and adding the following: "except that for 1965, the barley base shall not be included in the total feed grain base for farms complying with the provisions of § 775.329.".

b. Paragraph (p) is amended to read as follows:

(p) "Substitute crop" means any of the following crops which may be produced on the diverted acreage in lieu of conservation uses:

(1) *For 1964.* castor beans, guar, mustard seed, safflower, sesame or sunflower.

(2) *For 1965.* castor beans, flax, guar, mustard seed, safflower, sesame or sunflower.

§ 775.304 [Amended]

3. Section 775.304 is amended as follows:

a. Paragraph (b)(6) is amended by inserting the words "or land in a National wildlife refuge" immediately after the word "possession" in the last sentence thereof.

b. Paragraph (c)(2) is amended to read as follows:

(2) Each other farm in which the producer has an interest in the current year's crop of feed grains shall be in compliance with the provisions of this program, or the total feed grain base for each such farm shall not be exceeded. For the purpose of this subparagraph (2), a producer shall not be considered as violating the foregoing requirements if he satisfies the county committee that he did not have control of the managerial operations of the noncomplying farm, that he has made a reasonable effort to encourage compliance with the requirements of this subparagraph and that it was through no fault of his own that such farm was not in compliance. A producer who violates the requirement of this subparagraph (2) shall be ineligible for diversion and price support payments under the program, except that for 1964 if the total feed grain base for each farm is exceeded by no more than the larger of 2 acres or 5 percent of the total feed grain base (but not to exceed 15 acres), the producer shall be eligible for diversion and price support payments but the diversion payment otherwise earned by the producer under the program shall be reduced in an amount determined by multiplying the number of acres the total feed grain base is exceeded on each farm by the smallest average per acre diversion payment earned on any farm in which he shares in a diversion payment, but not to exceed the sum of the diversion payments otherwise earned by the producer under the program. For purposes of this subparagraph (2), all persons or entities in each category listed below shall be considered as one producer and fully responsible for the actions of any person or entity in that category: (i) A partnership and any member of the partnership; (ii) a corporation and the majority stockholder of such corporation; (iii) an estate and an heir of the estate with over a 50 percent interest in the estate; (iv) a trust and a beneficiary of the trust with over a 50 percent interest in the trust; (v) minor children and the parent, guardian, or other person legally responsible for the minor; and (vi) husband and wife, except that the husband and wife may be considered as separate producers if they do not occupy the same household, managerial control of the noncomplying farm is not shared by the spouse, and there have been no changes in the operations or managerial control of the noncomplying farm which would tend to defeat the purpose of the provisions of this subparagraph (2).

§ 775.311 [Amended]

4. Section 775.311(c) is amended by changing the first sentence to read as follows: "If the historical acreage from which feed grain bases are established has not been obtained for a farm and the operator or owner of the farm expects to participate in the program on the farm, such historical acreage must be furnished to the county office not later than the date for filing Form 477 as provided in § 775.315(c).".

§ 775.312 [Amended]

5. Section 775.312 is amended as follows:

a. Paragraph (d) is amended by adding the following new sentence at the end thereof: "The minimum acre diversion payment rate shall apply to the acreage credited for diversion payment under § 775.328 which is in excess of the stated intention.".

b. Paragraph (e) is amended by adding the following new sentence at the end thereof: "Notwithstanding any other provision of this paragraph, for 1965, the additional acre diversion payment rate shall apply to the entire acreage diverted for payment within the stated intention only when both the acreage credited for payment and the stated intention are (1) 40 percent or more of the total feed grain base (or the base as determined in accordance with the option specified in § 775.304(b)(2) for a farm participating in the conservation reserve program or the cropland conversion program) or (2) equal to the number of acres which are permitted to be devoted to soil bank base crops under the terms of a conservation reserve contract or which can be devoted to nonconserving crops under the terms of a cropland conversion program agreement.".

c. Paragraph (h) is amended to read as follows:

(h) *Diversion payment rates for land devoted to substitute crops.* Notwith-

standing any other provision of this section—

(1) *1964.* When the stated intention is less than 40 percent of the total feed grain base, the payment rate shall be 50 percent of the lowest minimum acre diversion payment rate for the farm in the case of diverted acreage devoted to guar, castor beans, and sesame, and 30 percent of the lowest minimum acre diversion payment rate for the farm in the case of diverted acreage devoted to mustard seed and sunflower. When the stated intention is 40 percent or more of the total feed grain base, the payment rate shall be 50 percent of the lowest additional acre diversion payment rate for the farm in the case of diverted acreage devoted to guar, castor beans, and sesame, and 30 percent of the lowest additional acre diversion payment rate for the farm in the case of diverted acreage devoted to mustard seed and sunflower. No diversion payment shall be made with respect to diverted acreage devoted to safflower.

(2) *1965.* The payment rate for diverted acreage devoted to mustard seed shall be 30 percent of the average per acre feed grain diversion payment for which the farm would have qualified had there been no substitute crop. No diversion payment shall be made with respect to diverted acreage devoted to flax or safflower. The payment rate for diverted acreage devoted to other substitute crops shall be a percentage of the average per acre farm diversion payment for feed grains and wheat for which the farm would have qualified had there been no substitute crop. The percentages are 30 percent for sunflower and 50 percent for castor beans, guar, and sesame.

d. Paragraph (l) is amended to read as follows:

(l) *Price support payment rates.* Price support payments will not be made for wheat under this program. The per acre farm price support payment rate for barley, corn, and grain sorghums shall be determined by multiplying the farm yield in bushels established for the commodity as provided in paragraph (c) of this section by—

(1) *1964.* Barley, 12 cents; corn, 15 cents; and grain sorghums, 12.88 cents.

(2) *1965.* Barley, 16 cents; corn, 20 cents; and grain sorghums, 19.6 cents.

§ 775.315 [Amended]

6. Section 775.315(d) is amended by deleting the following: "the acreage, if any, of substitute crops which is intended to be planted for harvest on the diverted acreage;".

7. Section 775.318(c) (3) and (4) is amended to read as follows:

§ 775.318 Final diversion payment and price support payment.

* * * * *

(c) * * *

(3) The increased acreage devoted to approved conservation uses and substitute crops, excluding substitute crops which are in excess of the stated intention under the program and the wheat diversion program and acreage diverted under the wheat diversion program.

(4) The designated diverted acreage, excluding acreage diverted under the wheat diversion program.

* * * * *

8. A new § 775.329 is added to read as follows:

§ 775.329 Malting barley exemption for 1965.

(a) Notwithstanding any other provisions of this subpart, barley shall not be included in the Feed Grain Program for 1965 for a farm if (1) the 1965 farm owner or operator planted an approved malting variety of barley during one or more of the years 1960 through 1964; (2) the operator has requested a malting barley exemption on Form 477 during the period specified in § 775.315(c); (3) barley only of an approved malting variety is planted on the farm for harvest in 1965; (4) an acreage of barley is not knowingly produced in excess of 110 per centum of the barley base for the farm; and (5) an acreage of other feed grains is not knowingly produced in excess of the total feed grain base for the farm (excluding barley). No diversion or price support payment shall be made for barley on such a farm. A barley producer on a farm in compliance with the provisions of this section shall not be eligible for price support loans with respect to barley unless such producer also complies with the provisions of § 775.304(c)(2). If the farm is participating in the Feed Grain Program for 1965 or the Wheat Diversion Program for 1965, the conserving acreage requirements of § 775.304(b)(4) and of § 728.51(b)(4) of this chapter of the regulations governing the Wheat Diversion Program shall, for the purposes of determining compliance for 1965, be reduced to the extent the 1965 barley acreage exceeds the barley base as permitted by the provisions of this section. If the farm is participating in the Feed Grain Program for 1965, the conserving acreage requirement of § 775.304(b)(4) shall, for purposes of determining compliance with the Feed Grain Program for 1965, be increased to the extent the 1965 barley base is underplanted. A request for a malting barley exemption may not be withdrawn after the closing date for filing Form 477 except as provided in instructions issued by the Deputy Administrator. Producers who have requested a malting barley exemption (which is not withdrawn in accordance with the preceding sentence) shall be ineligible for feed grain diversion and price support payments on the farm if they fail to meet all of the requirements of this section. The provisions of § 775.328 shall not be applicable to a farm with a malting barley exemption.

(b) Approved malting varieties are: Atlas, Barbless, Betzes, Forrest, Hanna, Haisa II, Hannchen, Heines Hanna, Idaho Club, Kindred, Larker, Manchuria, Montcalm, Moravian, O.A.C. 21, Oderbrucker, Odessa, Parkland, Traill, Trophy, White Winter, Winter Club, and Winter Tennessee.

(c) This section shall be applicable only in California, Colorado, Idaho, Illinois, Iowa, Michigan, Minnesota, Montana, Nebraska, North Dakota, Oregon, South Dakota, Washington, Wisconsin, and Wyoming.

Effective date. Upon publication in the FEDERAL REGISTER.

Signed at Washington, D.C., on June 3, 1965.

H. D. GODFREY,
Administrator, Agricultural Stabilization and Conservation Service.

[F.R. Doc. 65-6003; Filed, June 8, 1965; 8:50 a.m.]

Title 8—ALIENS AND NATIONALITY

Chapter I—Immigration and Naturalization Service, Department of Justice

PART 103—POWERS AND DUTIES OF SERVICE OFFICERS

Applications, Petitions, and Other Documents; Inspection of Evidence

The following amendment to Chapter I of Title 8 of the Code of Federal Regulations is hereby prescribed:

Subparagraph (2) of paragraph (b) *Evidence* of § 103.2 *Applications, petitions, and other documents* is amended to read as follows:

§ 103.2 Applications, petitions, and other documents.

* * * * *

(b) *Evidence*— * * *

(2) *Inspection of evidence.* An applicant or petitioner shall be permitted to inspect the record of proceeding which constitutes the basis for the decision, except as hereinafter provided. If the decision will be adverse to the applicant or petitioner on the basis of derogatory evidence considered by the Service and of which the applicant or petitioner is unaware, he shall be advised thereof and offered an opportunity to rebut it and present evidence in his behalf before the decision is rendered, except that classified evidence shall not be made available to him. Any explanation, rebuttal, or evidence presented by or in behalf of the applicant or petitioner shall be included in the record of proceeding. A determination of statutory ineligibility shall not be valid unless based on evidence contained in the record of proceeding. In exercising discretionary power when considering an application or petition, the district director or the officer in charge, in any case in which he is authorized to make the decision, may consider and base his decision upon evidence not contained in the record of proceeding and not made available for inspection by the applicant or petitioner, provided the regional commissioner, in his discretion, has concluded that such evidence is classified under Executive Order No. 10501 of November 5, 1953 (18 F.R. 7049, Nov. 10, 1953), as amended, by Executive Order Nos. 10816 of May 7, 1959 (24 F.R. 3777, May 12, 1959),

10901 of January 9, 1961 (26 F.R. 217, Jan. 12, 1961), 10964 of September 20, 1961 (26 F.R. 8932, Sept. 22, 1961), and 10985 of January 12, 1962 (27 F.R. 439, Jan. 16, 1962), and that its disclosure would be prejudicial to the national security and safety.

(Sec. 103, 66 Stat. 173; 8 U.S.C. 1103)

This order shall be effective on the date of its publication in the FEDERAL REGISTER. Compliance with the provisions of section 4 of the Administrative Procedure Act (60 Stat. 238; 5 U.S.C. 1003) as to notice of proposed rule making and delayed effective date is unnecessary in this instance because the rules prescribed by the order confer benefits upon persons affected thereby.

Dated: June 4, 1965.

RAYMOND F. FARRELL,
Commissioner of Immigration and Naturalization.

[F.R. Doc. 65-5972; Filed, June 8, 1965; 8:47 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Agency

[Airspace Docket No. 63-SW-124]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Control Zone; Designation of Transition Areas; and Revocation of Control Area Extensions

On November 4, 1964, a notice of proposed rule making was published in the FEDERAL REGISTER (29 F.R. 14936) stating that the Federal Aviation Agency proposed to alter the controlled airspace in the Tulsa, Okla., terminal area. Subsequent to the publication of the notice, it was necessary to change the glide slope setting for the ILS serving runway 35R at Tulsa International Airport. This necessitated an addition to the proposed control zone extension to the south and an additional extension to the proposed 700-foot floor portion of the transition area. This additional controlled airspace was defined in a supplemental notice of proposed rule making published in FEDERAL REGISTER (30 F.R. 3820) on March 24, 1965.

Interested persons were afforded an opportunity to participate in the rule making through submission of comments. All comments received were favorable.

A requirement no longer exists for the retention of the Oklahoma City, Okla., Tulsa, Okla., and Abilene, Tex., control area extensions; although not proposed in the notice, action is taken herein to revoke them. Since the revocation of these control area extensions impose no additional burden on any person, notice and public procedures hereon are unnecessary.

In consideration of the foregoing, Part 71 of the Federal Aviation Regulations is amended, effective 0001 e.s.t., August 19, 1965, as hereinafter set forth.

1. In § 71.171 (29 F.R. 17638), the Tulsa, Okla., control zone is amended to read as follows:

TULSA, OKLA.

That airspace within a 5-mile radius of the Tulsa International Airport (latitude 36°-12'00" N., longitude 95°53'15" W.); within 2 miles each side of the Tulsa ILS localizer N course, extending from the 5-mile radius zone to 1 mile S of the OM; within 2 miles each side of the Tulsa ILS localizer S course, extending from the 5-mile radius zone to 0.5 mile N of the OM; and within 2 miles each side of the Tulsa VORTAC 268° Radial, extending from the 5-mile radius zone to the VORTAC.

2. In § 71.165 (29 F.R. 17578), the Tulsa, Okla., control area extension is revoked.

3. In § 71.165 (29 F.R. 17572), the Oklahoma City, Okla., control area extension is revoked.

4. In § 71.165 (29 F.R. 17557), the Abilene, Tex., control area extension is revoked.

5. In § 71.181 (29 F.R. 17643), the following transition area is added:

TULSA, OKLA.

That airspace extending upward from 700 feet above the surface within a 9-mile radius of Tulsa, Okla., International Airport (latitude 36°12'00" N., longitude 95°53'15" W.); within 8 miles W and 5 miles E of the Tulsa ILS localizer N course, extending from the OM to 12 miles N; within 8 miles N and 5 miles S of the Tulsa VORTAC 088° Radial, extending from the 9-mile radius area to 12 miles E of the VORTAC; and within 2 miles each side of the Tulsa ILS localizer S course, extending from the 9-mile radius area to 8 miles S of the OM; that airspace extending upward from 1,200 feet above the surface within an area bounded by a line beginning at latitude 36°40'00" N., longitude 96°00'00" W.; to latitude 36°53'00" N., longitude 95°-47'00" W.; to latitude 36°48'00" N., longitude 95°30'00" W.; to latitude 36°55'00" N., longitude 95°05'00" W.; to latitude 36°24'00" N., longitude 94°30'00" W.; to latitude 36°12'00" N., longitude 94°28'00" W., to latitude 35°-46'00" N., longitude 95°06'30" W.; to latitude 35°46'00" N., longitude 95°30'00" W.; to latitude 35°11'00" N., longitude 95°55'00" W.; thence W along latitude 35°11'00" N., to and counterclockwise along the arc of a 57-mile radius circle centered at latitude 35°-25'50" N., longitude 97°35'10" W.; to longitude 97°18'20" W., to point of beginning, excluding the portion within the Oklahoma City, Okla., transition area.

6. In § 71.181 (29 F.R. 17643), the following transition area is added:

OKMULGEE, OKLA.

That airspace extending upward from 700 feet above the surface within a 6-mile radius of the Okmulgee, Okla., Airport (latitude 35°39'45" N., longitude 95°56'45" W.); and within 8 miles S and 5 miles N of the Okmulgee VOR 068° Radial extending from the VOR to 12 miles E.

(Sec. 307(a) of the Federal Aviation Act of 1958; 49 U.S.C. 1348)

Issued in Fort Worth, Tex., on May 28, 1965.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 65-5954; Filed, June 8, 1965; 8:45 a.m.]

[Airspace Docket No. 64-EA-11]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Transition Area Description Correction

On page 1258 of the FEDERAL REGISTER for February 5, 1965, the Federal Aviation Agency published a proposed regulation, Item 5 to designate a 700-foot Evansville, Ind., transition area. This proposed regulation has been processed to final rule and is in the process of publication in the FEDERAL REGISTER. It has been determined that the description of said transition area on line 6 which uses the word "easterly" has led to ambiguity in such description. To eliminate any ambiguity the description will be amended to delete the word "easterly."

Because the correction is of a clarifying nature the public interest does not require the 30 day notice.

The subject regulation is hereby amended as follows:

1. Under Item 5, sixth line of the text material, delete the word "easterly."

(Sec. 307(a) of the Federal Aviation Act of 1958; 72 Stat. 749; 49 U.S.C. 1348)

Issued in Jamaica, N.Y., on May 26, 1965.

WAYNE HENDERSHOT,
Acting Director, Eastern Region.

[F.R. Doc. 65-5956; Filed, June 8, 1965; 8:46 a.m.]

[Reg. Docket No. 6684; Amdt. 141-2]

PART 141—PILOT SCHOOLS

Retention of Records by Certificated Pilot School

The purpose of this amendment to Part 141 of the Federal Aviation Regulations is to establish a one-year requirement for the preservation of required records for certificated pilot schools and to eliminate unnecessary and burdensome records keeping.

Section 141.21 of the Federal Aviation Regulations does not specify the period of time which a certificated pilot school must retain the individual training records of its students. Indefinite preservation of records is burdensome and in most cases serves no useful purpose for the pilot school, the student, or the Agency.

The Agency feels that the retention by the pilot school of the individual record of each student for 1 year following his graduation or the termination of his participation in the training course is a satisfactory period for keeping these records.

For the above reasons, and since the amendment is of a minor nature and one in which the public is not generally interested, I find that notice on this amendment is unnecessary and that the amendment may be made effective less than 30 days after publication.

In consideration of the foregoing, § 141.21 of Part 141 of the Federal Aviation Regulations is amended, effective June 9, 1965, to read as follows:

§ 141.21 Records.

Each certificated pilot school shall keep a current, accurate, and individual record of each student's participation and accomplishments in the course for which he is enrolled, including a chronological log of his instruction, attendance, subjects covered, tests, and test grades. When the student completes the course or is graduated, an authorized representative of the school shall certify the record. The school shall keep each record required by this section for a period of one year following a student's graduation or the termination of his participation in the training course.

(Secs. 313(a), 314, 601, and 607 of the Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1355, 1421, and 1427)

Issued in Washington, D.C., on June 3, 1965.

N. E. HALABY,
Administrator.

[F.R. Doc. 65-5958; Filed, June 8, 1965; 8:46 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

PART 121—FOOD ADDITIVES

Subpart D—Food Additives Permitted in Food for Human Consumption

ION-EXCHANGE MEMBRANES

The Commissioner of Food and Drugs has evaluated data in a petition (FAP 1261) filed by American Machine and Foundry Co., 261 Madison Avenue, New York 16, N.Y., and other relevant material, and has concluded that a food additive regulation should issue to prescribe the safe use of ion-exchange membranes in the processing of grapefruit juice. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90; 29 F.R. 471), a new section is added to the food additive regulations, as follows:

§ 121.1180 Ion-exchange membranes.

Ion-exchange membranes may be safely used in the processing of food under the following prescribed conditions:

(a) The ion-exchange membrane is prepared by subjecting a polyethylene base conforming to § 121.2510 to polymerization with styrene until the polystyrene phase of the base is not less than 16 percent nor more than 30 percent by weight. The base is then modified by reaction with chloromethyl methyl ether, and by subsequent amination with trimethylamine, dimethylamine, diethylenetriamine, or dimethylethanolamine.

(b) The ion-exchange membrane is manufactured so as to comply with the following extraction limitations when subjected to the described procedure: Separate square-foot samples of membrane weighing approximately 14 grams each are cut into small pieces and refluxed for 4 hours in 150 cubic centimeters of the following solvents: Distilled water, 5 percent acetic acid, and 50 percent alcohol. Extraction from each sample will not exceed 0.4 percent by weight of sample.

(c) The ion-exchange membrane will be used in the production of grapefruit juice to adjust the ratio of citric acid to total solids of the grapefruit juice produced.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: June 2, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-5976; Filed, June 8, 1965; 8:47 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

RESINOUS AND POLYMERIC COATINGS

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 5B1732) filed by Jones-Dabney Co., Division of Devoe & Reynolds Co., Inc., Post Office Box 8248, Station E, Louisville, Ky., 40208, and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of an additional catalyst and cross-linking agent for epoxy resins used in resinous and polymeric food-contact coatings. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 121.2514(b)(3)(viii)(b) is amended by inserting alphabetically in the list of catalysts and cross-linking agents a new item, as follows:

§ 121.2514 Resinous and polymeric coatings.

* * * * * *

(b) * * *

(3) * * *

(viii) * * *

(*b*) Catalysts and cross-linking agents for epoxy resins: * * *

N-Oleyl-1,3-propanediamine with not more than 10 percent by weight of diethylaminoethanol.

* * * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: June 2, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-5979; Filed, June 8, 1965; 8:48 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

COMPONENTS OF PAPER AND PAPERBOARD IN CONTACT WITH AQUEOUS AND FATTY FOODS

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 5B1598) filed by Reichhold Chemicals, Inc., RCI Building, White Plains, N.Y., and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of cyclized rubber in coatings for paper and paperboard intended for use in contact with foods that are dry solids with or without free fat or oil on the surface. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 121.2526(b) is amended by inserting alphabetically in the list of substances in subparagraph (2) a new item, as follows:

§ 121.2526 **Components of paper and paperboard in contact with aqueous and fatty foods.**

* * * * *

(b) * * *

(2) * * *

List of substances	Limitations
* * *	* * *
Cyclized rubber produced when natural pale crepe rubber dissolved in phenol is catalytically cyclized so that the finished cyclized rubber has a melting point of 293° F.-311° F. as determined by ASTM Method E-28-58T and contains no more than 400 p.p.m. of residual-free phenol.	For use only in coatings for paper and paperboard intended for use in contact with food only of the types identified in paragraph (c) of this section, table 1, under types VIII and IX.
* * *	* * *

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348 (c)(1))

Dated: June 2, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-5977; Filed, June 8, 1965; 8:47 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

COMPONENTS OF PAPER AND PAPERBOARD IN CONTACT WITH DRY FOOD

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 5B1741) filed by S. D. Warren Co., Cumberland Mills, Maine, 04092, and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of ammonium nitrate as a component of paper and paperboard intended for use in contact with dry food. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), § 121.2571(b)(2) is amended by inserting alphabetically in the list of substances a new item as follows:

§ 121.2571 **Components of paper and paperboard in contact with dry food.**

* * * * *

(b) * * *

(2) * * *

List of substances	Limitations
* * *	* * *
Ammonium nitrate.	

* * * * *

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348 (c)(1))

Dated: June 2, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-5978; Filed, June 8, 1965; 8:47 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

CROSS-LINKED POLYESTER RESINS

In the matter of amending § 121.2576, four comments were received with reference to the notice of proposed rule making published in the FEDERAL REGISTER of December 10, 1964 (29 F.R. 16935).

The comments received included requests for changes to provide for the use of additional substances in the production of cross-linked polyester resins used as articles or components of articles intended for repeated use in contact with food. In response to these comments the proposed § 121.2576 has been revised by adding azo-bis-isobutyronitrile to the list of catalysts; by adding butyl benzyl phthalate (containing not more than 1.0 percent by weight of dibenzyl phthalate) and methyl alcohol to the list of solvents for inhibitors, accelerators, and catalysts; and by adding the item polyoxyethylene ethers of 4,4'-isopropylidenediphenol (containing an average of 2–7.5 moles of propylene oxide) to the list of polyhydric alcohols in place of the polyhydric alcohol 1,1'-isopropylidenebis (*p*-phenyleneoxy)-di-2-propanol.

There was also received an objection to applying limitations to extractives from unsaturated polyester-styrene copolymer resins. The basis of the objection was the current lack of such limitations in § 121.2576, as applicable to the same resins. Since the scope of § 121.2576 is being expanded to provide for the use of a large number of cross-linked polyester resins and since curing conditions may vary over a broad range, the Commissioner has concluded that reliance on good manufacturing practice is no longer adequate in the case of unsaturated polyester-styrene copolymer resins to insure the high degree of insolubility characteristic of these and other cross-linked polyester resins that are deemed safe for use in articles intended for repeated use in contact with food. The Commissioner has therefore concluded that the proposed extractives limitations are necessary to insure safe use of the cross-linked polyester resins, including the safe use of unsaturated polyester-styrene copolymer resins.

The Commissioner has also concluded that the introduction to the proposed § 121.2576 should be revised to read as indicated below.

Accordingly, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409, 72 Stat. 1784 et seq.; 21 U.S.C. 348), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.90), the proposed regulations are adopted as proposed, with the changes outlined above, and § 121.2576 is revised to read as follows:

§ 121.2576 **Cross-linked polyester resins.**

Cross-linked polyester resins may be safely used as articles or components of articles intended for repeated use in contact with food, in accordance with the following prescribed conditions:

(a) The cross-linked polyester resins are produced by the condensation of one or more of the acids listed in subparagraph (1) of this paragraph with one or more of the alcohols listed in subparagraph (2) of this paragraph, followed by copolymerization with one or more of the cross-linking agents listed in subparagraph (3) of this paragraph:

(1) Polybasic acids:

Adipic.
Fatty acids, and dimers thereof, from natural sources.
Fumaric.
Isophthalic.
Maleic.
Orthophthalic.
Sebacic.
Terephthalic.
Trimellitic.

(2) Polyhydric alcohols:

Butylene glycol.
Diethylene glycol.
Dipropylene glycol.
Ethylene glycol.

Glycerol.
Mannitol.
α-Methyl glucoside.
Pentaerythritol.
Polyoxypropylene ethers of 4,4'-isopropylidenediphenol (containing an average of 2–7.5 moles of propylene oxide).
Propylene glycol.
Sorbitol.
Trimethylol ethane.
Trimethylol propane.

(3) Cross-linking agents:

Butyl acrylate.
Butyl methacrylate.
Ethyl acrylate.
Ethylhexyl acrylate.
Methyl acrylate.
Methyl methacrylate.
Styrene.
Vinyl toluene.

(b) Optional adjuvant substances employed to facilitate the production of the resins or added thereto to impart desired technical or physical properties include the following, provided that the quantity used does not exceed that reasonably required to accomplish the intended physical or technical effect and does not exceed any limitations prescribed in this section:

List of substances	Limitations (limits of addition expressed as percent by weight of finished resin)
1. Inhibitors:	Total not to exceed 0.08 percent.
Benzoquinone	0.01 percent.
tert-Butyl catechol	
tert-Butyl hydroquinone	
Di-*tert*-butyl hydroquinone	
Hydroquinone	
2. Accelerators:	Total not to exceed 1.5 percent.
Benzyl trimethyl ammonium chloride.	0.05 percent.
Calcium naphthenate	
Cobalt naphthenate	
Copper naphthenate	
N, N-Diethylaniline	0.4 percent.
N, N-Dimethylaniline	0.4 percent.
Ethylene guanidine hydrochloride.	0.05 percent.
3. Catalysts:	Total not to exceed 1.5 percent.
Azo-bis-isobutyronitrile	
Benzoyl peroxide	
tert-Butyl perbenzoate	
Chlorbenzoyl peroxide	
Cumene hydroperoxide	
Dicumyl peroxide	
Lauroyl peroxide	
p-Menthane hydroperoxide.	
Methyl ethyl ketone peroxide.	
4. Solvents for inhibitors, accelerators, and catalysts:	
Butyl benzyl phthalate (containing not more than 1.0 percent by weight of dibenzyl phthalate).	
Dibutyl phthalate	
Diethylene glycol	As a solvent for benzyl trimethyl ammonium chloride or ethylene guanidine hydrochloride only.
Dimethyl phthalate	
Methyl alcohol	
Styrene	
Triphenyl phosphate	
5. Reinforcements:	
Asbestos	
Glass fiber	
Polyester fiber produced by the condensation of one or more of the acids listed in paragraph (a)(1) of this section with one or more of the alcohols listed in paragraph (a)(2) of this section.	
6. Miscellaneous materials:	
Castor oil, hydrogenated	
α-Methylstyrene	
Polyethylene glycol 6000	
Silicon dioxide	
Wax, petroleum	Complying with § 121.2586.

(c) The cross-linked polyester resins, with or without the optional substances described in paragraph (b) of this section, and in the finished form in which they are to contact food, when extracted with the solvent or solvents characterizing the type of food and under the conditions of time and temperature characterizing the conditions of their intended use, as determined from tables 1 and 2 of § 121.2526(c), shall meet the following extractives limitations:

(1) Net chloroform-soluble extractives not to exceed 0.1 milligram per square inch of food-contact surface tested when the prescribed food-simulating solvent is water or 8 or 50 percent alcohol.

(2) Total nonvolatile extractives not to exceed 0.1 milligram per square inch of food-contact surface tested when the prescribed food-simulating solvent is heptane.

(d) In accordance with good manufacturing practice, finished articles containing the cross-linked polyester resins shall be thoroughly cleansed prior to their first use in contact with food.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C., 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall be effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409, 72 Stat. 1784 et seq.; 21 U.S.C. 348)

Dated: June 2, 1965.

GEO. P. LARRICK,
Commissioner of Food and Drugs.

[F.R. Doc. 65-5980; Filed, June 8, 1965; 8:48 a.m.]

Title 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

SUBCHAPTER A—PROCEDURES; PRACTICE

PART 1—APPLICABILITY OF RULES OF THE BUREAU OF INDIAN AFFAIRS

State and Local Regulation of the Use of Indian Property

On page 6438 of the FEDERAL REGISTER of May 8, 1965, there was published a notice of intention to add § 1.4, State and Local Regulation of the Use of Indian Property, to Part 1, Subchapter A, Chapter I, Title 25 of the Code of Federal Regulations. The purposes of this addition are: (1) To enunciate and particularize in regulatory form for the benefit and guidance of those concerned the sense of existing law under which laws, ordinances, codes, resolutions, rules or other regulations of a State, or its political subdivisions, limiting, zoning or otherwise governing, regulating or controlling the use or development of property are inapplicable to trust or restricted Indian property held or used under a lease or other agreement; and (2) to provide for the adoption and application by the Secretary in specific cases, after consultation with the Indian owner, of all or part of any laws enacted by a State or any of its political subdivisions regulating the use of property, which would otherwise be inapplicable.

Interested persons were given an opportunity to submit written comments, suggestions or objections concerning the proposed addition within 30 days from the date of publication of the notice in the FEDERAL REGISTER. All of the comments, suggestions and objections received have been thoroughly considered and a decision has been made to revise paragraph (b) of the new section to make it clear that State and local laws, ordinances, codes, resolutions, rules or other regulations may be adopted or made applicable to specific geographic areas as well as to specific parcels of Indian land. In addition, paragraph (b) has been revised to provide that the Secretary, in determining what laws shall be adopted or applied to Indian land, may, after such consultation with the Indian owners as he feels is necessary, consider such factors as he deems appropriate, including the use of, and restrictions or limitations on the use of, other property in the vicinity.

Accordingly the new § 1.4 is hereby adopted as revised and is set forth below. Because there are immediate cases of conflict between the attempts of State and local governments to enforce zoning ordinances, building codes and similarly regulatory laws on the one hand and the provisions of leases and other agreements under which trust or restricted Indian property is being used on the other, it has been determined to be in the best interests of the Indians and the public to resolve those conflicts as quickly as possible. Therefore, the new section shall become effective on the date of this publication in the FEDERAL REGISTER.

JOHN A. CARVER, Jr.
Under Secretary of the Interior.

JUNE 7, 1965.

§ 1.4 State and local regulation of the use of Indian property.

(a) Except as provided in paragraph (b) of this section, none of the laws, ordinances, codes, resolutions, rules or other regulations of any State or political subdivision thereof limiting, zoning or otherwise governing, regulating, or controlling the use or development of any real or personal property, including water rights, shall be applicable to any such property leased from or held or used under agreement with and belonging to any Indian or Indian tribe, band, or com-

munity that is held in trust by the United States or is subject to a restriction against alienation imposed by the United States.

(b) The Secretary of the Interior or his authorized representative may in specific cases or in specific geographic areas adopt or make applicable to Indian lands all or any part of such laws, ordinances, codes, resolutions, rules or other regulations referred to in paragraph (a) of this section as he shall determine to be in the best interest of the Indian owner or owners in achieving the highest and best use of such property. In determining whether, or to what extent, such laws, ordinances, codes, resolutions, rules or other regulations shall be adopted or made applicable, the Secretary or his authorized representative may consult with the Indian owner or owners and may consider the use of, and restrictions or limitations on the use of, other property in the vicinity, and such other factors as he shall deem appropriate.

[F.R. Doc. 65-6028; Filed, June 8, 1965; 8:50 a.m.]

Title 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 36—LOAN GUARANTY

Eligibility

In § 36.4402, the introductory portion preceding paragraph (a) and paragraph (d) are amended to read as follows:

§ 36.4402 Eligibility.

No beneficiary shall be eligible for assistance under chapter 21 for the purpose of reimbursing him for the cost of an existing structure acquired by him prior to applying for assistance or for constructing or remodeling a dwelling or for otherwise acquiring a suitable housing unit, unless it is determined pursuant to §§ 36.4401 through 36.4410 that

* * * * *

(d) The veteran has or will acquire an interest in the housing unit which is:

(1) A fee simple estate, or

(2) A leasehold estate, the unexpired term of which, including renewals at the option of the lessee, is not less than 50 years, or

(3) An interest in a residential unit in a cooperative or a condominium type development which in the judgment of the Chief Benefits Director or the Director, Loan Guaranty Service, provides a right of occupancy for a period of not less than 50 years;

Provided, The title to such estate or interest is or shall be such as is acceptable to prudent lending institutions, informed buyers, title companies, and attorneys, generally, in the community.

(72 Stat. 1114; 38 U.S.C. 210)

This VA Regulation is effective upon publication in the FEDERAL REGISTER.

Approved: June 3, 1965.

By direction of the Administrator.

[SEAL] CYRIL F. BRICKFIELD, *Deputy Administrator.*

[F.R. Doc. 65-5963; Filed, June 8, 1965; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 3661]

[Idaho 016389]

IDAHO

Partial Revocation of Executive Order No. 7655 (Deer Flat National Wildlife Refuge)

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

Executive Order No. 7655 of July 12, 1937, establishing the Deer Flat Migratory Waterfowl Refuge, the name of which was changed to the Deer Flat National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940, is hereby revoked so far as it affects the following described land:

BOISE MERIDIAN

T. 2 N., R. 2 W.,

In section 7, that part of the SW¼SE¼ lying south of, and adjacent to, the centerline of South Shore Drive, so called (county road), and north of, and adjacent to, the take line as established in 1905 by the Bureau of Reclamation, bounded and described as follows:

Beginning at Corner 1, a point in the intersection of said take line and the north-south centerline of said section 7, from which point the south ¼ corner of said section bears S.00°01'W., 370.3 feet distant; thence with said north-south centerline N.00°01'E., 58.7 feet to Corner 2 a point in the intersection of said centerline and the centerline of the aforesaid county road; thence with the said road centerline, with the meanders thereof S.64°09'E., 845.5 feet; S.62°08'E., 50.0 feet; S.56°42'E., 50.0 feet; S.50°54'-E., 11.6 feet to Corner 3, a point in the intersection of said road centerline and the south boundary line of said section 7; thence with said south boundary line S.89°51'W., 13.5 feet to Corner 4, a point in the intersection of said section line and the aforesaid take line; thence with said take line with the meanders thereof N.63°26'W., 280.4 feet; N.73°56'W., 430.0 feet; N.55°16'W., 217.1 feet to the place of beginning; containing 0.93 acre more or less; and

Bounded on the northeast by land of the United States (tract 1) and the centerline of South Shore Drive, so called (county road) on the south by land of Mae O'Maley; and on the west by land of the United States (tract 1).

The land is acquired.

JOHN A. CARVER, JR., *Under Secretary of the Interior.*

JUNE 3, 1965.

[F.R. Doc. 65-5964; Filed, June 8, 1965; 8:47 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 65-493]

PART 0—COMMISSION ORGANIZATION

Waiving of Geographical Restriction on Validity of Operator Licenses Issued to Alien Aircraft Pilots

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 2d day of June 1965;

The Commission having under consideration § 13.4(c) of its rules which provides that a radio operator license issued to an alien aircraft pilot shall be valid only if he is lawfully in the United States; and

It appearing, that the Commission from time to time is requested to waive the aforementioned restriction for limited periods to permit alien pilots to operate radio stations on United States aircraft while they are outside the United States; and

It further appearing, that acting on requests for such waiver is a function which should be delegated to the staff in the interest of expediting operator licensing; and

It further appearing, that the amendment herein ordered relates to internal Commission organization and procedure and that publication of notice of proposed rule making pursuant to section 4(a) of the Administrative Procedure Act is not required:

It is ordered, Pursuant to authority contained in sections 4(i), 5(d)(1), and 303(1) of the Communications Act of 1934, as amended, that effective June 10, 1965, Part 0 is amended as set forth below.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,[1]

[SEAL] BEN F. WAPLE, *Secretary.*

Section 0.311 of the Commission's rules is amended by adding paragraph (a)(13) as follows:

§ 0.311 **Authority delegated to the Chief and to the Deputy Chief of the Field Engineering Bureau.**

(a) * * *

(13) To act on requests for a waiver of the geographical restriction in § 13.4(c) of this chapter on the validity of

[1] Commissioner Loevinger absent.

operator licenses issued to alien aircraft pilots.

* * * * *

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interpret or apply sec. 303, 48 Stat. 1082, as amended; sec. 5, 66 Stat. 713; 47 U.S.C. 303, 155)

[F.R. Doc. 65-5989; Filed, June 8, 1965; 8:49 a.m.]

[FCC 65-496]

PART 89—PUBLIC SAFETY RADIO SERVICES

Nontype Accepted Equipment for Police Zone and Interzone Stations

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 2d day of June 1965;

The Commission having under consideration the desirability of amending § 89.117 to exempt police zone and interzone stations from the type acceptance requirements of that section; and

It appearing, that, as of January 1, 1965, § 89.117 requires all licensees, except those operating under developmental authorization, in the Public Safety Radio Services to use type accepted equipment regardless of the frequencies or the nature of the service involved; and

It further appearing, that, police zone and interzone stations are permitted to operate only on nine frequencies between 2804 kc/s to 7935 kc/s specified in § 89.309 of the rules, and, that the availability of type accepted equipment for operation on these frequencies is extremely limited and prohibitively expensive; and

It further appearing, that, the number of zone and interzone stations, approximately 89, is static, and, that operation of these stations over a number of years has not resulted in complaints of interference from other licensees; and

It further appearing, that, in view of the above-mentioned considerations and the nature and essential service involved, and since this amendment relieves a restriction, compliance with the public notice and effective date provisions of section 4 of the Administrative Procedures Act is unnecessary and impracticable:

It is ordered, That, pursuant to the authority contained in sections 4 and 303 of the Communications Act of 1934, as amended, § 89.117(b) of the Commission's rules is amended, effective June 30, 1965, as set forth below.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,[1]

[SEAL] BEN F. WAPLE, *Secretary.*

Section 89.117(b) is amended to read as follows:

§ 89.117 Acceptability of transmitters for licensing.

* * * * *

(b) Except for transmitters used at developmental stations and transmitters authorized as of January 1, 1965, in police zone and interzone stations, each transmitter utilized by a station authorized for operation under this part must be of a type which is included on the Commission's current "List of Equipment Acceptable for Licensing" and designated for use under this part or be of a type which has been type accepted by the Commission for use under this part.

* * * * *

(Sec. 4, 48 Stat. 1066, as amended; 47 U.S.C. 154. Interpret or applies sec. 303, 48 Stat. 1082, as amended; 47 U.S.C. 303)

[F.R. Doc. 65-5990; Filed, June 8, 1965; 8:49 a.m.]

[1] Commissioner Loevinger absent.

Title 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[Rev. S. O. 947; Amdt. 1]

PART 95—CAR SERVICE

Railroad Operating Regulations for Freight Car Movement

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D.C., on the 1st day of June A.D. 1965.

Upon further consideration of Service Order No. 947 (28 F.R. 12127; 29 F.R. 6014, 9670, 18506; 30 F.R. 6220) and good cause appearing therefor:

It appearing, that for several years a number of railroads have published in the coal demurrage tariff, Freight Tariff 8-M, I.C.C. H-13, an exception which provides that during the two weeks prior to the miners' vacation period carloads of coal billed from mines or preparation plants with shipping instructions postdated to a date within the miners' vacation period may be moved from mines or preparation plant tracks for the convenience of the railroad and held free of demurrage until the shipping date shown on shipping instructions; that this arrangement is beneficial to the coal industry, to the receivers of coal, and to the railroads; that such holding would now be in violation of I.C.C. Service Order No. 947:

It is ordered, That:

§ 95.947 Railroad operating regulations for freight car movement.

(a) The provisions of this order are suspended as to coal billed during the 2 weeks' period prior to the miners' vacation period from mines or preparation plants which will observe the vacation period and moved from these mines or preparation plant tracks with shipping instructions postdated to a date within the miners' vacation period in accordance with Item 238-E, Supplement 19 of Freight Tariff 8-M, I.C.C. H-13.

(b) Effective date: This amendment shall become effective at 12:01 a.m., June 14, 1965.

(c) Expiration date: This amendment shall expire at 11:59 p.m., July 24, 1965, after which date all provisions of Revised Service Order No. 947 shall continue effective until its expiration date unless otherwise modified, changed, suspended, or annulled by order of this Commission.

(Sec. 1, 12, 15, 24 Stat. 379, 383, 384, as amended; 49 U.S.C. 1, 12, 15. Interprets or applies Sec. 1(10-17), 15(4), 40 Stat. 101, as amended, 54 Stat. 911; 49 U.S.C. 1(10-17), 15(4))

It is further ordered, That a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D.C., and by filing it with the Director, Office of the Federal Register.

By the Commission, Division 3.

[SEAL] BERTHA F. ARMES, *Acting Secretary.*

[F.R. Doc. 65-5949; Filed, June 8, 1965; 8:45 a.m.]

SUBCHAPTER B—CARRIERS BY MOTOR VEHICLE

[Ex Parte No. MC-40]

PART 193—PARTS AND ACCESSORIES NECESSARY FOR SAFE OPERATION

Qualifications and Maximum Hours of Service of Employees of Motor Carriers and Safety of Operation and Equipment

At a session of the Interstate Commerce Commission, Motor Carrier Board No. 2, held at its office in Washington, D.C., on the 25th day of May A.D. 1965.

The matter of parts and accessories necessary for safe operation under the Motor Carrier Safety Regulations prescribed by order of April 14, 1952, as amended by Commission orders dated August 30, 1962, and December 12, 1962, being under consideration; and

It appearing, that amendment of paragraph (c) of § 193.71 of the Code of Federal Regulations (49 CFR 193.71(c)) relating to coupling devices and towing methods, driveaway-towaway operations, and that amendment of paragraph (b) of Section 193.42 of the Code of Federal Regulations (49 CFR 193.42(b)), brakes required on all wheels, is warranted; and

It further appearing, that these amendments which will permit, under certain conditions, a vehicle to be full-mounted on a motor vehicle towed by means of a tow-bar, is a relaxation of presently prescribed requirements and therefore, pursuant to section 4(a) of the Administrative Procedure Act (60 Stat. 237, 5 U.S.C. 1003) for good cause it is found that notice of proposed rule making is unnecessary.

Upon consideration of the record, and good cause appearing therefor,

It is ordered, That paragraph (c) of § 193.71 of the Code of Federal Regulations (49 CFR 193.71(c)) and paragraph (b) of § 193.42 of the Code of Federal Regulations (49 CFR 193.42(b)) be, and they are hereby, amended to read as follows:

§ 193.71 Coupling devices and towing methods, driveaway-towaway operations.

* * * * *

(c) *Carrying vehicles on towed vehicles.* No vehicle shall be full-mounted on a motor vehicle towed by means of a tow-bar unless the towed vehicle is equipped with brakes and is provided with means for effective application of brakes acting on all wheels and is towed on its own wheels. The brakes on any combination of vehicles in which a vehicle is full-mounted on a motor vehicle towed by means of a tow-bar shall be operated by a single control. No motor vehicle shall be full-mounted on a motor vehicle towed by means of a saddle-mount unless the center line of the king pin or equivalent means of attachment of such towed vehicle shall be so located on the towing vehicle that the relationship to the rear axle or axles results in proper distribution of the total gross weight of the vehicles and does not unduly interfere with the steering, braking, or maneuvering of the towing vehicle, or otherwise contribute to the unsafe operation of the vehicles comprising the combination; and unless a perpendicular to the ground from the center of gravity of the full-mounted vehicles lies forward of the center line of the rear axle of the saddle-mounted vehicle. If a motor vehicle towed by means of a double saddle-mount has any vehicle full-mounted on it, such saddle-mounted vehicle shall at all times while so loaded have effective brakes acting on those wheels which are in contact with the roadway.

* * * * *

§ 193.42 Brakes required on all wheels.

Every motor vehicle shall be equipped with brakes acting on all wheels, except:

* * * * *

(b) Any vehicle being towed in a driveaway-towaway operation, provided the combination of vehicles is capable of complying with the performance requirements of § 193.52; only such brakes on the vehicle or vehicles being towed in driveaway-towaway operations need be operative as may be necessary to insure compliance with the performance requirements of § 193.52. This paragraph is not applicable to any motor vehicle towed by means of a tow-bar when any vehicle is full-mounted on such motor vehicle.

* * * * *

(Sec. 204, 49 Stat. 546, as amended; 49 U.S.C. 304)

It is further ordered, That this order shall become effective June 7, 1965, and shall continue in effect until further order of the Commission.

And it is further ordered, That notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Interstate Commerce Commission, Washington, D.C., and by filing a copy thereof with the Director, Office of the Federal Register.

By the Commission, Motor Carrier Board No. 2.

[SEAL] BERTHA F. ARMES,
Acting Secretary.

[F.R. Doc. 65-5950; Filed, June 8, 1965; 8:45 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 32—HUNTING

San Andres National Wildlife Refuge, New Mexico

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 32.32 Special regulations; big game; for individual wildlife refuge areas.

NEW MEXICO

SAN ANDRES NATIONAL WILDLIFE REFUGE

Public hunting of deer (either sex) on the San Andres National Wildlife Refuge, New Mexico, is permitted from December 4 through December 5, 1965, inclusive, only on the area designated by signs as open to hunting. This open area, comprising 57,215 acres, is delineated on a map available at the refuge headquarters, Las Cruces, N. Mex., and from the office of the Regional Director, Bureau of Sport Fisheries and Wildlife, Post Office Box 1306, Albuquerque, N. Mex., 87103. Hunting shall be in accordance with all applicable State regulations covering the hunting of deer subject to the following special conditions:

(1) Hunters must check in and out in person at the check station at the junction of U.S. 70 and Jornada Road. The check station will be open to allow hunters to start checking in during the late afternoon of December 3, 1965. Time of entry to the hunting area will be at the discretion of the conservation officer in charge. Any entry permits required by the military authorities will be available at the check station. All hunters must check out no later than 10 p.m., December 5, 1965.

(2) No entry into the hunting area from the west will be permitted north of the Rope Springs Road. Hunters will also not be permitted to enter the east side of the San Andres Range except at the discretion of the conservation officer in charge.

(3) The Refuge Manager in charge may restrict the number of hunters entering any one area. If required by the firing schedule, hunters will be cleared from all areas whereon their safety is endangered.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally, which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through December 5, 1965.

CECIL A. KENNEDY,
Refuge Manager, San Andres National Wildlife Refuge, Las Cruces, New Mexico.

MAY 7, 1965.

[F.R. Doc. 65-5965; Filed, June 8, 1965; 8:47 a.m.]

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 52]

DRIED PRUNES

Proposed Standards for Grades

Notice is hereby given that the United States Department of Agriculture is considering certain amendments to the United States Standards for Grades of Dried Prunes (7 CFR 52.3181–52.3188) pursuant to the authority contained in the Agricultural Marketing Act of 1946 (secs. 202–208, 60 Stat. 1087, as amended; 7 U.S.C. 1621–1627).

All persons who desire to submit written data, views, or arguments for consideration in connection with the proposed amendments should file the same in duplicate, not later than 60 days after publication hereof in the FEDERAL REGISTER, with the Hearing Clerk, U.S. Department of Agriculture, Room 112, Administration Building, Washington, D.C., 20250. All written submissions made pursuant to this notice will be available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

NOTE: Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act or with applicable State laws and regulations.

Statement of consideration leading to the proposed amendments. The current United States Standards for Grades of Dried Prunes which have been in effect since November 1956, do not provide for prunes which have been pitted. The style of "Whole Pitted" prunes has become increasingly important in the marketing of dried prunes.

Although the current grade standards do not specifically provide for the addition of approved preservatives, they do not prohibit such additives. It is suggested by the Dried Fruit Association of California that specific reference to the fact that safe and suitable preservatives may be used would better describe commercial packs of dried prunes, particularly in bulk packs of high moisture.

To bring the grade standards in conformance with current practices, the following specific amendments are proposed:

(1) A provision in the product description that "safe and suitable preservatives may be added";

(2) The addition of "Whole Pitted" style prunes; and

(3) An exception for bulk packs (10 pounds or more, in non-hermetically sealed containers) that no moisture limits would apply when safe and suitable preservatives have been added.

No other changes are proposed except to clarify that "skin or flesh damage" would not be considered defects in "Whole Pitted" style, and a redefinition for foreign material.

The amendments proposed are:

1. Section 52.3181 would be revised to read:

§ 52.3181 Product description.

Dried prunes are prepared from sound, properly matured prune plums from which the greater portion of moisture is removed by drying. The dried prunes are cleaned to assure a wholesome product; they may be treated with water or steam; and a safe and suitable preservative may be added.

2. A new section, § 52.3183a, would be added as follows:

§ 52.3183a Styles of dried prunes.

(a) Whole unpitted—from which pits have not been removed.

(b) Whole pitted—from which pits have been removed.

3. Section 52.3183 would be renumbered and retitled as follows: § *52.3183b Count-sizes of whole unpitted dried prunes.*

4. In Tables I, II, and III, a footnote designation of "2" would be added following the words "Skin or flesh damage." in the first and second columns of Tables I and II and in the first, second, and third columns of Table III.

5. Another footnote following Table III of this subpart would be added as follows:

[2] Not applicable to "Whole Pitted" style.

6. Section 52.3185 would be revised as follows:

§ 52.3185 Moisture limits.

Dried prunes shall not exceed the moisture limits for the applicable grades and kind and size of packaging as designated in Table IV of this subpart except there is no moisture limit when safe and suitable preservatives have been added. "Moisture" means the percentage by weight of the finished dried prunes, exclusive of pits, that is moisture when determined by the Dried Fruit Moisture Tester Method or in accordance with methods that give equivalent results. The moisture limits in Table IV apply only to so-called "bulk packs" of dried prunes packaged in non-hermetically sealed containers holding 10 pounds or more of dried prunes when safe and suitable preservatives have not been added. Such containers include, but are not limited to, wood boxes or fiber boxes.

7. In § 52.3187, the introductory text of paragraph (d) and paragraph (l) would be revised as follows:

§ 52.3187 Definitions and explanations of defects.

* * * * *

(d) *Skin or flesh damage.* "Skin or flesh damage" in the case of "Whole Unpitted" style means:

* * * * *

(l) *Foreign material.* "Foreign material" means leaves, twigs, pieces of wood, and similar extraneous materials which are objectionable.

* * * * *

8. In § 52.3188, *Work sheet for dried prunes,* another line would be added below the words "Varietal type" as follows:

Style ----------

9. In § 52.3188, *Work sheet for dried prunes,* a footnote designation of "3" would follow the words "skin or flesh damage," in the three places they appear under the heading "Defects and summary of allowances".

10. In § 52.3188, *Work sheet for dried prunes,* another footnote would be added as follows:

[3] Allowances for "skin or flesh damage" apply only to "Whole Unpitted" style.

(Secs. 202–208, 60 Stat. 1087, as amended; 7 U.S.C. 1621–1627)

Dated: June 4, 1965.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 65-6004; Filed, June 8, 1965; 8:50 a.m.]

FEDERAL AVIATION AGENCY

[14 CFR Part 71]

[Airspace Docket No. 65-SW-21]

CONTROL ZONE

Proposed Alteration

The Federal Aviation Agency is considering an amendment to Part 71 of the Federal Aviation Regulations, which would alter the Lubbock, Tex. (Municipal Airport) control zone.

This control zone, as described in Airspace Docket No. 65-SW-19, effective 0001 e.s.t., June 24, 1965, is designated as follows:

That airspace within a 5-mile radius of Lubbock, Tex., Municipal Airport (latitude 33°39'33" N., longitude 101°49'41" W.); within 2 miles each side of the Lubbock VORTAC 122° radial extending from the Lubbock 5-mile radius zone to the VORTAC; within 2 miles each side of the Lubbock VORTAC 124° radial extending from the Lubbock 5-mile radius zone to 11.5 miles SE of the VORTAC; and within 2 miles each side of the Lubbock ILS localizer N course extending from the 5-mile radius zone to the OM.

The Federal Aviation Agency proposes to alter the Lubbock, Tex. (Municipal Airport) control zone as follows:

Redesignate the Lubbock, Tex. (Municipal Airport) control zone as that airspace within a 5-mile radius of Lubbock, Tex., Municipal Airport (latitude 33°39'33" N., longitude 101°49'41" W.); within 2 miles each side of the Lubbock ILS localizer N course extending from the 5-mile radius zone to the OM; and

within 2 miles each side of the Lubbock VORTAC 114° radial extending from the Lubbock 5-mile radius zone to 11.5 miles SE of the VORTAC.

The proposed alterations described herein are required to delete the extension to the northwest required for instrument approach procedure AL-241-VOR/DME-1 which is being cancelled and to alter the extension to the southeast required for AL-241-VOR/DME-2, the approach radial of which is being changed from 124° to 114°.

Certain minor revisions to prescribed instrument procedures would be effected in conjunction with the actions proposed herein, but operational complexity would not be increased nor would aircraft performance characteristics or established landing minimums be adversely affected.

Specific details of the changes to procedures and minimum instrument flight rules altitudes that would be required may be examined by contacting the Chief, Air Traffic Division, Southwest Region, Federal Aviation Agency, Fort Worth, Tex.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Agency, Post Office Box 1689, Fort Worth, Tex., 76101. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Agency, Fort Worth, Tex. An informal Docket will also be available for examination at the Office of the Chief, Air Traffic Division.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Fort Worth, Tex., on May 28, 1965.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 65-5959; Filed, June 8, 1965; 8:46 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 65-SW-12]

TRANSITION AREA

Proposed Alteration

The Federal Aviation Agency is considering an amendment to Part 71 of the Federal Aviation Regulations, which alter the controlled airspace in the Little Rock, Ark., terminal area.

The following transition area described in Airspace Docket No. 63-SW-96 will become effective 0001 e.s.t., June 24, 1965.

LITTLE ROCK, ARK.

That airspace extending upward from 700 feet above the surface within an area beginning at latitude 34°28'00" N., longitude 92°22'00" W., to latitude 34°28'00" N., longitude 92°32'00" W., to latitude 34°37'00" N., longitude 92°33'00" W., to latitude 35°06'00" N., longitude 92°18'00" W., to latitude 35°-06'00" N., longitude 91°58'00" W., to latitude 34°47'00" N., longitude 91°56'00" W., to latitude 34°31'00" N., longitude 92°01'00" W., to point of beginning, and within 2 miles each side of the Little Rock VORTAC 137° radial, extending from the VORTAC to the north boundary of the Pine Bluff, Ark., transition area; and that airspace extending upward from 1,200 feet above the surface within an area bounded by a line beginning at latitude 34°26'00" N., longitude 93°31'00" W., to latitude 35°00'00" N., longitude 93°13'00" W., to latitude 35°28'00" N., longitude 92°-25'00" W., to latitude 35°23'00" N., longitude 91°34'00" W., to latitude 34°46'00" N., longitude 91°15'00" W., to latitude 33°53'00" N., longitude 91°56'00" W., to latitude 34°-17'00" N., longitude 93°26'00" W., to point of beginning; and that airspace extending upward from 5,000 feet m.s.l. within an area bounded by a line beginning at latitude 35°00'00" N., longitude 93°13'00" W., to latitude 35°44'00" N., longitude 92°57'00" W., to latitude 35°59'00" N., longitude 92°00'00" W., to latitude 35°33'00" N., longitude 91°-32'00" W., to latitude 35°23'00" N., longitude 91°34'00" W., to latitude 35°28'00" N., longitude 92°25'00" W., to point of beginning; excluding the portion extending upward from 5,000 feet m.s.l. that lies within federal airways.

The Memphis, Tenn., VORTAC is scheduled to be relocated to latitude 34°56'35" N., longitude 89°57'34" W. on or about October 1965. This will, in part, necessitate the realignment of a segment of Federal Airways V-54 and V-16. Additionally, V-16N from Pine Bluff, Ark., to Memphis, Tenn., will no longer be required and will be revoked.

As a result of the revocation of V-16N, the segment of controlled airspace between V-16 and its formerly designated north alternate will revert to uncontrolled airspace. Since this airspace is required to provide protection for en route radar vectoring, the following airspace action is proposed:

Redesignate the portion of the Little Rock, Ark., transition area with a floor of 1,200 feet above the surface to add the following:

And that airspace bounded on the N by V-54, on the S by V-16, and on the W by a line through latitude 34°46'00" N., longitude 91°15'00" W. and latitude 33°53'00" N., longitude 91°56'00" W.

Interested persons may submit such written data, views or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Agency, Post Office Box 1689, Fort Worth, Tex., 76101. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Agency officials may be made by contacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official Docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Agency, Fort Worth, Tex. An informal Docket will also be available for examination at the Office of the Chief, Air Traffic Division.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958; 49 U.S.C. 1348.

Issued in Fort Worth, Tex., on May 28, 1965.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 65-5960; Filed, June 8, 1965; 8:47 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 73]

[Docket No. 15627]

MULTIPLE OWNERSHIP OF STANDARD, FM, AND TELEVISION BROADCAST STATIONS

Order Extending Time for Filing Comments and Reply Comments

1. In a joint petition filed May 28, 1965, 22 broadcast licenses (Capital Cities Broadcasting Corp., et al.) request that the date for filing comments in the above-captioned proceeding be extended from June 14, 1965, to August 2, 1965, and that date for filing reply comments be extended from July 12, 1965, to August 31, 1965.

2. Petitioners state that they held an informal conference with the Commission on May 14, 1965, at which substantial information about problems raised by the Commission's proposal in this proceeding was developed, and that a further informal conference—with the staff of the Commission—has been scheduled for June 11, 1965. It is further stated that the staff conference will no doubt influence the comments which the parties will file herein, and that it would not be feasible to prepare such comments by June 14, 1965.

3. In addition, it is averred that petitioners are obtaining additional information on the problems involved in this proceeding, and that if an extension is granted they will be able to file joint comments which will eliminate needless repetition and volume in the comments filed. Finally, it is pointed out that because the Commission recess occurs in August, the extension would not result in undue delay in the proceeding.

4. We believe that adequate cause has been shown for the grant of the requested extension, and that such a grant would serve the public interest.

5. In view of the foregoing: *It is ordered*, This 3d day of June 1965, that the "Petition for Extension of Time to File Comments" filed by Capital Cities Broadcasting Corp., et al., on May 28, 1965, is granted, and that the time for filing comments in this proceeding is extended from June 14, 1965, to and including August 2, 1965, and the time for filing reply comments is extended from July 12, 1965, to and including August 31, 1965.

6. This action is taken pursuant to authority found in sections 4(i), 5(d)(1), and 303(r) of the Communications Act of 1934, as amended, and § 0.281(d)(8) of the Commission rules.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5991; Filed, June 8, 1965; 8:49 a.m.]

Notices

ATOMIC ENERGY COMMISSION

[Docket No. 115-1]

RURAL COOPERATIVE POWER ASSOCIATION

Elk River Demonstration Reactor Program Project; Notice of Issuance of Operating Authorization

Please take notice that no request for a formal hearing having been filed following publication of the notice of proposed action in the FEDERAL REGISTER, the Atomic Energy Commission has issued Operating Authorization No. DPRA-3 which authorizes the Rural Cooperative Power Association to use and operate the Elk River Reactor at powers up to 58.2 megawatts thermal.

The authorization, as issued, is as set forth in the Notice of Proposed Issuance of Operating Authorization published in the FEDERAL REGISTER on April 29, 1965, 30 F.R. 6092.

Dated at Bethesda, Md., this 2d day of June 1965.

For the Atomic Energy Commission.

R. L. DOAN,
Director,
Division of Reactor Licensing.

[F.R. Doc. 65-5973; Filed, June 8, 1965; 8:47 a.m.]

[Docket No. 50-216]

NEW YORK UNIVERSITY

Notice of Extension of Completion Date

Please take notice that the Atomic Energy Commission has issued an order extending to June 15, 1967, the latest completion date specified in Construction Permit No. CPRR-81 which authorizes New York University to reconstruct the Model AGN-201M, Serial 105 nuclear reactor on the University's campus at University Heights, Borough of the Bronx, New York City. This reactor was previously possessed and operated by the U.S. Naval Hospital at its site in Bethesda, Md.

Copies of the Commission's order and the application filed by New York University are available for public inspection at the Commission's Public Document Room, 1717 H Street NW., Washington, D.C.

Dated at Bethesda, Md., this 2d day of June 1965.

For the Atomic Energy Commission.

R. L. DOAN,
Director,
Division of Reactor Licensing.

[F.R. Doc. 65-5974; Filed, June 8, 1965; 8:47 a.m.]

[Docket No. 70-596]

YANKEE ATOMIC ELECTRIC CO.

Notice of Issuance of License

Notice is hereby given that the Atomic Energy Commission has issued License No. SNM-906 to Yankee Atomic Electric Company authorizing the transfer of irradiated fuel elements used in the Yankee Nuclear Power Station Reactor, licensed under Facility License DPR-3, at Rowe, Mass., to Nuclear Fuel Services, Inc., West Valley, N.Y. The shielded cask which will be used for the transfer is the Westinghouse Electric Corporation's Model ELC-102, Serial 1002. Transfers are to be made in accordance with the procedures incorporated by reference in the application dated April 21, 1965. For further details see (1) the application, and (2) an AEC staff safety analysis dated December 11, 1962, both of which are on file at the AEC's Public Document Room. A copy of the safety analysis is available upon request addressed to the Atomic Energy Commission, Washington, D.C., 20545, Attention: Director, Division of Materials Licensing.

Dated at Bethesda, Md., this 2d day of June 1965.

For the Atomic Energy Commission.

LYALL JOHNSON,
Acting Director,
Division of Materials Licensing.

[F.R. Doc. 65-5975; Filed, June 8, 1965; 8:47 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 16214; Order E-22272]

ALLEGHENY AIRLINES, INC., ET AL.

Order To Show Cause

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 4th day of June 1965.

Agreement filed pursuant to section 412 of the Federal Aviation Act of 1958, as amended, between Allegheny Airlines, Inc., various other air carriers, and various foreign air carriers relating to air express service; Docket 16214, Agreement CAB 12866.

By Order E-13764, dated April 21, 1959, as amended by Order E-13944, dated May 28, 1959, the Board approved pursuant to section 412 of the Federal Aviation Act of 1958, as amended (the Act), an agreement among various air carriers[1] relating to air express service. Such action was made subject to certain conditions.

Under the terms of the agreement each party thereto is entitled to one representative on the Air Express Committee and is entitled to a "weighted" vote with respect to all of the functions of such committee,[2] except with respect to matters relating to the distribution of net air express revenues, in which case each party is entitled to a single vote. Under the terms of the agreement, weighted voting power is determined as follows:

> The percentage of ton miles of air express carried by each party during the period from January 1 to June 30, inclusive of the preceding year with respect to the total ton miles of air express carried during such period by all parties to this agreement shall be added to the percentage of the air express route miles of said party on the last day of such period, with respect to the aggregate air express route miles of all parties on that day, and the total of such percentages shall be divided by two. The quotient shall represent the percentage of total voting power which the representative of such party shall have on the Committee * * *

In approving Agreement CAB 12866, the Board commented that, since action by the Air Express Committee requires three-fourths of the voting power of the entire committee, rather than a simple majority, it would not disturb this voting procedure. The Board noted, however, that since the use by the Air Transport Association of a weighted voting procedure was then under review in the ATA Inspection and Review Proceeding,[3] it would re-examine this matter after the outcome of that proceeding.

Prior to conclusion of the aforementioned proceeding, the members of the ATA agreed to the elimination of the weighted voting procedure and the adop-

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[1] Air Canada, Airlift International, Inc., Alaska Airlines, Inc., Alitalia Airlines, Inc., Allegheny Airlines, Inc., American Airlines, Inc., Bonanza Air Lines, Inc., Braniff Airways, Inc., Central Airlines, Inc., Chicago Helicopter Airways, Inc., Compagnie Nationale Air France, Continental Air Lines, Inc., Delta Air Lines, Inc., Eastern Air Lines, Inc., The Flying Tiger Line Inc., Frontier Airlines, Inc., Lake Central Airlines, Inc., Los Angeles Airways, Inc., Mackey Airlines, Inc., Mohawk Airlines, Inc., National Airlines, Inc., New York Airways, Inc., North Central Airlines, Inc., Northeast Airlines, Inc., Northwest Airlines, Inc., Ozark Air Lines, Inc., Pacific Air Lines, Inc., Pacific Northern Airlines, Inc., Pan American World Airways, Inc., Piedmont Aviation, Inc., San Francisco and Oakland Helicopter Airlines, Inc., Slick Airways, Inc., Southern Airways, Inc., Trans Caribbean Airways, Inc., Trans-Texas Airways, Inc., Trans World Airlines, Inc., United Air Lines, Inc., West Coast Airlines, Inc., Western Air Lines, Inc.

[2] The functions of this committee include but are not limited to establishing rules and procedures for the routing and division of traffic; establishing procedures applicable to the distribution of net air express revenue; and establishing, or providing for the establishment of, uniform rates and charges, rules and regulations, and insurance coverage, applicable to, and procedures for the handling, of air express, including all matters relating to accounting in connection therewith.

[3] Order Instituting Inspection and Review, Order E-13597, adopted March 10, 1959.

tion of an amendment to the organization's articles of association to provide for equal voting on an unweighted basis for each regular member.[4] Thereafter, the Board imposed a condition to this effect on its final approval of ATA's articles of association.[5]

A final decision in the ATA proceeding having been issued, the Board now deems it apprppriate to re-examine its previous approval of Agreement CAB 12866 to the extent that the agreement provides for a weighted voting procedure. It is the Board's view that weighted voting on matters before the Air Express Committee may concentrate undue power in the hands of a few of the larger airlines with the result that their views would prevail to the possible disadvantage of other carriers.

To the Board's knowledge there is now no other industry-wide or substantially industry-wide section 412 agreement which similarly provides for a weighted voting procedure, and in the light of the final determination in the aforementioned ATA proceeding, the Board is unaware of any justification for continuation of the procedure established by Agreement CAB 12866.

One final matter warrants discussion. The rule of the Air Express Committee defining "competitive flights", or the so-called "59-minute rule", which was previously filed with the Board for informational purposes has been the subject of recent comment.[6] We are of the opinion, upon reflection, that this rule and any similar rules which pertain to the apportionment of traffic among the carriers constitute agreements among air carriers affecting air transportation which should properly be filed for approval under section 412 of the Act.[7]

Based upon the foregoing, the Board tentatively finds that the weighted voting provisions of Agreement CAB 12866 are adverse to the public interest and that its approval of such agreement should be amended to require that the agreement provide for equal voting on all matters on an unweighted basis for each member of the Air Express Committee.[8]

Before taking final action, however, the Board will afford interested persons an opportunity to file comments on its tentative findings and conclusions.[9]

Accordingly, it is ordered:

1. That the parties to Agreement CAB 12866 and all other interested persons desiring to submit statements in support of or in opposition to the above tentative findings and conclusions shall do so within 30 days after the date of service of this order and such statement shall be submitted in triplicate to the Board's Docket Section;

2. That any objection to the above tentative findings and conclusions not made within the thirty-day period specified herein shall be deemed waived;

3. That if no objections are filed, further procedural steps shall be deemed waived and the matter shall stand submitted to the Board for issuance of a final order;

4. That if timely objections are filed, further consideration will be accorded any matters or issues raised by the objections before further action is taken by the Board; and

5. That this order shall be served upon all parties to Agreement CAB 12866, as amended.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON, *Secretary.*

[F.R. Doc. 65-5988; Filed, June 8, 1965; 8:49 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[Canadian List No. 201]

CANADIAN BROADCAST STATIONS

Changes, Proposed Changes, and Corrections in Assignments

MAY 21, 1965.

Notification under the provisions of Part III, section 2 of the North American Regional Broadcasting Agreement: List of changes, proposed changes and corrections in assignments of Canadian Broadcast Stations modifying appendix containing assignments of Canadian Broadcast Stations Mimeograph No. 47214-3) attached to the recommendations of the North American Regional Broadcasting Agreement Engineering Meeting.

Call letters	Location	Power kw	Antenna	Schedule	Class	Expected date of commencement of operation
		970 kilocycles				
CBZ (now in operation on new frequency).	Fredericton, New Brunswick.	10 kw	DA-N	U	III	
		1480 kilocycles				
CBZ (delete assignment—vide 970 kilocycles).	Fredericton, New Brunswick.	10 kw	DA-N	U	III	
		1480 kilocycles				
New	Sherbrooke, Quebec	10 kw	DA-1	U	III	EIO. 5-15-66.

[SEAL] FEDERAL COMMUNICATIONS COMMISSION, BEN F. WAPLE, *Secretary.*

[F.R. Doc. 65-5998; Filed, June 8, 1965; 8:50 a.m.]

[Docket No. 13514; FCC 65-497]

AMERICAN TELEPHONE AND TELEGRAPH CO.

Memorandum Opinion and Order

1. By order FCC 60-552, 25 F.R. 4516, the Commission instituted an investigation into the lawfulness of American Telephone and Telegraph Co., Tariff No. 135, and certain provisions of Tariff FCC No. 237 which established new regulations and charges applicable to switching and selecting equipment for use with channels of telephone grade furnished for remote operation of mobile radiotelephone systems. The order of investigation in this case prescribed procedures whereby the examiner designated to preside at the hearing should certify the record to the Commission for decision without preparing an initial or recommended decision.

2. *It is ordered*, That pursuant to section 8(a) of the Administrative Procedure Act, 5 U.S.C. 1007(a), the procedures established in the above-mentioned order are revised to direct that the Chief, Common Carrier Bureau, shall prepare and issue a recommended decision; and

3. *It is further ordered*, That the parties shall have the opportunity, within 30 days after release is made of the full text of the recommended decision, to submit exceptions to the recommended de-

[4] Such an amendment was approved by the Board in Order E-20511, adopted February 25, 1964.

[5] Orders E-20409 and E-20641, dated January 29, 1964 and April 2, 1964, respectively.

[6] The Flying Tiger Line Inc., by letter dated July 29, 1964, advised the Board of its concern over the present manner of routing and division of air express traffic among the air carriers. The carrier contends that the definition of "competitive flights" is such as to deny to Flying Tiger its fair share of express traffic; and that any change in the definition could be thwarted by a minority of carriers through the weighted voting procedures of the Air Express Committee. Thus, Flying Tiger charges that certain large carriers, through "cartel control" of the Air Express Committee, have arrogated to themselves the great bulk of the air express traffic.

[7] See Order E-19260, January 31, 1963, at page 2, et seq., Air Transport Association, Docket 10281.

[8] The Board notes that adoption of this requirement may necessitate amendment to the Rules of the Air Express Committee which were filed pursuant to the provisions of Order E-13764, as amended by Order E-13944, since performance under such rules (which are in the nature of by-laws) is governed by the voting power established by the agreement. Such rules (designated Agreement CAB 12866-A2) in their present form have not been acted upon. We shall, in view of their possible modification, defer further consideration thereof pending conclusion of the show cause proceeding instituted herein. We do not, however, propose to defer action on the "59-minute" rule or any other similar rule adverted to previously—we expect their prompt submission and shall render a decision thereon after the receipt of answers, if any. Of course, if these rules are also modified, such amended rules should properly be filed with the Board.

[9] Since provision is made for filing of objections to the order, separate petitions for reconsideration will not be entertained.

cision, or a statement in support of the recommended decision in whole or in part, with supporting reasons for such exceptions or statement, for consideration by the Commission; and

4. *It is further ordered*, That the further procedures shall be pursuant to 47 CFR Part 1 as though the Commission had initially decided the case.

Adopted: June 2, 1965.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5992; Filed, June 8, 1965; 8:49 a.m.]

[Docket No. 13780; FCC 65-498]

AMERICAN TELEPHONE AND TELEGRAPH CO.

Memorandum Opinion and Order

1. By order FCC 60-1113, 25 F.R. 9255, the Commission instituted an investigation into the lawfulness of certain provisions of American Telephone and Telegraph Co., Tariff FCC Nos. 135, 208, and 237, establishing regulations and charges for special arrangements to be provided as part of a communications system used in the Ballistic Missile Early Warning System (BMEWS) and new regulations and charges for switching and signaling arrangements to be provided as part of the Command Post Alerting Network (COPAN).

2. The order of investigation in this case prescribed procedures whereby the examiner designated to preside at the hearing should certify the record to the Commission for decision without preparing an initial or recommended decision.

3. *It is ordered*, That pursuant to section 8(a) of the Administrative Procedure Act, 5 U.S.C. 1007(a), the procedures established in the above-mentioned order are revised to direct that the Chief, Common Carrier Bureau, shall prepare and issue a recommended decision; and

4. *It is further ordered*, That the parties shall have the opportunity, within 30 days after release is made of the full text of the recommended decision, to submit exceptions to the recommended decision, or a statement in support of the recommended decision in whole or in part, with supporting reasons for such exceptions or statement, for consideration by the Commission; and

5. *It is further ordered*, That the further procedures shall be pursuant to 47 CFR Part 1 as though the Commission had initially decided the case.

Adopted: June 2, 1965.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5993; Filed, June 8, 1965; 8:49 a.m.]

[Docket No. 12194; FCC 65-499]

AMERICAN TELEPHONE AND TELEGRAPH CO. ET AL.

Memorandum Opinion and Order

Charges, classifications, regulations, and practices for and in connection with channels for Data Transmission:

1. By order FCC 57-1084, 22 F.R. 8026, the Commission instituted an investigation into the lawfulness of American Telephone and Telegraph Co., Tariff No. 237, Channels for Data Transmission, and related provisions of other tariffs. The order of investigation in this case prescribed procedures whereby the examiner designated to preside at the hearing should certify the record to the Commission for decision without preparing an initial or recommended decision.

2. *It is ordered*, That pursuant to section 8(a) of the Administrative Procedure Act, 5 U.S.C. 1007(a), the procedures established in the above-mentioned order are revised to direct that the Chief, Common Carrier Bureau, shall prepare and issue a recommended decision; and

3. *It is further ordered*, That the parties shall have the opportunity, within 30 days after release is made of the full text of the recommended decision, to submit exceptions to the recommended decision, or a statement in support of the recommended decision in whole or in part, with supporting reasons for such exceptions or statement, for consideration by the Commission; and

4. *It is further ordered*, That the further procedures shall be pursuant to 47 CFR Part 1 as though the Commission had initially decided the case.

Adopted: June 2, 1965.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5994; Filed, June 8, 1965; 8:49 a.m.]

[Docket Nos. 15872 etc.; FCC 65M-696]

NORTHLAND TELEVISION CORP. ET AL.

Order Continuing Hearing

In re applications of Northland Television Corp., Duluth, Minn., Docket No. 15872, File No. BPCT-3359; Central Minnesota Television Co., Duluth, Minn., Docket No. 15873, File No. BPCT-3386; Channel 10, Inc., Duluth, Minn., Docket No. 15874, File No. BPCT-3404; for construction permit for new television broadcast station (Channel 10).

The Hearing Examiner having under consideration a joint request by all the applicants in the above-entitled proceeding, filed May 25, 1965, in which Broadcast Bureau concurred, for changes in the procedural dates and postponement of the hearing from June 29 until September 8, 1965; and an oral (telephonic) communication from counsel for applicant Channel 10, Inc., informing the Examiner that the lawyers for the three applicants have reached the outlines of an agreement, the details of which are still to be worked out with their clients, which they hope to submit for the Commission's approval by mid-June, and which will, if approved, result in the termination of this proceeding and the early establishment of a new television facility in the Duluth, Minn., area;

It appearing, that the moving parties have alleged in their motion papers that they were negotiating the agreement referred to above and that if this agreement is worked up in detail, completed, and submitted to the Commission for approval at an early date, a reasonable continuance of the hearing to afford the Commission an opportunity to pass upon it will be in the public interest to the extent that it may result in an early termination of litigation and the establishment of a competing television facility in the Duluth, Minn., area by a date much sooner than would be true if this comparative proceeding has to be resolved in litigation; and

It appearing further, that a reasonable deadline for the submission of the completed agreement referred to above, accompanied by an appropriate petition, should be established;

It is ordered, This 1st day of June 1965, that the "Joint Request" of the applicants is hereby granted to the extent: (1) That the agreement and petition, mentioned above, are to be submitted to the Commission, in completed form, no later than the close of business July 16, 1965; and (2) that the hearing is hereby continued, until Monday, July 26, 1965, at 10 a.m., at the Commission's offices, Washington, D.C., exhibits to be exchanged no later than July 9 and the notifications of names of witnesses to be given by July 20.[1]

Released: June 1, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5995; Filed, June 8, 1965; 8:49 a.m.]

[Docket Nos. 15701, 15702; FCC 65M-717]

SOUTHERN NEWSPAPERS, INC., AND RADIO HOT SPRINGS CO.

Order

In re applications of Southern Newspapers, Inc., Hot Springs, Ark., Docket No. 15701, File No. BPH-3984; C. J. Dickson, Guy R. Beckham, and James M. Alexander, doing business as Radio Hot Springs Co., Hot Springs, Ark., Docket

[1] It is contemplated, if the agreement and petition are timely filed, that the Examiner will, by further order, continue the hearing long enough to afford the Review Board an opportunity to pass upon it. Counsel will assist the Examiner by supplying him with a courtesy copy of the agreement and petition the day they are filed.

No. 15702, File No. BPH-4124; for construction permits.

The Hearing Examiner having under consideration a joint petition filed on June 2, 1965, by Southern Newspapers, Inc., and C. J. Dickson, Guy R. Beckham, and James M. Alexander, doing business as Radio Hot Springs, Co., requesting that certain changes be made in procedural dates heretofore specified in the above-entitled proceeding, in order to allow additional time for action by the Review Board on the joint petition for approval of agreement, dismissal of Southern Newspapers, Inc. application, and grant of Radio Hot Springs Co. application, filed by the two applicants on April 29, 1965; and

It appearing, that counsel for the Broadcast Bureau, the only other party to the proceeding, has informally agreed to a waiver of the 4-day requirement of the Commission's rules and indicated that it has no objection to a grant of the relief requested herein;

It is ordered, This 3d day of June 1965, that the request for change in procedural dates be and the same is hereby granted to the extent hereinafter set forth; and the procedural dates are rescheduled as follows:

	Extended from—	To—
Exchange of applicants' direct cases	June 2, 1965	July 2, 1965
Notification of any witnesses desired for cross-examination	June 9, 1965	July 9, 1965
Commencement of hearing	June 16, 1965	July 15, 1965

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5996; Filed, June 8, 1965; 8:49 a.m.]

[Docket No. 16036; FCC 65-478]

STORZ BROADCASTING CO. (WTIX)

Order Designating Application for Hearing on Stated Issues

In re application of Storz Broadcasting Co. (WTIX) New Orleans, La., Docket No. 16036, File No. BP-14135; has 690 kc, 5 kw, DA-2, U, Class II, requests 690 kc, 5 kw, 10 kw-LS, DA-2, U, Class II, for construction permit.

At a session of the Federal Communications Commission held at its offices in Washington, D.C., on the 2d day of June 1965;

The Commission having under consideration the above-captioned and described application;

It appearing, that, except as indicated by the issues specified below, the above-captioned applicant is legally, technically, financially, and otherwise qualified to construct and operate as proposed; and

It further appearing, that the following matter is to be considered in connection with the aforementioned issues specified below:

1. The WTIX proposal would cause objectionable interference to the existing operation of Station WVOK, Birmingham, Ala. Therefore, the licensee of Station WVOK will be made a party to the proceeding and an appropriate issue will be specified.

It further appearing, that, in view of the foregoing, the Commission is unable to make the statutory finding that a grant of the subject application would serve the public interest, convenience, and necessity, and is of the opinion that the application must be designated for hearing on the issues set forth below:

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the application is designated for hearing, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine the areas and populations which may be expected to gain or lose primary service from the proposed operation of Station WTIX, and the availability of other primary service to such areas and populations.

2. To determine whether the proposed operation of Station WTIX would cause objectionable interference to Station WVOK, Birmingham, Ala., or any other existing standard broadcast stations, and, if so, the nature and extent thereof, the areas and populations affected thereby, and the availability of other primary service to such areas and populations.

3. To determine, in the light of the evidence adduced pursuant to the foregoing issues, whether a grant of the application would serve the public interest, convenience, and necessity.

It is further ordered, That Voice of Dixie, Inc., licensee of Station WVOK, Birmingham, Ala., is made a party to the proceeding.

It is further ordered, That, in the event of a grant of the application, the construction permit shall contain the following condition: Submission by the permittee of data made in accordance with §§ 73.48 and 2.579 of the rules for type acceptance of the proposed transmitter.

It is further ordered, That to avail themselves of the opportunity to be heard, the applicant and party respondent herein, pursuant to § 1.221(c) of the Commission's rules, in person or by attorney, shall within twenty (20) days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicant herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.594 of the Commission's rules, give notice of the hearing within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.594 (g) of the rules.

Released: June 4, 1965.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 65-5997; Filed, June 8, 1965; 8:50 a.m.]

CIVIL SERVICE COMMISSION

MANPOWER SHORTAGE

Notice of Listing of Position

Under the provisions of section 7(b) of the Administrative Expenses Act of 1946, as amended, the Civil Service Commission has found, effective May 28, 1965, that there is a manpower shortage for the position of Assistant Professor, Economics and Management, GS-110-11, U.S. Coast Guard Academy, New London, Connecticut.

This manpower shortage finding will terminate when the position is filled.

The appointee to this position may be paid for the expenses of travel and transportation to his first duty station.

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] MARY V. WENZEL,
Executive Assistant to the Commissioners.

[F.R. Doc. 65-5968; Filed, June 8, 1965; 8:47 a.m.]

FEDERAL MARITIME COMMISSION

AMERICAN PRESIDENT LINES, LTD., AND PACIFIC FAR EAST LINE, INC.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. S. G. Holmes, Manager—Rates and Conferences, American President Lines, 601 California Street, San Francisco 8, Calif.

Agreement 9464, between American President Lines, Ltd. and Pacific Far East Line, Inc., covers the transportation of commercial cargo, military household goods, personal effects, and unaccompanied baggage under through bills of lading between ports of call of American President Lines and Pacific Far East Line in Hong Kong, Japan, Korea, Ryukyus Islands, and Taiwan and ports of call of American President Lines and Pacific Far East Line on the U.S. Pacific Coast with transhipment in Japan, under

terms and conditions set forth in said agreement.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5981; Filed, June 8, 1965; 8:48 a.m.]

IVARAN LINES AND SEATRAIN LINES, INC.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. Harvey M. Flitter, Assistant Traffic Manager, Seatrain Lines, Inc., 595 River Road, Edgewater, N.J., 07020.

Agreement 9466, between A/S Ivarans Rederi (Ivaran Lines) and Seatrain Lines, Inc., covers a through billing arrangement on general cargo from Argentina, Brazil, and Uruguay to Puerto Rico, with transhipment at New York, under terms and conditions set forth in the agreement.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5982; Filed, June 8, 1965; 8:48 a.m.]

JAPAN-ATLANTIC AND GULF FREIGHT CONFERENCE

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. C. A. Cole, Jr., Chairman, Japan-Atlantic and Gulf Freight Conference, Kindai Building, 11, 3-Chome, Kyobashi, Chuo-Ku, Tokyo, Japan.

Agreement 3103-28 between the member lines of the Japan-Atlantic and Gulf Freight Conference modifies Article 19 (b) of the basic conference agreement. Article 19(b), as presently approved, grants the Chairman authority to obtain the votes of the parties by telephone with respect to rate matters in lieu of meeting in conference. The purpose of the modification is to broaden the scope of Article 19(b) to permit telephonic polling of the parties on other matters as well as rates.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5983; Filed, June 8, 1965; 8:48 a.m.]

OSAKA SHOSEN KAISHA, LTD., AND SEATRAIN LINES, INC.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. John Hughes, Assistant Rate Manager, Seatrain Lines, Inc., 595 River Road, Edgewater, N.J.

Agreement 9462, between Osaka Shosen Kaisha, Ltd. and Seatrain Lines, Inc., covers the transportation of general cargo under through bills of lading from loading ports of Osaka Shosen Kaisha, Ltd., in Japan, Korea, Hong Kong, Formosa, and the Philippines to ports of call of Seatrain Lines, Inc., in Puerto Rico with transhipment at the port of New York, N.Y., under terms and conditions set forth in said agreement.

Dated: June 3, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5984; Filed, June 8, 1965; 8:48 a.m.]

OY FINNLINES, LTD., AND SEATRAIN LINES, INC.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 10 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. Harvey M. Flitter, Assistant Traffic Manager, Seatrain Lines, Inc., 595 River Road, Edgewater, N.J., 07020.

Agreement 9465, between Oy Finnlines, Ltd. and Seatrain Lines, Inc., covers a through billing arrangement on general cargo from Puerto Rico to ports in Holland, Belgium, Poland, West Germany, and Finland, with transhipment at New York, under terms and conditions set forth in the agreement.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5985; Filed, June 8, 1965; 8:48 a.m.]

PACIFIC FAR EAST LINE, INC., AND AMERICAN PRESIDENT LINES, LTD.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the

Commission for approval pursuant to section 15 of the Shipping Act, 1916, as as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. S. G. Holmes, Manager—Rates and Conferences, American President Lines, 601 California Street, San Francisco 8, Calif.

Agreement 9463, between Pacific Far East Line, Inc. and American President Lines, Ltd., covers the transportation of commercial cargo, military household goods, personal effects, and unaccompanied baggage under through bills of lading between ports of call of Pacific Far East Line and American President Lines in Hong Kong, Japan, Korea, Ryukyus Islands, and Taiwan, and ports of call of American President Lines on the U.S. Atlantic Coast with transhipment in Japan.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5986; Filed, June 8, 1965; 8:49 a.m.]

TRANS-PACIFIC FREIGHT CONFERENCE OF JAPAN

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 301; or may inspect agreement at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C., 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. D. P. Gillette, Chairman, Trans-Pacific Freight Conference of Japan, Kindai Building, 11, 3-Chome Kyobashi, Chuo-Ku, Tokyo, Japan.

Agreement 150-31 between the member lines of the Trans-Pacific Freight Conference of Japan modifies Article 19(b) of the basic conference agreement. Article 19(b), as presently approved, grants the Chairman authority to obtain the votes of the parties by telephone with respect to rate matters in lieu of meeting in conference. The purpose of the modification is to broaden the scope of Article 19(b) to permit telephone polling of the parties on other matters as well as rates.

Dated: June 4, 1965.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 65-5987; Filed, June 8, 1965; 8:49 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 31-682]

BROWN CO.

Notice of Filing of Application for Exemption

JUNE 3, 1965.

Notice is hereby given that Brown Co. ("Brown") Main Street, Berlin, N.H., has filed an application and an amendment thereto with this Commission for an order pursuant to section 3(a)(3) of the Public Utility Holding Company Act of 1935 ("Act") exempting Brown, as a holding company, and every subsidiary company thereof, as such, from all of the provisions of the Act on the ground that Brown is only incidentally a holding company, being primarily engaged or interested in one or more businesses other than the business of a public-utility company and not deriving, directly or indirectly, any material part of its income from any one or more subsidiary companies, the principal business of which is that of a public-utility company.

All interested persons are referred to the application, on file at the office of the Commission, for a statement of the facts in support thereof which are summarized below.

Brown, which recently reincorporated in the State of Delaware, is engaged in the business of manufacturing and selling paper and various other wood products. Its principal plants are located in Berlin and Gorham, N.H. It also has plants in North Stratford, N.H., Holyoke, Mass., Mount Holly, N.J., Birmingham, Ala., and Corvallis, Oreg.

In addition to its manufacturing properties, Brown, indirectly through its wholly owned and newly incorporated subsidiary company, Brown-New Hampshire, Inc., owns and operates facilities for the generation and transmission of electric energy used principally in Brown's nonutility operations. These properties were transferred by Brown to Brown-New Hampshire, Inc., on April 30, 1965, and include thermal and hydroelectric generating facilities located in and near Berlin, N.H., having an aggregate rated capacity of about 63,200 kw. During Brown's fiscal year ending November 30, 1964, these facilities generated about 93½ percent of the company's total electric-energy requirements. Brown also purchases power from Public Service Co. of New Hampshire, Inc. ("Public Service"), and, to reduce the cost of such purchased power, Brown, generally on Sundays and holidays, delivers to Public Service energy not required by Brown for its own operations. During the 1964 fiscal year, Brown produced 258,151,000 kw.-hr., purchased 17,620,000 kw.-hr., and sold to Public Service, its only customer, 11,564,000 kw.-hr., at a price of $34,762. At November 30, 1964, facilities used in the generation and transmission of electric energy were carried on Brown's balance sheet at $2,539,944 (net of depreciation) and constituted 4 percent of Brown's total assets (net of depreciation) of $60,354,417. For the year ending November 30, 1964, Brown's total net sales derived from all its operations were approximately $68,134,000.

Notice is further given that any interested person may, not later than June 29, 1965, request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law raised by said application which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C., 20549. A copy of such request should be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon the applicant at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed contemporaneously with the request. At any time after said date, the application, as amended or as it may be further amended, may be granted, or the Commission may take such other action as it may deem appropriate.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 65-5961; Filed, June 8, 1965; 8:47 a.m.]

[File No. 7-2441]

GENERAL ANILINE & FILM CORP.

Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

JUNE 3, 1965.

In the matter of application of the Philadelphia-Baltimore-Washington

Stock Exchange, for unlisted trading privileges in a certain security.

The above-named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f)(1)(B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchanges: General Aniline & Film Corp., File 7-2441.

Upon receipt of a request, on or before June 19, 1965, from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25, D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 65-5962; Filed, June 8, 1965; 8:47 a.m.]

INTERSTATE COMMERCE COMMISSION

[Notice 778]

MOTOR CARRIER, BROKER, WATER CARRIER, AND FREIGHT FORWARDER APPLICATIONS

JUNE 4, 1965.

The following applications are governed by Special Rule 1.247[1] of the Commission's general rules of practice (49 CFR 1.247), published in the FEDERAL REGISTER, issue of December 3, 1963, effective January 1, 1964. These rules provide, among other things, that a protest to the granting of an application must be filed with the Commission within 30 days after date of notice of filing of the application is published in the FEDERAL REGISTER. Failure seasonably to file a protest will be construed as a waiver of opposition and participation in the proceeding. A protest under these rules should comply with § 1.40 of the general rules of practice which requires that it set forth specifically the grounds upon which it is made and specify with particularity the facts, matters, and things relied upon, but shall not include issues or allegations phrased generally. Protests not in reasonable compliance with the requirements of the rules may be rejected. The original and six (6) copies of the protest shall be filed with the Commission, and a copy shall be served concurrently upon applicant's representative, or applicant if no representative is named. If the protest includes a request for oral hearing, such request shall meet the requirements of § 1.247(d)(4) of the special rule. Subsequent assignment of these proceedings for oral hearing, if any, will be by Commission order which will be served on each party of record.

[1] Copies of Special Rule 1.247 can be obtained by writing to the Secretary, Interstate Commerce Commission, Washington, D.C., 20423.

No. MC 1718 (Sub-No. 9), filed May 20, 1965. Applicant: HENRY O. FLATEGRAF AND ALFRED M. FLATEGRAFF, a partnership, doing business as GARDNER TRUCK LINE, Pine River, Minn. Applicant's representative: A. R. Fowler, 2288 University Avenue, St. Paul, Minn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wooden spools, reels, lagging and cooperage*, from Pine River, Minn., to Brainerd, Minn.

NOTE: Applicant states the proposed service to be "on traffic having a subsequent out-of-State movement". If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 1801 (Sub-No. 19), filed October 23, 1964. Applicant: FORD VAN LINES, INCORPORATED, 56th and Cornhusker Highway, Lincoln, Nebr. Applicant's attorney: James E. Ryan, 214 Sharp Building, Lincoln 8, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods* as defined by the Commission, (1) between points in Hawaii and (2) between points in Hawaii, on the one hand, and, on the other, points in the continental United States, including Alaska.

NOTE: If a hearing is deemed necessary, applicant does not specify location.

No. MC 2567 (Sub-No. 9), filed May 12, 1965. Applicant: BELBY TRANSFER COMPANY, a corporation, 520 Belleville Turnpike, Kearny, N.Y. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Elevators, escalators*, and *machinery, materials and supplies* used in the manufacture, installation, and maintenance of elevators and escalators, between plantsites, warehouses, and other sources of supply of Otis Elevator Co. located at Yonkers, N.Y., and Harrison, N.J., and points within 5 miles respectively, on the one hand, and, on the other, plantsites and warehouses of Otis Elevator Co. located at Bloomington, Ind., and points within 5 miles thereof; and (2) the commodities described in (1) above, from plantsites and warehouses of Otis Elevator Co., located at Bloomington, Ind., and points within 5 miles thereof, to points in New Jersey, Connecticut, Delaware, and points in that part of New York on and east of New York Highway 14, and points in that part of Pennsylvania on and east of the Susquehanna River.

NOTE: If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 2934 (Sub-No. 14), filed September 17, 1964. Applicant: AERO MAYFLOWER TRANSIT COMPANY, INC., 863 Massachusetts Avenue, Indianapolis, Ind. Applicant's attorney: James L. Beattey, Suite 1019-1029, 130 East Washington Street, Indianapolis, Ind., 46204. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission (1) between points in Hawaii, and (2) between points in Hawaii on the one hand, and, on the other, points in the United States.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Indianapolis, Ind.

No. MC 4405 (Sub-No. 431), filed May 24, 1965. Applicant: DEALERS TRANSIT, INC., 13101 South Torrence Avenue, Chicago 33, Ill. Applicant's attorney: James W. Wrape, Sterick Building, Memphis, Tenn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Water cooling towers and parts* thereof when moving with such towers, from Glasgow, Mo., to points in the United States (except those in Alaska and Hawaii).

NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City or St. Louis, Mo.

No. MC 6078 (Sub-No. 49) (AMENDMENT), filed May 12, 1965, published in FEDERAL REGISTER, issue of May 26, 1965, amended May 27, 1965, and republished as amended this issue. Applicant: D. F. BAST, INC., 1425 North Maxwell Street, Allentown, Pa. Applicant's representative: Bert Collins, 140 Cedar Street, New York 6, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel articles, on pole and extendable trailers*, from the plant and warehouse sites of Azco Steel Co. at Saddle Brook and Harrison, N.J., to points in Connecticut, Massachusetts, and Rhode Island, and *rejected and damaged shipments*, on return.

NOTE: The purpose of this republication is to add Rhode Island to the destination States. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y., or Washington, D.C.

No. MC 8457 (Sub-No. 2), filed May 17, 1965. Applicant: MILWAUKIE TRANSFER & FUEL CO., a corporation, 836 31st Street, Milwaukie, Oreg., 97022. Applicant's attorney: Earle V. White, Fifth Avenue Building, 2130 Southwest Fifth Avenue, Portland 1, Oreg. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Laminated wood products, timbers, trusses, and beams*, fabricated or unfabricated, and *hardware* used in the installation of such commodities, from the plantsite of Trussfab, Inc., located at Clackamas,

Oreg., to points in Washington, Idaho, and Montana.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Portland, Oreg.

No. MC 10173 (Sub-No. 6), filed May 19, 1965. Applicant: MARVIN HAYES LINES, INC., Hayes Circle, Clarksville, Tenn. Applicant's attorney: Charles H. Hudson, Jr., 417 Stahlman Building, Nashville, Tenn., 37201. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), (1) between Clarksville, Tenn., and Louisville, Ky., (a) from Clarksville over U.S. Highway 79 to junction U.S. Highway 68 at Russelville, Ky., thence over U.S. Highway 68 to junction U.S. Highway 31W at Bowling Green, Ky., thence over U.S. Highway 31W to Louisville and return over the same route, serving all intermediate points; (b) from Clarksville over U.S. Highway 41A to junction U.S. Highway 41 at Hopkinsville, Ky., thence over U.S. Highway 41 to junction bypass near Mannington, Ky., thence over bypass to junction Kentucky Turnpike, thence over Kentucky Turnpike to Louisville and return over the same route, serving no intermediate points; and (2) between junction Interstate Highway 65 and U.S. Highway 31W near Upton, Ky., and Louisville, Ky.; from junction Interstate Highway 65 and U.S. Highway 31W near Upton, over Interstate Highway 65 to junction Kentucky Turnpike near Elizabethtown, Ky., thence over Kentucky Turnpike to Louisville and return over the same route, serving no intermediate points and serving the junction of Interstate Highway 65 and U.S. Highway 31W for purposes of joinder only.

NOTE: Applicant states that the above-proposed operations are to be used in connection with all of its present authority and that it is to be restricted against the transportation of shipments between Nashville, Tenn., and Louisville, Ky. If a hearing is deemed necessary, applicant requests it be held at Nashville, Tenn.

No. MC 13250 (Sub-No. 80), filed May 19, 1965. Applicant: J. H. ROSE TRUCK LINE, INC., 5003 Jensen Drive, Post Office Box 16190, Houston, Tex., 77022. Applicant's attorney: Thomas E. James, 721 Brown Building, Austin, Tex., 78701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Tractors* (except tractors used in pulling commercial highway trailers), *scrapers, motor graders, wagons, engines* (except aircraft and missile engines), *generators, engines and generators combined, welders*, and *road rollers*, (2) *parts and attachments* of and for the commodities described in (1) above, from Aurora, Joliet, Mossville, Decatur, Morton, and Peoria, Ill., and points within 15 miles of Peoria, Ill., to points in Arizona, California, Nevada, and New Mexico; (3) *trucks* in initial movement in truckaway service, from Decatur, Ill., to points in Arizona, California, Nevada, and New Mexico, and (4) *parts, attachments, and accessories* of and for the commodities described in (3) above, from Decatur, Morton, and Joliet, Ill., to points in Arizona, California, Nevada, and New Mexico.

NOTE: Applicant states that it presently holds existing authority from this Commission to transport the above commodities when they fall under the *Mercer Description*. Additionally Rose holds size and weight authority from these origins to Arizona, California, and New Mexico and contractors' equipment authority to Arizona and Nevada. Applicant here seeks, at shipper's request, to clarify this authority by having the items specifically described. Accordingly, applicant agrees that any rights granted will not be duplicating of that already held and shall not be construed as conferring more than one single operating right, and shall not be severable by sale or otherwise. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 14706 (Sub-No. 14), filed May 21, 1965. Applicant: C. W. KELLEY TRANSPORT, INC., South 83 Highway, Liberal, Kans. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Advertising matter*, (2) *articles* distributed by wholesale or retail suppliers, marketers or distributors of petroleum products, and (3) *such commodities* as are used by wholesale or retail suppliers, marketers, or distributors of petroleum products in the conduct of their businesses, when shipped in mixed loads with petroleum products (as presently authorized), from Ponca City, Okla., to points in that part of Kansas, on, south and west of a line beginning at the Kansas-Missouri State line near Fort Scott, Kans., and extending along U.S. Highway 54 to El Dorado, Kans., thence along U.S. Highway 77 to Junction City, Kans., thence along U.S. Highway 40 to Salina, Kans., thence along U.S. Highway 81 to Belleville, Kans., thence along U.S. Highway 36 to the Kansas-Colorado State line, points in that part of Colorado on and east of U.S. Highway 87 and points in Nebraska.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 17000 (Sub-No. 6), filed May 20, 1965. Applicant: HOHENWALD TRUCK LINES, INC., 14 East Main Street, Hohenwald, Tenn. Applicant's attorney: Robert H. Cowan, Suite 434, Stahlman Building, Nashville, Tenn., 37201. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading, (1) between Hohenwald, Tenn., and Lobelville, Tenn.; from Hohenwald over Tennessee Highway 20 to Linden, Tenn., thence over Tennessee Highway 13 to Lobelville and return over the same route, serving no intermediate points; (2) between Hohenwald, Tenn., and Hampshire, Tenn., over Tennessee Highway 99, serving no intermediate points but serving the off-route point of the Columbia Gulf Transmission Co.'s compressor station; and (3) between Hohenwald, Tenn., and Columbia, Tenn., over Tennessee Highway 99, serving the intermediate point of Hampshire, Tenn., and the off-route point of the Columbia Gulf Transmission Co.'s compressor station.

NOTE: Applicant states that it intends to use the above-proposed authority in connection with its existing authority. If a hearing is deemed necessary, applicant requests it be held at Nashville, Tenn.

No. MC 18088 (Sub-No. 36), filed May 18, 1965. Applicant: FLOYD & BEASLEY TRANSFER COMPANY, INC., Post Office Drawer 8, Sycamore, Ala. Applicant's attorneys: A. Alvis Layne, Pennsylvania Building, Washington, D.C., 20004, and John W. Cooper, 805 Title Building, Birmingham, Ala., 35203. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), (1) between Atlanta, Ga., and Fort Worth, Tex.; from Atlanta over U.S. Highway 78 to Birmingham, Ala., thence over U.S. Highway 11 to junction U.S. Highway 80, thence over U.S. Highway 80 to Monroe, La., thence over Interstate Highway 20 to Shreveport, La., thence over U.S. Highway 80 to Fort Worth and return over the same route, serving the intermediate points of Monroe and Shreveport, La., Dallas, Tex., and all intermediate and off-route points within 10 miles of Dallas and Fort Worth, Tex.; (2) between Atlanta, Ga., and Houston, Tex.; from Atlanta over U.S. Highway 29 to Opelika, Ala., thence over Interstate Highway 85 to Montgomery, Ala. (also from Opelika over U.S. Highway 29 to junction U.S. Highway 80, thence over U.S. Highway 80 to Montgomery), thence over U.S. Highway 31 to Mobile, Ala., thence over U.S. Highway 90 to junction U.S. Highway 190, thence over U.S. Highway 190 to junction U.S. Highway 165 at Kinder, La.

Thence over U.S. Highway 165 to junction U.S. Highway 90 at Iowa, La., thence over U.S. Highway 90 to Houston, and return over the same route, serving the intermediate points of Baton Rouge and Lake Charles, La., Orange and Beaumont, Tex., and all intermediate and off-route points within 10 miles of Houston, Tex., and the off-route point of Texas City, Tex.; (3) between Montgomery, Ala., and junction U.S. Highways 11 and 80 near Cuba, Ala., over U.S. Highway 80, serving no intermediate points, for purpose of joinder only with applicant's proposed regular-route operations; (4) between junction U.S. Highways 71 and 190 west of Baton Rouge, La., and Shreveport, La., over U.S. Highway 71, serving no intermediate points, for purpose of joinder only, in connection with applicant's proposed regular-route operations; and (5) between junction U.S. Highway 78 and Alabama Highway 21 and junction U.S. Highways 231 and 80; from junction U.S. Highway 78 and Alabama Highway 21 over Alabama Highway

21 to junction U.S. Highway 231, thence over U.S. Highway 231 to junction U.S. Highway 80, and return over the same route, serving the intermediate point of Sycamore, Ala., for the purpose of joinder with applicant's presently authorized irregular-route operations.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga., Dallas, Tex., or Washington, D.C.

No. MC 21170 (Sub-No. 86), filed May 20, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Braddock and Lake City, Pa., to points in Illinois, Indiana, Iowa, Minnesota, Missouri, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa.

No. MC 21170 (Sub-No. 87), filed May 24, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Prepared foodstuffs*, requiring refrigeration from New Albany, Ind., to points in Illinois, Kansas, Missouri, and Tennessee.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 21170 (Sub-No. 88), filed May 24, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Glassware, bottles*, and *containers*, with or without caps, stoppers, and tops, from the plantsite and/or warehouse facilities of, or used by, Anchor Hocking Glass Corp., located at or near Gurnee, Ill., to points in Colorado, Kansas, Iowa, Minnesota, Missouri, Nebraska, and Wisconsin, and *pallets, rejected and defective glassware, bottles* and *containers* on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Indianapolis, Ind., or Chicago, Ill.

No. MC 21170 (Sub-No. 93), filed May 24, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bakery goods*, from points in Brown, Clermont, and Hamilton Counties, Ohio, to points in Illinois (except Chicago and East St. Louis, and the commercial zones thereof).

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 21170 (Sub-No. 94), filed May 24, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from points in the Kansas City, Kans.-Mo., commercial zone, to points in Kentucky, Ohio, Tennessee, Virginia, and West Virginia.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Birmingham, Ala.

No. MC 21170 (Sub-No. 95), filed May 24, 1965. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, from Lawton, Mich., to points in Missouri.

NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Washington, D.C.

No. MC 22170 (Sub-No. 1), filed May 17, 1965. Applicant: F. PARSON KEPLER SR., doing business as KEPLER BROTHERS, 721 South Front Street, Milton, Pa. Applicant's attorney: Preston L. Davis, 37 Arch Street, Milton, Pa., 17847. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Such merchandise, as is dealt in by wholesale, retail, and chain grocery and food business houses*, and, in connection therewith, *equipment, materials, and supplies* used in the conduct of such business, from the facilities of the Great A. & P. Co., Inc., located in Milton, Pa., to Elmira, N.Y.

NOTE: Applicant states he is under contract with the Great Atlantic and Pacific Tea Co., Inc. Applicant is also authorized to conduct operations as a common carrier in Certificate MC 77729, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Harrisburg, Pa.

No. MC 29120 (Sub-No. 78), filed May 21, 1965. Applicant: ALL-AMERICAN TRANSPORT, INC., 1500 Industrial Avenue, Sioux Falls, S. Dak. Applicant's attorney: David Axelrod, 39 South La Salle Street, Chicago 3, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), between Milwaukee, Wis., and Dixon, Ill.: From Milwaukee over Wisconsin Highway 15 to Beloit, Wis., thence over U.S. Highway 51 to Rockford, Ill., thence over Illinois Highway 2 to Dixon, and return over the same route, serving no intermediate points, as an alternate route for operating convenience only, in connection with applicant's presently authorized regular-route operation between the same termini.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Sioux Falls, S. Dak.

No. MC 29566 (Sub-No. 100) (AMENDMENT), filed April 8, 1965, published in FEDERAL REGISTER issue of April 28, 1965, amended June 1, 1965, and republished as amended this issue. Applicant: SOUTHWEST FREIGHT LINES, INC., 1400 Kansas Avenue, Kansas City, Kans. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses*, as described in sections A and C, Appendix I, in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from Sioux City, Iowa, and points in Dakota County, Nebr., to points in Arkansas, Illinois the Indiana portion of the Chicago Ill., commercial zone, Iowa, Kansas, Missouri, Oklahoma, Texas, and Memphis, Tenn.

NOTE: The purpose of this republication is to add Sioux City, Iowa, as an origin point. If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., or Des Moines, Iowa.

No. MC 29886 (Sub-No. 205), filed May 24, 1965. Applicant: DALLAS & MAVIS FORWARDING CO., INC., 4000 West Sample Street, South Bend, Ind. Applicant's attorney: Charles M. Pieroni (same address as applicant's). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Bodies, cabs, hoists, lift gates, trailers, spreaders, and containers* (except containers having a capacity of 5 gallons or less or having a capacity of 9 cubic feet or less), from Lima, Ohio, to points in the United States, and (2) *materials, supplies, and parts used in the maunfacture, assembly, and servicing of the above-described commodities* when moving in mixed loads with any of such commodities, from Lima, Ohio, to points in the United States.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 30844 (Sub-No. 181), filed May 17, 1965. Applicant: KROBLIN REFRIGERATED XPRESS, INC., Post Office Box 218, Sumner, Iowa. Applicant's attorney: Truman A. Stockton, Jr., The 1650 Grant Street Building, Denver 3, Colo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods and frozen products*, including frozen animal and poultry food, from New Bedford, Mass., and points within twenty (20) miles of New Bedford, Mass., to points in Illinois, Indiana, Iowa, Kentucky, Michigan, Minnesota, Missouri, Nebraska, Ohio, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 30844 (Sub-No. 182), filed May 17, 1965. Applicant: KROBLIN REFRIGERATED XPRESS, INC., Post Office Box 218, Sumner, Iowa. Applicant's attorney: Truman A. Stockton, Jr., The 1650 Grant Street Building, Denver 3, Colo. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, canned, prepared, and preserved (other than frozen), from Fruitland, Md., to points in Illinois, Iowa, Minnesota, Nebraska, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 31600 (Sub-No. 590), filed May 18, 1965. Applicant: P. B. MUTRIE MOTOR TRANSPORTATION, INC., Calvary Street, Waltham, Mass., 02154. Applicant's attorney: Harry C. Ames, Jr., Transportation Building, Washington 6, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Hydrogen*, in bulk, from East Hartford, Conn., to points in Maine, Massachusetts, New Hampshire, Rhode Island, Vermont, and points in Albany and Rensselaer Counties, N.Y.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 38383 (Sub-No. 15), filed May 19, 1965. Applicant: THE GLENN CARTAGE COMPANY, a corporation, 1115 South State Street, Girard, Ohio. Applicant's attorney: A. Charles Tell, 44 Columbus Center, East Broad Street, Columbus, Ohio, 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel articles* and *equipment and supplies*, used or useful in the manufacture of iron and steel and iron and steel articles, between Burns Harbor, Porter County, Ind., on the one hand, and, on the other, points in Michigan, Ohio, Pennsylvania, New York, West Virginia, and those points in Kentucky within five (5) miles of the Ohio River.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 41240 (Sub-No. 7), filed May 21, 1965. Applicant: NELSON TRUCKING SERVICE, INC., Mediapolis, Iowa. Applicant's attorney: Charles B. Myers, 611 Field Building, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Building materials, gypsum and gypsum products, and materials and supplies* used in the installation and application of such commodities, from the plantsite of the United States Gypsum Co., located approximately 2 miles southwest of Mediapolis, Iowa, to points in Illinois.

NOTE: Applicant states it presently holds general commodity authority, with usual exceptions, (1) between Mediapolis, Iowa, and Chicago, and Peoria, Ill., with service at named intermediate and off-route points in Illinois and (2) between points in Iowa and Illinois within 35 miles of Muscatine, Iowa, including Muscatine. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 41404 (Sub-No. 55) (AMENDMENT), filed May 7, 1965, published FEDERAL REGISTER issue May 26, 1965, and republished as amended this issue. Applicant: ARGO-COLLIER TRUCK LINES CORPORATION, Post Office Box 151, Fulton Highway, Martin, Tenn., 38237. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses* as described in Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except commodities in bulk, in tank vehicles), (2) *frozen foods*, (3) *canned and preserved foods*, (4) *chemicals, chemical blends, and ingredients* to be used in further manufacturing processes; transportation of which does not require special equipment or bulk or tank vehicles; (5) *inedible meats, meat products, and meat byproducts, lard, tallows, and oils*, (6) *agricultural products* and *those commodities* embraced in section 203(b)(6) of Part II of the Interstate Commerce Act, when moving in the same vehicle with economic regulated commodities, (7) *frozen animal and poultry foods*, (8) *industrial products*, in packages, requiring refrigeration and (9) *coffee, condensed; coffee extracts; coffee, green; tea and tea dust and sugar*, from Gulfport, Miss., to points in the United States (excluding Alaska).

NOTE: The purpose of this republication is to add (8) and (9) above. If a hearing is deemed necessary, applicant requests it be held at Jackson, Miss., or New Orleans, La.

No. MC 42487 (Sub-No. 627), filed May 21, 1965. Applicant: CONSOLIDATED FREIGHTWAYS CORPORATION OF DELAWARE, 175 Linfield Drive, Menlo Park, Calif. Applicant's attorney: Robert C. Stetson, 175 Linfield Drive, Menlo Park, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid fertilizer*, in bulk, in tank vehicles, between points in Klamath and Lake Counties, Oreg., on the one hand, and, on the other, points in California on and north of a line beginning at and including San Francisco, and extending over U.S. Highway 50 to junction California Highway 120, approximately six (6) miles west of Manteca, thence over California Highway 120 to junction U.S. Highway 6, thence over U.S. Highway 6 to the California-Nevada boundary line.

NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Klamath Falls, Oreg.

No. MC 42487 (Sub-No. 628), filed May 21, 1965. Applicant: CONSOLIDATED FREIGHTWAYS CORPORATION OF DELAWARE, 175 Linfield Drive, Menlo Park, Calif. Applicant's attorney: Robert C. Stetson, 175 Linfield Drive, Menlo Park, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid glue and liquid resins*, in bulk, in tank vehicles, from Springfield, Oreg., to Lewiston and Jaype, Idaho.

NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Seattle, Wash.

No. MC 42866 (Sub-No. 11), filed September 25, 1964. Applicant: NATIONAL VAN LINES, INC., 2800 Roosevelt Road, Broadview, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, (1) between points in Hawaii; and (2) between points in Hawaii, on the one hand, and, on the other, points in the continental United States, including Alaska.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 45194 (Sub-No. 7), filed May 20, 1965. Applicant: LATTAVO BROTHERS, INC., 1620 Cleveland Avenue SE., Canton, Ohio. Applicant's attorney: John P. McMahon, 44 East Broad Street, Columbus, Ohio, 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel articles, machinery and machinery parts; contractors' and builders' supplies and equipment, and building and construction materials*, not including commodities in bulk, between Burns Harbor, Porter County, Ind., on the one hand, and, on the other, points in Michigan, Ohio, Pennsylvania, West Virginia, New York, New Jersey, Illinois, and Missouri.

NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 48374 (Sub-No. 5), filed October 7, 1964. Applicant: FERNSTROM STORAGE AND VAN COMPANY, a corporation, Post Office Box 8801, Chicago 66, Ill. Applicant's attorney: Donald A. Morken, 1000 First National Bank Building, Minneapolis, Minn., 55402. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission, (1) between points in Hawaii, and (2) between points in Hawaii on the one hand, and, on the other, points in the continental United States including Alaska.

NOTE: If a hearing is deemed necessary, applicant does not specify place of hearing.

No. MC 52460 (Sub-No. 73), filed May 17, 1965. Applicant: HUGH BREEDING, INC., 1420 West 35th Street, Post Office Box 9515, Tulsa, Okla. Applicant's attorney: James W. Wrape, 2111 Sterick Building, Memphis, Tenn., 38103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Advertising matter;* (2) *articles distributed by wholesale or retail suppliers, marketers, or distributors of petroleum products*, and (3) *such commodities as are used by wholesale or retail suppliers, marketers, or distributors of petroleum products* in the conduct of their business, when shipped in mixed truckloads with petroleum products in containers, from Ponca City, Okla., to points in Arkansas (except points on U.S. Highway 64 between Fort Smith and Conway, Ark.; U.S. Highway 65 between Conway and Little Rock, Ark.; and U.S. Highway 70 between Little Rock and the Arkansas-Tennessee State line), Kansas, Missouri, New Mexico, Oklahoma, and Texas (except points on U.S. Highway 75).

NOTE: Applicant states it presently holds authority to transport petroleum products in containers to and from points involved in this application. If a hearing is deemed necessary, applicant requests it be held at Denver, Colo.

No. MC 54974 (Sub-No. 2), filed May 17, 1965. Applicant: MERRITT CORPORATION, 1648 Southbridge Street, Worcester, Mass. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except Classes A and B explosives, household goods, commodities in bulk, commodities requiring special equipment and those in-

jurious or contaminating to other lading), between points in Massachusetts.

NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 58152 (Sub-No. 12), filed May 19, 1965. Applicant: OGDEN & MOFFETT COMPANY, a corporation, 3565 24th Street, Port Huron, Mich. Applicant's attorney: Walter N. Bieneman, Suite 1700, 1 Woodward Avenue, Detroit, Mich., 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Perkins Engines, Inc., located on Wixom Road (near the intersection of Interstate Highway 96), as an off-route point in connection with applicant's regular-route operations.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 59570 (Sub-No. 27), filed May 17, 1965. Applicant: HECHT BROTHERS, INC., Lakewood Road, Toms River, N.J. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry salt, dry salt with additives, dry pepper*, and *dry mineral mixtures*, in bulk, in bags, and in containers, from points in New Jersey (except Atlantic, Burlington, Camden, Cape May, Cumberland, Gloucester, and Salem Counties, N.J.), to points in Connecticut, Delaware, Maryland, Massachusetts, New Jersey, New York, Pennsylvania, Rhode Island, and Washington, D.C.

NOTE: Applicant states no duplication of authority is sought. If a hearing is deemed necessary, applicant requests it be held at Philadelphia, Pa., or Washington, D.C.

No. MC 64932 (Sub-No. 371) (AMENDMENT), filed February 16, 1965, published FEDERAL REGISTER issue March 10, 1965, amended May 20, 1965, and republished as amended this issue. Applicant: ROGERS CARTAGE CO., a corporation, 1439 West 103d Street, Chicago, Ill. Applicant's attorney: David Axelrod, 39 South La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids, chemicals, fertilizer, and fertilizer ingredients*, in bulk, in tank vehicles, from East Dubuque, Ill., and points in Illinois within ten (10) miles thereof, to points in Indiana, Kentucky, Illinois, Michigan, Ohio, Wisconsin, Minnesota, Iowa, Missouri, Kansas, Nebraska, and South Dakota.

NOTE: The purpose of this republication is to include additional destination States not previously published. If a hearing is deemed necessary, applicant does not specify any particular area.

No. MC 64932 (Sub-No. 375) (AMENDMENT), filed May 13, 1965, published FEDERAL REGISTER issue June 3, 1965, and republished as amended this issue. Applicant: ROGERS CARTAGE CO., a corporation, 1439 West 103d Street, Chicago, Ill. Applicant's attorney: David Axelrod, 39 South La Salle Street, Chicago 3, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid chemicals* (except petrochemicals), in bulk, in tank vehicles, from Swanton, Ohio, to points in Florida, Georgia, Kentucky, Pennsylvania, South Carolina, and North Carolina.

NOTE: The purpose of this republication is to include points in Kentucky and Pennsylvania in the destination territory, not shown in previous publication. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 64932 (Sub-No. 378), filed May 18, 1965. Applicant: ROGERS CARTAGE CO., a corporation, 1439 West 103d Street, Chicago, Ill., 60643. Applicant's attorney: David Axelrod, 39 South La Salle Street, Chicago 3, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids and chemicals, liquid*, in bulk, in tank vehicles, from the plantsite or the storage facilities of the Monsanto Co. at or near Anniston, Ala., to points in the St. Louis, Mo.-East St. Louis, Ill., commercial zone.

NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 64994 (Sub-No. 61), filed May 17, 1965. Applicant: HENNIS FREIGHT LINES, INC., Post Office Box 612, Winston-Salem, N.C., 27102. Applicant's representative: Frank C. Philips, Post Office Box 612, Winston-Salem, N.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, commodities in bulk, household goods, Classes A and B explosives and those requiring special equipment) between East Troy, Wis., and Chicago, Ill., (1) from East Troy, Wis., over Wisconsin Highway 20 to junction Interstate Highway 94, thence over Interstate Highway 94 to Chicago, Ill., (2) from East Troy, Wis., over Wisconsin Highway 20 to junction U.S. Highway 41, thence over U.S. Highway 41 to Chicago, Ill.; (3) from East Troy, Wis., over Wisconsin Highway 15 to Milwaukee, thence over Interstate Highway 94 and/or U.S. Highway 41 to Chicago, Ill., and return over the same routes, serving no intermediate points.

NOTE: Applicant states it proposes to tack the proposed operations with its present authority. If a hearing is deemed necessary, applicant requests it be held at Madison, Wis., or Chicago, Ill.

No. MC 64994 (Sub-No. 62), filed May 17, 1965. Applicant: HENNIS FREIGHT LINES, INC., Post Office Box 612, Winston-Salem, N.C., 27102. Applicant's representative: Frank C. Philips, Post Office Box 612, Winston-Salem, N.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Meat and meat products* (fresh, frozen, cooked, cured, canned, and smoked), from Louisville, Ky., to Canton, Ohio; (1) from Louisville, Ky., over U.S. Highway 31 to junction Indiana Highway 62, thence over Indiana Highway 62 to Madison, Ind., thence over U.S. Highway 421 to Versailles, Ind., thence over U.S. Highway 50 and bypass U.S. Highway 50 to junction Interstate Highway 71, thence over Interstate Highway 71 to Mansfield, Ohio, thence over U.S. Highway 30 via Massillon to Canton, Ohio, and (2) from Louisville, Ky., over U.S. Highway 42 to Cincinnati, Ohio, thence over Interstate Highway 71 to Mansfield, thence over U.S. Highway 30 via Massillon to Canton, Ohio, and return over the same routes, serving the intermediate point of Massillon, Ohio.

NOTE: Applicant states (a) that the proposed operations in (1) and (2) above will be restricted to deliveries at Massillon and Canton, Ohio, and (b) that on return it proposes to transport rejected shipments. If a hearing is deemed necessary, applicant requests it be held at Louisville, Ky., or Columbus, Ohio.

No. MC 72322 (Sub-No. 2) (AMENDMENT), filed February 9, 1965, published FEDERAL REGISTER issue February 25, 1965, and republished as amended this issue. Applicant: LOWDER TRANSPORTATION, INC., 26 Prospect Street, Woburn, Mass. Applicant's attorney: Mary E. Kelley, 10 Tremont Street, Boston 8, Mass. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Roofing materials* and *supplies; wallboard and ceiling board; and chemicals and acids*, in containers, between Andover, Mass., on the one hand, and, on the other, points in Massachusetts, Vermont, New Hampshire, and Rhode Island.

NOTE: Applicant states the above operation will be under a continuing contract with Allied Chemical Corp. The purpose of this application is to follow the traffic to the shipper's new location in Andover, Mass., as applicant has served this account for over 35 years from Everett, Mass. The purpose of this republication is to add wallboard and ceiling board to the commodity description. If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 78228 (Sub-No. 7), filed May 17, 1965. Applicant: THE J. MILLER COMPANY, a corporation, 147 Nichol Avenue, McKees Rocks, Pa. Applicant's attorney: Henry M. Wick, Jr., 1515 Park Building, Pittsburgh, Pa., 15222. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron* and *steel* and *iron and steel articles* as described in Appendix V to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209, 276–279, between Aliquippa, Allenport, Donora, Pittsburgh, Ellwood City, Monessen, and Vandergrift, Pa., on the one hand, and, on the other, points in Indiana, Illinois, and the Lower Peninsula of Michigan.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa.

No. MC 82841 (Sub-No. 13), filed May 19, 1965. Applicant: R. D. TRANSFER, INC., 801 Livestock Exchange Building, Omaha, Nebr. Applicant's attorney: Donald L. Stern, 630 City National Bank Building, Omaha, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes,

transporting: *Irrigation systems and parts for irrigation systems*, from points in Douglas County, Nebr., to points in Arizona, Arkansas, California, Idaho, Kansas, Louisiana, Missouri, Montana, Nevada, New Mexico, Oklahoma, Oregon, Texas, Utah, and Washington.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Kansas City, Mo.

No. MC 88414 (Sub-No. 1), filed February 15, 1965. Applicant: RALPH WILLIAM JOHNSON AND WILLIAM FREDERICK BOTTOMS, a partnership, doing business as RICHMOND TRANSFER & STORAGE COMPANY, 2114 MacDonald Avenue, Richmond, Calif. Applicant's attorney: G. Alfred Roensch, 21st Floor, 100 Bush Street, San Francisco 4, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Used household goods*, as defined by the Commission in 17 M.C.C. 467, between points on the Island of Oahu, Hawaii.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Honolulu, Hawaii.

No. MC 97068 (Sub-No. 5) (AMENDMENT), filed March 18, 1965, published FEDERAL REGISTER issue April 8, 1965, and republished as amended this issue. Applicant: H. S. ANDERSON TRUCKING COMPANY, a corporation, Post Office Box 29, Port Arthur, Tex. Applicant's attorney: John H. Benckenstein, 1350 Petroleum Building, Post Office 551, Beaumont, Tex. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Contractors equipment, materials, machinery*, and *supplies* (excluding oilfield commodities as described in Mercer-Extension-Oilfield Commodities, 46 M.C.C. 845) and (2) *commodities*, the transportation of which, because of size, weight, or other physical characteristics, require the use of special equipment, rigging, or handling, together with *parts and attachments* thereto when moving in connection therewith, between points in Texas, Louisiana, and Mississippi.

NOTE: Applicant states it will tack the above-proposed authority with its present authority in MC 97068 and subs thereunder. The purpose of this republication is to add the commodity description in (1) above and to change the commodity description in (2) above. If a hearing is deemed necessary, applicant requests it be held at Houston, Tex.

No. MC 99973 (Sub-No. 2), filed May 17, 1965. Applicant: ARIZONA MOVING & STORAGE COMPANY, a corporation, 1039 North Alamo Street, Tucson, Ariz. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New household goods, furniture, and fixtures* of every character and description, crated or uncrated, between points in Arizona.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Phoenix, Ariz.

No. MC 100127 (Sub-No. 4), filed May 24, 1965. Applicant: ELMIRA DELIVERIES, INC., 111 West 3d Street, Elmira, N.Y. Applicant's attorney: Geo. Stephen Leonard, 1730 K Street NW., Washington, D.C., 20006. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Corrugated board* and *corrugated boxes*, set up and knocked down and *single face bulb wrappers*, from Elmira Heights, N.Y., to points in that part of Pennsylvania east of U.S. Highway 219 and *returned, rejected, and damaged shipments*, on return.

NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 102567 (Sub-No. 105), filed May 3, 1965. Applicant: EARL CLARENCE GIBBON, doing business as EARL GIBBON PETROLEUM TRANSPORT, 235 Benton Road, Bossier City, La. Applicant's attorney: Jo E. Shaw, 641 Bettes Building, Houston, Tex., 77003. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Chemicals*, in bulk, between points in St. Charles Parish, La., on the one hand, and on the other points in the United States (except Alaska and Hawaii).

NOTE: If a hearing is deemed necessary, applicant requests it be held at New Orleans, La., or Washington, D.C.

No. MC 103435 (Sub-No. 170), filed May 17, 1965. Applicant: UNITED-BUCKINGHAM FREIGHT LINES, a corporation, East 915 Springfield Avenue, Spokane, Wash. Applicant's representative: J. Maurice Andren, Post Office Box 1631, Rapid City, S. Dak., attorney George LaBissoniere, 533 Central Building, Seattle, Wash. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts*, and *articles distributed by meat packinghouses*, as described in sections A and C of Appendix I to the report in *Descriptions in Motor Carriers Certificates*, 61 M.C.C. 209 and 766 (except commodities in bulk, in tank vehicles), from points in Dakota County, Nebr., to points in Michigan, Indiana, Illinois, Iowa, Minnesota, Missouri, Kansas, Nebraska, South Dakota, North Dakota, Montana, Wyoming, Colorado, Idaho, Washington, and Oregon.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Sioux City, Iowa, or Omaha, Nebr.

No. MC 103435 (Sub-No. 171) filed May 24, 1965. Applicant: UNITED-BUCKINGHAM FREIGHT LINES, a corporation, East 915 Springfield Avenue, Spokane, Wash. Applicant's representative: J. Maurice Andren, Post Office Box 1631, Rapid City, S. Dak.; attorney: George LaBissoniere, 533 Central Building, Seattle, Wash. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sugar*, from Billings, Hardin, and Sidney, Mont., and points within four (4) miles thereof, to points in Minnesota.

NOTE: Applicant states it presently can perform some of this service by tacking certain authorities to its sub numbers 66, 69, 78, and 83. No duplicate authority is sought by this application. If a hearing is deemed necessary, applicant requests it be held at Denver, Colo.

No. MC 103880 (Sub-No. 333) (AMENDMENT), filed March 15, 1965, published FEDERAL REGISTER issue April 1, 1965, amended May 21, 1965, and republished as amended this issue. Applicant: PRODUCERS TRANSPORT, INC., 215 East Waterloo Road, Akron, Ohio. Applicant's attorney: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids, chemicals, fertilizers and fertilizer ingredients*, in bulk, in tank vehicles, from East Dubuque, Ill., and points in Illinois, within ten (10) miles thereof, to points in Illinois, Indiana, Kentucky, Michigan Ohio, Wisconsin, Iowa Missouri, Kansas, Nebraska, South Dakota, and Minnesota.

NOTE: The purpose of this republication is to include additional destination States not previously published. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 104523 (Sub-No. 34), filed May 17, 1965. Applicant: WILLIAM HAROLD HUSTON, doing business as HUSTON TRUCK LINE, Friend, Nebr. Applicant's representative: C. A. Ross, 714 South 45th, Lincoln, Nebr., 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry animal and poultry feed, animal and poultry feed ingredients*, in bags, packages, and in bulk, (1) from Lincoln, Nebr., to points in Illinois and Minnesota, and (2) from points in Dawson County, Nebr., to points in Illinois, Iowa, Oklahoma, and Texas, and *exempt commodities*, on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Lincoln, Nebr.

No. MC 105375 (Sub-No. 20) (AMENDMENT), filed April 13, 1965, published FEDERAL REGISTER issue of May 5, 1965, amended May 27, 1965, and republished as amended this issue. Applicant: DAHLEN TRANSPORT OF IOWA, INC., 875 North Prior Avenue, St. Paul, Minn., 55104. Applicant's attorney: Leonard A. Jaskiewicz, Madison Building, 1155 15th Street NW., Washington, D.C., 20005 Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acids, chemicals, fertilizer*, and *fertilizer ingredients*, in bulk, from East Dubuque, Ill., and points in Illinois within 10 miles thereof to points in Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, Nebraska, Ohio, South Dakota, and Wisconsin, and *rejected shipments* on return.

NOTE: The purpose of this republication is to (1) clearly set forth the authority sought and (2) to add Kentucky, Michigan, and Ohio as destination States. If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 107227 (Sub-No. 86), filed September 21, 1964. Applicant: INSURED TRANSPORTERS, INC., 1944 Williams Street, San Leandro, Calif. Applicant's attorney: John G. Lyons, Mills Tower, San Francisco 4, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Automobiles, trucks, and busses*, as

defined by the Commission, in Ex Parte MC-45, *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, in secondary movements, in driveaway and truckaway service, between points in Hawaii.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Honolulu, Hawaii.

No. MC 107403 (Sub-No. 625), filed May 19, 1965. Applicant: MATLACK, INC., 10 West Baltimore Avenue, Lansdowne, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lime and lime products*, from River Rouge, Mich., to points in Illinois, Indiana, Iowa, Kentucky, Missouri, Ohio, New York, Pennsylvania, West Virginia, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107496 (Sub-No. 380), filed May 19, 1965. Applicant: RUAN TRANSPORT CORPORATION, 303 Keosauqua Way, Des Moines, Iowa. Applicant's attorney: H. L. Fabritz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Loose, flowable, and fungible commodities* tendered in dismounted containers and delivered while the containers remain on the vehicle, (2) *loose, flowable, and fungible commodities* tendered into premounted containers and delivered while remaining in said containers, (3) *loose, flowable, and fungible commodities* tendered in dismounted containers and delivered in dismounted containers, and (4) *commodities, in bulk*, when moving at the same time in vehicles transporting loose, flowable, and fungible commodities under conditions described in (1), (2), and (3), above, between points in the United States (except Alaska and Hawaii).

NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 110098 (Sub-No. 56) (AMENDMENT), filed May 20, 1965, published in FEDERAL REGISTER issue of June 3, 1965, and republished as amended this issue. Applicant: ZERO REFRIGERATED LINES, a corporation, 815 Merida Street, Box 7249, Station A, San Antonio, Tex. Applicant's attorney: Donald L. Stern, 630 City National Bank Building, Omaha 2, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts*, and *articles distributed by meat packinghouses* (except hides and commodities in bulk, in tank vehicles), from points in Dakota County, Nebr., and Sioux City, Iowa, to points in Arkansas, Louisiana, New Mexico, Oklahoma, and Texas.

NOTE: The purpose of this republication is to add Sioux City, Iowa, as an origin point. If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., or Des Moines, Iowa.

No. MC 110193 (Sub-No. 95), filed May 19, 1965. Applicant: SAFEWAY TRUCK LINES, INC., 20450 Ireland Road, South Bend, Ind. Applicant's representative: Walter J. Kobos (address same as applicant's). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, from Coloma and Eau Claire, Mich., to points in Iowa, Kansas, Minnesota, Missouri, Nebraska, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at South Bend, Ind., or Chicago, Ill.

No. MC 110193 (Sub-No. 96), filed May 19, 1965. Applicant: SAFEWAY TRUCK LINES, INC., 20450 Ireland Road, South Bend, Ind. Applicant's representative: Walter J. Kobos (address same as applicant's). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses*, as described in Appendix I, to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk in tank vehicles), from Minden, Nebr., and points within five (5) miles thereof to points in Maine, New Hampshire, Vermont, Massachusetts, Connecticut, Rhode Island, New York, New Jersey, Pennsylvania, Delaware, Maryland, Ohio, and the District of Columbia.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Denver, Colo. or Omaha, Nebr.

No. MC 110420 (Sub-No. 452), filed May 21, 1965. Applicant: QUALITY CARRIERS, INC., 100 South Calumet Street, Burlington, Wis. Applicant's representative: Fred H. Figge, Post Office Box 339, Burlington, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tallow*, in bulk, in tank vehicles, from Cedar Rapids, Iowa, to Boscobel, Wis.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Madison, Wis.

No. MC 111545 (Sub-No. 78), filed May 18, 1965. Applicant: HOME TRANSPORTATION COMPANY, INC., 1425 Franklin Road, SE., Post Office Box 6426, Station A, Marietta, Ga. Applicant's attorney: Paul M. Daniell, Suite 1600, First Federal Building, Atlanta, Ga., 30303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Air compressors*, (2) *parts and accessories* for commodities named in paragraph (1) above when moving in mixed shipments, from Atlanta, Ga., to points in Alabama, North Carolina, South Carolina, and Tennessee.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 111812 (Sub-No. 287), filed May 19, 1965. Applicant: MIDWEST COAST TRANSPORT, INC., Wilson Terminal Building, Post Office Box 747, Sioux Falls, S. Dak., 57101. Applicant's attorney: Donald L. Stern, 630 City National Bank Building, Omaha, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Des Moines, Fort Dodge, and Webster City, Iowa, to points in Minnesota, North Dakota, and South Dakota.

NOTE: Applicant states no duplication of authority is sought. If a hearing is deemed necessary, aplicant requests it be held at Des Moines, Iowa.

No. MC 112435 (Sub-No. 5) (AMENDMENT), filed March 19, 1965, published in FEDERAL REGISTER issue of April 14, 1965, amended May 27, 1965, and republished as amended this issue. Applicant: D. M. SMOCK, L. D. SMOCK, AND E. G. SMOCK, a partnership, doing business as D. & L. E. TRANSIT CO., 1502 Augusta Street, Zanesville, Ohio. Applicant's attorney: John P. McMahon, 44 East Broad Street, Columbus 15, Ohio. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (a) *ferro alloys*, from Philo, Ohio, to points in Kentucky, (b) *ferro alloys*, in containers, from Philo, Ohio, to points in New Jersey, and Baltimore and Sparrows Point, Md., and (c) *equipment, materials, and supplies* used in the manufacture, process, packaging, and sale of ferro alloys, from points in Kentucky, Pennsylvania, West Virginia, Illinois, Indiana, Michigan, New York, Baltimore, Md., and St. Louis, Mo., to Philo, Ohio.

NOTE: The purpose of this republication is to add additional commodities and territorial authority. If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 112801 (Sub-No. 26), filed May 17, 1965. Applicant: TRANSPORT SERVICE CO., a corporation, 5100 West 41st Street, Chicago, Ill. Applicant's attorney: Robert H. Levy, 105 West Adams Street, Chicago, Ill., 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer, fertilizer materials, and fertilizer ingredients*, from Carmel, Ind. and points within five (5) miles thereof, to points in Illinois, Indiana, Iowa, Kentucky, Michigan, Minnesota, Missouri, Ohio, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 113678 (Sub-No. 143), filed May 18, 1965. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo., 80216. Applicant's attorney: Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, dairy products, and articles distributed by meat packinghouses* as described in sections A, B, and C of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from points in Iowa, to points in Alabama, Florida, Georgia, Kentucky, Louisiana, Mississippi, North Carolina, South Carolina, and Tennessee.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 113678 (Sub-No. 144), filed May 24, 1965. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo., 80216. Applicant's attorney:

Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses* as described in sections A and C of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from Lexington, Nebr., and points within five (5) miles thereof, to points in Florida, Georgia, Alabama, North Carolina, and South Carolina.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 113678 (Sub-No. 145), filed May 24, 1965. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo., 80216. Applicant's attorney: Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses* as described in sections A and C of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from Minden, Nebr., and points within five (5) miles thereof, to points in Florida, Georgia, Alabama, North Carolina, and South Carolina.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 114457 (Sub-No. 33), filed May 20, 1965. Applicant: DART TRANSIT COMPANY, a corporation, 780 North Prior Avenue, St. Paul, Minn. Applicant's attorney: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Glassware, bottles, and containers*, (2) *caps, covers, ends, and tops for bottles and containers*, and (3) *empty boxes and cartons*, from points in Lake and Will Counties, Ill., to points in Minnesota, Wisconsin, the Upper Peninsula of Michigan, Iowa, Missouri, Kansas, Nebraska, North Dakota, and South Dakota.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 114457 (Sub-No. 34), filed May 20, 1965. Applicant: DART TRANSIT COMPANY, a corporation, 780 North Prior Avenue, St. Paul, Minn. Applicant's attorney: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses*, as described in sections A and C, Appendix I, in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from points in Dakota County, Nebr., and Sioux City, Iowa, to points in Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Nebraska, North Dakota, South Dakota, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 115257 (Sub-No. 13), filed September 16, 1964. Applicant: SHAMROCK VAN LINES, INC., Post Office Box 5447, Dallas, Tex. Applicant's attorney: Max G. Morgan, 443–54 American National Building, Oklahoma City 2, Okla. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission, (1) between points in Hawaii, and (2) between points in Hawaii and points in the continental United States, including Alaska.

NOTE: If a hearing is deemed necessary, applicant has no preference to place of hearing.

No. MC 115841 (Sub-No. 239), filed May 19, 1965. Applicant: COLONIAL REFRIGERATED TRANSPORTATION, INC., 1215 Bankhead Highway West, Post Office Box 2169, Birmingham, Ala. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs* (except in bulk or tank vehicles), in vehicles equipped with mechanical refrigeration, from Knoxville, Tenn., to points in North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Louisiana, and Arkansas.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Knoxville, Tenn.

No. MC 117416 (Sub-No. 16), filed May 17, 1965. Applicant: NEWMAN AND PEMBERTON CORPORATION, 2007 University Avenue NW., Knoxville, Tenn. Applicant's attorney: William P. Sullivan, 1825 Jefferson Place NW., Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay, minerals, and earth concentrates*, ground or pulverized, in containers, from points in Bartow, Bibb, Twiggs, Wilkinson, and Washington Counties, Ga., and points in Aiken County, S.C., to points in Illinois, Indiana, Kentucky, Michigan, Ohio, Tennessee, and West Virginia, and St. Louis, Mo.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 117765 (Sub-No. 22), filed May 17, 1965. Applicant: HAHN TRUCK LINE, INC., 5800 North Eastern, Oklahoma City, Okla. Applicant's attorney: Rufus H. Lawson, 106 Bixler Building, 2400 Northwest 23d Street, Oklahoma City 7, Okla. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry fertilizer, fertilizer compounds, fertilizer ingredients, and urea*, from Tulsa and Pryor, Okla., to points in Alabama, Arkansas, Delaware, Florida, Georgia, Indiana, Kentucky, Maryland, Michigan, Mississippi, New Jersey, New York, North Carolina, Ohio, Pennsylvania, South Carolina, Tennessee, Virginia, and West Virginia, and *exempt commodities*, on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Oklahoma City, Okla.

No. MC 118159 (Sub-No. 23), filed May 21, 1965. Applicant: EVERETT LOWRANCE, 4916 Jefferson Highway, Post Office Box 10216, New Orleans, La. Applicant's attorney: Harold R. Ainsworth, 2307 American Bank Building, New Orleans, La. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bananas*, from Freeport, Tex., to points in Arkansas, Colorado, Iowa, Kansas, Louisiana, Minnesota, Missouri, Nebraska, New Mexico, North Dakota, Oklahoma, South Dakota, and Texas.

NOTE: If a hearing is deemed necessary, applicant requests it be held at New Orleans, La.

No. MC 118457 (Sub-No. 5), filed May 18, 1965. Applicant: ROBBINS DISTRIBUTING COMPANY, INC., 300 Dodge Street, Racine, Wis., 53402. Applicant's attorney: William C. Dineen, 412 Empire Building, 710 North Plankinton Avenue, Milwaukee, Wis., 53203. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen pizza*, from Chicago Heights, Ill., to Milwaukee, Wis., and the plantsite of the Godfrey Co., located at or near Waukesha, Wis.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 119164 (Sub-No. 19), filed May 18, 1965. Applicant: J–E–M TRANSPORTATION CO., INC., 509 Liberty Street, Syracuse, N.Y., 13204. Applicant's representative: Charles H. Trayford, 220 East 42d Street, New York 17, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bulk commodities*, in tank- or hopper-type vehicles, between Cleveland and Columbus, Ohio, on the one hand, and, on the other, points in Ohio, restricted to shipments having a prior or subsequent movement by rail and moving in interstate or foreign commerce.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 119226 (Sub-No. 52), filed May 21, 1965. Applicant: LIQUID TRANSPORT CORP., 3901 Madison Avenue, Indianapolis 27, Ind. Applicant's attorney: Robert W. Loser, 409 Chamber of Commerce Building, Indianapolis, Ind., 46204. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Syrups, sweeteners, and blends*, in bulk, in tank vehicles, from Edinburg, Ind., to points in Indiana, Michigan, Ohio, Illinois, Pennsylvania, Kentucky, West Virginia, Wisconsin, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, Maine, Vermont, and New Hampshire.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Indianapolis, Ind.

No. MC 119522 (Sub-No. 7), filed May 20, 1965. Applicant: McLAIN TRUCKING, INC., 1242 North Jefferson, Muncie, Ind. Applicant's attorney: Donald W.

Smith, Suite 511, Fidelity Building, Indianapolis, Ind., 46204. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Glass containers*, from Marion, Ind., to Lawrenceburg, Nicholasville, Frankfort, Bardstown, Gethsemane, Lexington, Loretta, and Lebanon, Ky., and *wooden pallets*, on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Indianapolis, Ind.

No. MC 119532 (Sub-No. 3), filed May 17, 1965. Applicant: IRA FARRELL AND LAUREL E. FARRELL, a partnership, doing business as IRA FARRELL & SON, 12 Starrett Street, Houlton, Maine. Applicant's attorney: Kenneth B. Williams, 111 State Street, Boston, Mass., 02109. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Bananas*, from Port Newark, N.J., to ports of entry on the international boundary line between the United States and Canada at or near Calais, Houlton, and Vanceboro, Maine.

NOTE: Applicant states the above operation will be restricted to shipments moving to points in Canada. If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 119641 (Sub-No. 55), filed May 24, 1965. Applicant: RINGLE EXPRESS, INC., 405 South Grant Avenue, Fowler, Ind. Applicant's attorney: Robert C. Smith, 512 Illinois Building, Indianapolis 4, Ind. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Tractors* (not including tractors with vehicle beds, bed frames or fifth wheels, or those which because of size or weight, require the use of special equipment), and *attachments and parts therefor* when transported in the same vehicle at the same time, from New Orleans, La., to Springfield and Kansas City, Mo., and *damaged and rejected shipments*, on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 119767 (Sub-No. 81), filed May 19, 1965. Applicant: BEAVER TRANSPORT CO., a corporation, 100 South Calumet Street, Burlington, Wis. Applicant's representative: Fred H. Figge, Post Office Box 339, Burlington, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Marshall, Macon, Milan, Carrollton, and Moberly, Mo., to points in Christian, Coles, Macon, and Sangamon Counties, Ill.

NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Chicago, Ill.

No. MC 119767 (Sub.-No. 82), filed May 21, 1965. Applicant: BEAVER TRANSPORT CO., a corporation, 100 South Calumet Street, Burlington, Wis. Applicant's representative: Fred H. Figge, Post Office Box 339, Burlington, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Such food items as are dealt in by retail, gift, and specialty stores*, from Burlington, Wis., to points in Kentucky.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 119777 (Sub-No. 37), filed May 19, 1965. Applicant: LIGON SPECIALIZED HAULER, INC., Post Office Box 31, Madisonville, Ky. Applicant's attorney: Robert M. Pearce, 221 Saint Clair Street, Frankfort, Ky. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pulpboard and fiberboard*, and *accessories and supplies* used in the installation thereof, from Meridian, Miss., to points in Arkansas, Delaware, Florida, Illinois, Indiana, Kentucky, Michigan, Missouri, New Jersey, New York, Ohio, Pennsylvania, Tennessee, Virginia, West Virginia, and Wisconsin, and *rejected shipments* on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 123639 (Sub-No. 27) (AMENDMENT), filed March 1, 1965, published in the FEDERAL REGISTER, March 25, 1965, and amended March 26, 1965, and republished as amended April 8, 1965, and further amended May 27, 1965, and republished as further amended this issue. Applicant: J. B. MONTGOMERY, INC., 5150 Brighton Boulevard, Denver, Colo. Applicant's attorney: Charles W. Singer, 33 North La Salle Street, Chicago, Ill., 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products*, and *meat byproducts, dairy products*, and *articles distributed by meat packinghouses*, and *such commodities as are used by meatpackers in the conduct of their business* when destined to and for use by meatpackers, as described in sections A, B, C, and D of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from points in Dakota County, Nebr., and Sioux City, Iowa, to points in Arizona, Colorado, Illinois, California, Michigan, Ohio, Indiana, Iowa, and Kansas.

NOTE: The purpose of this republication is to add Sioux City, Iowa, as an origin point. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 124078 (Sub-No. 140), filed May 21, 1965. Applicant: SCHWERMAN TRUCKING CO., a corporation, 611 South 28 Street, Milwaukee, Wis. Applicant's attorney: James R. Ziperski (same as applicant). Authority sought to operate as a *common carrier* by motor vehicle, over irregular routes, transporting: *Anhydrous ammonia and liquid fertilizer solutions*, in bulk, from the plantsite of Consumers Cooperative Association near Fort Dodge, Iowa, to points in Kansas, Minnesota, Missouri, Nebraska, North Dakota, South Dakota, Illinois, and Wisconsin.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 124123 (Sub-No. 27), filed May 21, 1965. Applicant: SCHWERMAN TRUCKING CO. OF ILL., INC., 611 South 28th Street, Milwaukee, Wis. Applicant's attorney: James R. Ziperski, 611 South 28th Street, Milwaukee, Wis. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Aluminum dross, aluminum dross residue, and aluminum oxide, and aluminum slag*, in bulk, in tank vehicles, from Chicago and Aurora, Ill., to points in Indiana, Kentucky, Tennessee, Ohio, Wisconsin, Iowa, Missouri, and Pennsylvania.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 124211 (Sub-No. 35), filed May 21, 1965. Applicant: HILT TRUCK LINE, INC., 1813 Yolande, Post Office Box 824, Lincoln, Nebr. Applicant's attorney: RICHARD A. PETERSON, Post Office Box 2028, Lincoln, Nebr., 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Iron and steel articles* as defined by the Commission in Appendix V, 61 M.C.C. 209 and 276 and *damaged and rejected shipments thereof*, between Sterling and Rock Falls, Ill., on the one hand, and, on the other, points in Iowa, Kansas, Minnesota, Missouri, and Colorado.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Davenport, Iowa, or Chicago, Ill.

No. MC 125626 (Sub-No. 1), filed May 19, 1965. Applicant: WILLIAMS TRUCKING, INC., Box 363, Lisbon, Ohio. Applicant's attorney: Earl N. Merwin, 85 East Gay Street, Columbus 15, Ohio. Authority sought to operate as a *contract carrier*, by motor vehicle over irregular routes, transporting: *Building materials* (except clay and refractory products), between Alliance, Ohio, on the one hand, and, on the other, points in Pennsylvania, and points in Hancock, Brooke, Ohio, and Marshall Counties, W. Va.

NOTE: Applicant states the proposed operation will be under continuing contracts with Wood Conversion Co., and Alliance Millwork, Inc., both of Alliance, Ohio. If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 125799 (Sub-No. 1) (AMENDMENT), filed May 17, 1965, published in FEDERAL REGISTER issue of June 3, 1965, and republished as amended this issue. Applicant: BLAIRSVILLE TRANSPORT, INC., Rural Delivery No. 3, Blairsville, Pa. Applicant's attorney: John A. Vuono, 1515 Park Building, Pittsburgh, Pa., 15222. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Refractory products* and *refractory materials*, (1) from points in Killbuck Township, Holmes County, Ohio, to points in Maryland, Michigan, New York, and Pennsylvania, and (2) from Glenmont, Ohio, to points in Maryland.

NOTE: Applicant states that the proposed operation will be restricted to a service to be performed under a continuing contract or contracts, with Bognar & Company, Inc., Nicholl-McBride Stone Co., Quartzite, Inc., Union Metals & Minerals, Inc., and Union Mining Co. of Allegany County, Inc. All of these companies are under common control and management. The purpose of this republication is to show proposed service under

contract or contracts with several related shippers. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 125813 (Sub-No. 3), filed May 18, 1965. Applicant: FRANK A. CRESSLER, doing business as CRESSLER'S TRUCKING, Rural Delivery No. 3, Shippensburg, Pa. Applicant's attorney: James W. Hagar, Commerce Building, Post Office Box 432, Harrisburg, Pa., 17108. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Sand*, in bulk, in dump vehicles, from points in Cumberland County, N.J., to points in Cumberland and Franklin Counties, Pa.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 126552 (Sub-No. 1), filed May 25, 1965. Applicant: W. N. BATEY, doing business as BATEY MOVING & STORAGE COMPANY, 328 Fourth Avenue, South, Nashville, Tenn. Applicant's attorney: Harold Seligman, Life and Casualty Tower, Nashville, Tenn., 37219. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Containerized household goods*, between points in Davidson County, Tenn., on the one hand, and, on the other, points in Davidson, Robertson, Cheatham, Montgomery, Stewart, Houston, Humphreys, Williamson, Hickman, Maury, Marshall, Giles, Lawrence, Madison, Dickson, Lewis, Wayne, Hardin, Decatur, Perry, Benton, Henry, Weakley, Carroll, Henderson, Chester, McNairy, Sumner, Macon, Trousdale, Smith, Wilson, Rutherford, Cannon, Bedford, Lincoln, Franklin, Coffee, Warren, De Kalb, Jackson, White, Putnam, Overton, Fentress, Cumberland, Morgan, Roane, Rhea, Van Buren, Bledsoe, McMinn, Bradley, Gibson, Hamilton, Sequatchie, Marion, Pickett, Clay, and Grundy Counties, Tenn.; and points in Graves, Calloway, Marshall, Lyon, Caldwell, Trigg, Christian, Hopkins, McLean, Daviess, Ohio, Muhlenberg, Warren, Logan, Simpson, Allen, Barren, Monroe, Clinton, Cumberland, Metcalfe, Adair, Green, Butler, Edmonson, Todd, Hart, Larue, Taylor, Breckenridge, Grayson, Crittenden, Livingston, Webster, Union, Hancock, and Russell Counties, Ky., and points in Lauderdale, Colbert, Lawrence, Limestone, Morgan, Madison, Jackson, Marshall, and De Kalb Counties, Ala.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Nashville, Tenn.

No. MC 126973 (Sub-No. 2), filed May 21, 1965. Applicant: CLEMENT BRESINA, Route 1, Chippewa Falls, Wis. Applicant's representative: A. R. Fowler, 2288 University Avenue, St. Paul 14, Minn., Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Bones, hides, and meat scraps*, from points in Minnesota, to the plantsite of Chippewa Falls Rendering Co. located at or near Chippewa Falls, Wis., and (2) *rendering plant products*, from the plantsite of Chippewa Falls Rendering Co., located at or near Chippewa Falls, Wis., to points in Minnesota and Illinois.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 127037 (Sub-No. 1), filed May 19, 1965. Applicant: RONALD L. CHAPIN, Post Office Box 85, Ellenville, N.Y. Applicant's attorney: John J. Brady, Jr., 75 State Street, Albany 7, N.Y. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Wooden broom handles, mop handles, and rake handles*, uncrated and unwrapped, from Ellenville, N.Y., to points in Massachusetts, Connecticut, Rhode Island, Pennsylvania, Illinois, Michigan, Indiana, Ohio, Wisconsin, West Virginia, and Maryland.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Albany, N.Y.

No. MC 127042 (Sub-No. 1) (AMENDMENT), filed March 8, 1965, published FEDERAL REGISTER issue March 25, 1965, amended May 19, 1965, and republished as amended this issue. Applicant: HAGEN, INC., 4420 Floyd Street, Sioux City, Iowa. Applicant's attorney: J. Max Harding, Box 2028, Lincoln, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products and meat byproducts, dairy products, and articles distributed by meat packinghouses*, as described in sections A, B, and C of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities in bulk, in tank vehicles), from points in Dakota County, Nebr., and Sioux City, Iowa, to points in Illinois, Iowa, Kansas, Minnesota, Missouri, Montana, Nebraska, North Dakota, Oklahoma, South Dakota, Wyoming, and Wisconsin, and *damaged and rejected shipments* of the commodities specified above, on return.

NOTE: The purpose of this republication is to include an additional origin point not previously published. Common control may be involved. If a hearing is deemed necessary, applicant does not specify place of hearing.

No. MC 127072 (Sub-No. 2), filed May 17, 1965. Applicant: BROWNSVILLE PARTICLE BOARD, INC., Route 1, Brownsville, Oreg. Applicant's attorney: Earl V. White, Fifth Avenue Building, 2130 Southwest Fifth Avenue, Portland 1, Oreg. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (A) *Almond shell pellets*, from points in Sacramento and Sutter Counties, Calif.; (B) *safflower pellets*, from points in Contra Costa County, Calif.; (C) *cottonseed meal and cottonseed pellets*, from points in Fresno and Kern Counties, Calif.; and (D) *alfalfa meal and alfalfa pellets*, from points in Fresno, Kern, Tulare, Kings, Amador, and Sacramento Counties, Calif., and from points in Ada and Cassia Counties, Idaho, to points in Lane, Linn, Benton, Lincoln, Polk, Marion, Clark, Yamhill, Tillamook, Multnomah, Washington, Columbia, and Clatsop Counties, Oreg., and to points in Kittitas, Yakima, and Clark Counties, Wash.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Portland, Oreg.

No. MC 127080 (AMENDMENT), filed March 17, 1965, published FEDERAL REGISTER issue April 8, 1965, amended May 24, 1965, and republished as amended this issue. Applicant: SPRINGDALE FARMS PRODUCE COMPANY, INC., 71 North and Backus, Post Office Box 152, Springdale, Ark. Applicant's attorney: A. Alvis Layne, Pennsylvania Building, Washington, D.C. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Frozen foods*, only when moving in mixed loads with frozen or ice-packed poultry, from the plantsites and storage facilities of Springdale Farms Service Co., Inc., within the city limits of Springdale, Ark., to points in Colorado, Idaho, Illinois, Iowa, Kansas, Minnesota, Missouri, Montana, Nebraska, North Dakota, Oklahoma, Oregon, South Dakota, Utah, Washington, Wisconsin, and Wyoming, and (2) *frozen meat*, from Kansas City, Kans., to the plantsites and storage facilities of Springdale Farms Service Co., Inc., within the city limits of Springdale, Ark.

NOTE: Applicant states the proposed service to be restricted to service performed under continuing contract for Springdale Farms Service Co., Inc., of Springdale, Ark. The purpose of this republication is to show a change in name of the applicant and a redescription of the authority sought. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 127197 (Sub-No. 3), filed May 19, 1965. Applicant: JAMES E. WILSON, Rural Delivery 2, Coudersport, Pa. Applicant's representative: Raymond A. Richards, 35 Curtice Park, Webster, N.Y., 14580. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer*, in bags and in bulk, from Batavia and Big Flats, N.Y., to points in Potter County, Pa.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Rochester, N.Y.

No. MC 127222, filed April 26, 1965. Applicant: MICHELS PIPE LINE CONSTRUCTION, INC., 3247 West Hampton Avenue, Milwaukee, Wis., 53209. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Steel door frames, steel doors, steel windows, steel panels and steel sheets*, for Precision Metals, Inc. of Campbellsport, Wis., from Campbellsport, Wis., to points in Wisconsin, Illinois, Iowa, Minnesota, Michigan, and Indiana; (2) *returned shipments* of the above described commodities for alterations or repair, from the above described destination States to Campbellsport, Wis., and (3) *sheet steel*, from points in Indiana, to Campbellsport, Wis.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Milwaukee, Wis.

No. MC 127253 (Sub-No. 5), filed May 10, 1965. Applicant: GRACE LEE CORBETT, doing business as R. A. CORBETT TRANSPORT, Post Office Box 86, Lufkin, Tex. Applicant's attorney: Ewell H. Muse, Jr., Suite 415, Perry-Brooks Building, Austin, Tex., 78701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry sulphur*, in bulk, from points in Titus County, Tex., to Houston, Galveston, Corpus Christi, Beaumont, Port Arthur, Texas City, Freeport, and Brownsville, Tex., for subsequent movement by water.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Shreveport, La., or Dallas, Tex.

No. MC 127272, filed May 18, 1965. Applicant: NANTASKET, ALLERTON & HULL EXPRESS CO., INC., doing business as DALEY & WANZER, 821 Nantasket Avenue, Hull, Mass. Applicant's attorney: Robert J. Gallagher, 111 State Street, Boston, Mass., 02109. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Damaged retail department store merchandise*, between Quincy, Mass., on the one hand, and, on the other, points in Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Delaware, Maryland, Virginia, Pennsylvania, Ohio, and the District of Columbia.

NOTE: Applicant states that the above-proposed operation will be performed under a continuing contract with Bargain Center, Inc., Quincy, Mass. Applicant is also authorized to conduct operations as a common carrier in Certificate No. MC 78842, therefore dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 127280, filed May 19, 1965. Applicant: OWASCO VALLEY TRUCKING COMPANY, INC., Moravia, N.Y. Applicant's attorney: Wilmer B. Hill, Transportation Building, Washington, D.C., 20006. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Sugar*, dry, in bulk, from Montezuma, Cayuga County, N.Y., to points in Connecticut, Delaware, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, West Virginia, and the District of Columbia.

NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 127284, filed May 17, 1965. Applicant: DOMINION FREIGHTWAYS CO. LIMITED, 425 University Avenue, Toronto, Ontario, Canada. Applicant's attorney: Rex Eames, 1800 Buhl Building, Detroit 26, Mich. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Automobiles, trucks, and buses*, as defined by the Commission in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, *including parts and accessories thereof* moving at the same time and with the vehicle of which they are a part and on which they are to be installed, in truckaway and driveaway methods, in initial and secondary movements, (1) between the ports of entry on the international boundary line between the United States and Canada located on the Detroit River and St. Clair River, on the one hand, and, on the other, Detroit, Port Huron, and points in St. Clair County, Mich.; (2) between the ports of entry on the international boundary line between the United States and Canada located on the Niagara River, on the one hand, and, on the other, points in Niagara and Erie Counties, N.Y., and (3) between the ports of entry on the international boundary line between the United States and Canada located on the St. Lawrence River, on the one hand, and, on the other, points in Jefferson and St. Lawrence Counties, N.Y.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich., or Buffalo, N.Y.

No. MC 127285, filed May 20, 1965. Applicant: JIMMY GIBREAL, doing business as GIBREAL TRUCKING, 3000 Farnam Street, Omaha, Nebr. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Refrigerated hanging beef carcasses*, from Omaha, Nebr., to New York, N.Y., and *exempt commodities*, on return.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 127288, filed May 24, 1965. Applicant: PRUSSIA TRUCKING COMPANY, a corporation, Queens Drive, King of Prussia Industrial Center, Upper Merion Township, Montgomery County, Pa. Applicant's attorney: Raymond A. Thistle, Jr., Suite 1408–09, 1500 Walnut Street, Philadelphia, Pa. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *New household furniture and new household furnishings*, from points in Upper Merion Township, Montgomery County, Pa., to points in Delaware, Maryland, New Jersey, and Pennsylvania.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

MOTOR CARRIERS OF PASSENGERS

No. MC 123432 (Sub-No. 6), filed May 20, 1965. Applicant: WISCONSIN COACH LINES, INC., 901 Niagara Street, Waukesha, Wis. Applicant's attorney: David Axelrod, 39 South La Salle Street, Chicago 3, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage, and express, mail, and newspapers*, in the same vehicle with passengers, between Milwaukee, Wis., and Rockford, Ill.: (1) From Milwaukee over Wisconsin Highway 36 to junction U.S. Highway 12, thence over U.S. Highway 12 to junction Wisconsin Highway 15, thence over Wisconsin Highway 15 to junction Illinois Highway 2, thence over Illinois Highway 2 to junction Hononegah Road, thence over Hononegah Road to junction U.S. Highway 51, thence over U.S. Highway 51 to Rockford, and return over the same route, serving all intermediate points; and (2) from Milwaukee over Wisconsin Highway 24 to junction Wisconsin Highway 83, thence over Wisconsin Highway 83 to junction Wisconsin Highway 15, thence over Wisconsin Highway 15 to junction U.S. Highway 12, thence over U.S. Highway 12 to junction Wisconsin Highway 15, thence over Wisconsin Highway 15 to U.S. Highway 51, thence over U.S. Highway 51 to Rockford, and return over the same route, serving all intermediate points.

NOTE: If a hearing is deemed necessary, applicant requests it be held at Milwaukee, Wis.

No. MC 127286, filed May 18, 1965. Applicant: EBERHARDT'S TRANSPORTATION INC., Smithtown Boulevard and Rosevale Avenue, Lake Ronkonkoma, N.Y. Applicant's attorney: Alan Brand, 344 Portion Road, Lake Ronkonkoma, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage* in the same vehicle, in charter operations, beginning and ending at points in the Township of Brookhaven, N.Y., and extending to points in New Jersey and Connecticut.

NOTE: If a hearing is deemed necessary, applicant requests it be held at New York City, N.Y.

APPLICATION FOR BROKERAGE LICENSE

MOTOR CARRIER OF PASSENGERS

No. MC 12955, filed May 19, 1965. Applicant: PAUL C. BISSETT, doing business as PAUL C. BISSETT TRAVEL AGENCY, 11 Pearl Street, Stoughton, Mass. For a license (BMC 5) to engage in operations as a *broker* at Stoughton, Mass., in arranging for the transportation in interstate or foreign commerce of *passengers and their baggage*, in charter operations, between points in the United States.

APPLICATION FOR WATER CARRIERS

No. W–552 (Sub-No. 13) (AMENDMENT) (AMERICAN COMMERCIAL LINES, INC. EXTENSION—ARKANSAS RIVER), filed May 13, 1965, published FEDERAL REGISTER issue May 26, 1965, and republished as amended this issue. Applicant: AMERICAN COMMERCIAL LINES, INC., 1030 East Market Street, Jeffersonville, Ind. Application of American Commercial Lines, Inc., filed May 13, 1965, as amended, for a revised certificate authorizing extension of its operations to include operations as a common carrier by water in interstate or foreign commerce, by non-self-propelled vessels with the use of separate towing vessels in the transportation of general commodities, and by towing vessels in the performance of general towage, (a) between ports and points on the Arkansas and Verdigris Rivers, from Catoosa, Okla., to the confluence of the Arkansas River with the Mississippi River, including the Arkansas Post Canal, and (b) between ports and points specified in (a) above, on the one hand, and, on the other, ports and points on the following rivers, including the ports named: Allegheny River below East Brady, Pa.; Cumberland River below Old Hickory, Tenn.; Green River; Illi-

nois Waterway; Kanawha River below Gauley Bridge, W. Va.; Minnesota River below Shakopee, Minn.; Mississippi River, below Minneapolis, Minn.; Monongahela River below Fairmont, W. Va.; Ohio River; St. Croix River below Stillwater, Minn.; Tennessee River and White River, below Newport, Ark.

NOTE: The purpose of this republication is to add Mississippi River to part (b) above. Applicant states the proposed operations will be seasonal between March 1 and December 15 inclusive.

APPLICATIONS IN WHICH HANDLING WITHOUT ORAL HEARING HAS BEEN REQUESTED

MOTOR CARRIERS OF PROPERTY

No. MC 2542 (Sub-No. 9), filed March 1, 1965. Applicant: THE ADLEY CORPORATION, doing business as ADLEY EXPRESS COMPANY, 216 Crown Street, New Haven, Conn. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, and commodities requiring special equipment), between Suffolk, Va., and junction U.S. Highways 13 and 40 at or near New Castle, Del.: From Suffolk over U.S. Highway 460 to Norfolk, Va., thence over U.S. Highway 13 to the Chesapeake Bay Bridge-Tunnel, thence across the Chesapeake Bay Bridge-Tunnel to junction U.S. Highway 13, thence over U.S. Highway 13 to junction U.S. Highway 40 at or near New Castle, Del., and return over the same route, serving all intermediate and off-route points within 35 miles of Suffolk, Va.

NOTE: The above-proposed operation will be used in conjunction with applicant's authorized regular-route operations to and from Philadelphia, Pa., and New York, N.Y. This application is filed pursuant to MC-C-4366, effective May 1, 1964, which provides the special rules for conversion of irregular-route to regular-route motor carrier operations.

SPECIAL NOTE: Protests to this application may be filed within 45 days instead of 30 days.

No. MC 55848 (Sub-No. 34), filed February 26, 1965. Applicant: HUCKABEE TRANSPORT CORP., U.S. Highway I-26, West Columbia, S.C. (mailing address), Post Office Box 479, Columbia, S.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: (A) *General commodities* (except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, livestock, and those requiring special equipment), (1) between Greenville, S.C., and Atlanta, Ga.; from Greenville over U.S. Highway 123 to Cornelia, Ga., thence over U.S. Highway 23 to Atlanta, and return over the same route, serving all intermediate points, and points in Georgia as off-route points; (2) between Kings Mountain, N.C., and Atlanta, Ga.; from Kings Mountain over U.S. Highway 29 to Athens, Ga., thence over U.S. Highway 78 to Atlanta, and return over the same route, serving all intermediate points in Georgia and South Carolina, and points in Georgia as off-route points, (3) between Rock Hill, S.C., and Atlanta, Ga.; from Rock Hill over South Carolina Highway 72 to the Georgia-South Carolina State line, thence over Georgia Highway 72 to junction U.S. Highway 29, thence over U.S. Highway 29 to junction U.S. Highway 78, thence over U.S. Highway 78 to junction Georgia Highway 138, thence over Georgia Highway 138 to junction U.S. Highway 278, and thence over U.S. Highway 278 to Atlanta, and return over the same route, serving all intermediate points and points in Georgia, as off-route points, (4) between Sumter, S.C., and Atlanta, Ga.; from Sumter over U.S. Highway 378 to Washington, Ga., thence over Georgia Highway 44 to junction of Georgia Highway 77.

Thence over Georgia Highway 77 to junction of U.S. Highway 278, thence over U.S. Highway 278 to Atlanta, Ga., and return over the same route serving all intermediate points, and points in Georgia, as off-route points, (5) between Charlotte, N.C., and Newberry, S.C.; from Charlotte over North Carolina Highway 49 to the North Carolina-South Carolina State line, thence over South Carolina Highway 49 to Union, S.C., thence over South Carolina Highway 19 to Newberry, and return over the same route, serving all intermediate points, and points in South Carolina, as off-route points, except points east of a line extending from the North Carolina-South Carolina State line along U.S. Highway 521 to Camden, thence along U.S. Highway 1 to Columbia, thence along U.S. Highway 321 to Ulmers, thence along U.S. Highway 301 to the Georgia-South Carolina State line, (6) between Newberry, S.C., and Augusta, Ga.; from Newberry over South Carolina Highway 19 to junction of U.S. Highway 25, thence over U.S. Highway 25 to Augusta, and return over the same route, serving all intermediate points, and points in Georgia, as off-route points, (7) between Augusta, Ga., and Greenville, S.C.; from Augusta over U.S. Highway 25 to Greenville, and return over the same route, serving all intermediate points, and points in South Carolina as off-route points, (8) between Augusta, Ga., and Charleston, S.C.; from Augusta over Georgia Highway 28 to the Georgia-South Carolina State line, thence over South Carolina Highway 28 to Barnwell, thence over South Carolina Highway 64 to junction of U.S. Highway 17, thence over U.S. Highway 17 to Charleston, and return over the same route, serving all intermediate points, and points in South Carolina as off-route points, (9) between Savannah, Ga., and North Augusta, S.C.; from Savannah over U.S. Highway 17 to junction of U.S. Highway 321, thence over U.S. Highway 321 to junction of South Carolina Highway 28, thence over South Carolina Highway 28 to North Augusta, and return over the same route, serving all intermediate points, and points in South Carolina as off-route points, (10) between Augusta and Savannah, Ga., from Augusta over U.S. Highway 25 to junction of U.S. Highway 80.

Thence over U.S. Highway 80 to Savannah, and return over the same route, serving all intermediate points, (11) between Savannah, Ga., and Charleston, S.C.; from Savannah over U.S. Highway 17 to Charleston and return over the same route, serving all intermediate points, and points in South Carolina, as off-route points, (12) between Darlington, S.C., and Savannah, Ga.; from Darlington over U.S. Highway 401 to junction of U.S. Highway 15, thence over U.S. Highway 15 to junction U.S. Highway 17A, thence over U.S. Highway 17A to junction U.S. Highway 17, thence over U.S. Highway 17 to Savannah, and return over the same route, serving all intermediate points, and points in Georgia as off-route points, and (13) between Savannah, Ga., and Rock Hill, S.C.; from Savannah over U.S. Highway 17 to Hardeeville, S.C., thence over U.S. Highway 321 to Columbia, S.C., thence over U.S. Highway 21 to Rock Hill, and return over the same route, serving all intermediate points, and points in South Carolina as off-route points. Operations may be performed over any combination of routes as specified above, regardless of whether or not they join at a common point of service. Any repetition in the statement of the authority granted herein shall not be construed as conferring more than one operating right; (B) *general commodities* (except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, livestock, and those requiring special equipment), (1) between Columbia and Darlington, S.C.; from Columbia over South Carolina Highway 12 to junction of U.S. Highway 601, thence over U.S. Highway 601 to junction of U.S. Highway 1, thence over U.S. Highway 1 to junction of South Carolina Highway 34.

Thence over South Carolina Highway 34 to Darlington, and return over the same route, (2) between Columbia and Spartanburg, S.C.; from Columbia over U.S. Highway 176 to Spartanburg, and return over the same route, (3) between Aiken and Columbia, S.C.; from Aiken over South Carolina Highway 215 to Columbia, and return over the same route, and (4) between North Augusta and Charleston, S.C.; from North Augusta over U.S. Highway 1 to Aiken, S.C., thence over U.S. Highway 78 to junction of U.S. Highway 52, thence over U.S. Highway 52 to Charleston, and return over the same route, serving all intermediate points on the above-described routes, in (1), (2), (3), and (4) above, and those within 10 miles of Spartanburg, S.C., and those within 5 miles of Darlington, S.C. Operations may be performed over any combination of routes as specified above, regardless of whether or not they join at a common point of service. Any repetition in the statement of the authority granted herein shall not be construed as conferring more than one operating right; (C) *general commodities* (except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, livestock, and those requiring special equipment), (1) between

Augusta, Ga., and Atomic Energy Commission, Savannah River plant (Dunbarton), S.C.; from Augusta over U.S. Highway 1 to junction South Carolina Highway 125, thence over South Carolina Highway 125 to AEC, Savannah River plant (Dunbarton), and return over the same route, (2) between Fairfax and Walterboro, S.C.; from Fairfax over South Carolina Highway 28 to Varnville, S.C., thence over South Carolina Highway 63 to Walterboro, and return over the same route, (3) between Sumter and Georgetown, S.C.; from Sumter over U.S. Highway 521 to Georgetown, and return over the same route, (4) between Sumter and Conway, S.C.; from Sumter over U.S. Highway 378 to Conway, and return over the same route, (5) between Darlington and Cherry Grove Beach, S.C.; from Darlington over U.S. Highway 52 to Florence, S.C.

Thence over U.S. Highway 76 to Marion, S.C., thence over U.S. Highway 501 to Myrtle Beach, S.C., thence over U.S. Highway 17 to Cherry Grove Beach, and return over the same route, (6) between Savannah, Ga., and Gardens Corner, S.C.; from Savannah over U.S. Highway 17 to junction of South Carolina Highway 170, thence over South Carolina Highway 170 to Beaufort, S.C., thence over U.S. Highway 21 to Gardens Corner, and return over the same route, (7) between Camden and Bennettsville, S.C.; from Camden over U.S. Highway 1 to Wallace, S.C., thence over South Carolina Highway 9 to Bennettsville, and return over the same route, (8) between Darlington and McColl, S.C.; from Darlington over South Carolina Highway 34 to junction of South Carolina Highway 151, thence over South Carolina Highway 151 to Hartsville, S.C., thence over U.S. Highway 15 to McColl, and return over the same route, (9) between Darlington and Lake City, S.C.; from Darlington over South Carolina Highway 340 to Lake City, return over the same route, (10) moving in a circuitious manner, from Darlington, S.C., over U.S. Highway 52 to Florence, S.C., thence over U.S. Highway 76 to Mullins, S.C., thence over South Carolina Highway 9 to Dillon and return from Dillon over U.S. Highway 301 to Florence, S.C., thence over U.S. Highway 52 to Darlington, S.C., (11) between Charleston and Myrtle Beach, S.C.; from Charleston over U.S. Highway 17 to Myrtle Beach, and return over the same route, (12) between Charleston and Lake City, S.C.; from Charleston over U.S. Highway 78 to Summerville, S.C.

Thence over U.S. Highway 17A to Jamestown, S.C., thence over South Carolina Highway 41 to junction of U.S. Highway 378 and thence over U.S. Highway 378 to Lake City, and return over the same route, (13) between Charleston and Darlington, S.C.; from Charleston over U.S. Highway 52 to Darlington, and return over the same route, (14) between Spartanburg and Landrum, S.C.; from Spartanburg over U.S. Highway 176 to Landrum, and return over the same route, (15) between Spartanburg and Carlisle, S.C.; from Spartanburg over South Carolina Highway 9 to Lockhart, S.C., thence over South Carolina Highway 49 to Union, S.C., and thence over South Carolina Highway 215 to Carlisle, and return over the same route, (16) between York, S.C., and Gastonia, N.C.; from York over U.S. Highway 321 to Gastonia, and return over the same route, (17) between Greenville and Abbeville, S.C.; from Greenville over South Carolina Highway 20 to Belton, S.C., thence over U.S. Highway 178 to Donalds, S.C., thence over South Carolina Highway 184 to Due West, S.C., thence over South Carolina Highway 20 to Abbeville, and return over the same route, (18) between Anderson and Calhoun Falls, S.C.; from Anderson over South Carolina Highway 81 to Calhoun Falls, and return over the same route, (19) between Anderson and Clemson, S.C.; from Anderson over U.S. Highway 76 to Clemson, and return over the same route, serving all intermediate points on the above described routes, in (1) through (19) above.

Any repetition in the statement of the authority granted herein shall not be construed as conferring more than one operating right; and (D) *general commodities* (except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, livestock, and those requiring special equipment), (1) between Charlotte, N.C., and Atlanta, Ga.; from Charlotte over Interstate Highway 85 to Atlanta, Ga., and return over the same route, (2) between Spartanburg and Charleston, S.C.; from Spartanburg over Interstate Highway 26 to Charleston, and return over the same route, (3) between Greenville and Columbia, S.C.; from Greenville over U.S. Highway 276 to junction of Interstate Highway 26, thence over Interstate Highway 26 to Columbia, and return over the same route, (4) between Columbia and Charleston, S.C.; from Columbia over Interstate Highway 26 to Charleston, and return over the same route, (5) between Columbia, S.C., and Augusta, Ga.; from Columbia over Interstate Highway 20 to Augusta, and return over the same route, (6) between Augusta and Atlanta, Ga.; from Augusta over Interstate Highway 20 to Atlanta, and return over the same route, as alternate routes for operating convenience only in connection with applicant's regular-route operations, serving no intermediate points.

NOTE: This application is filed pursuant to MC-C-4366, effective May 1, 1964, which provides the special rules for conversion of irregular route to regular motor carrier operations.

SPECIAL NOTE: Protests to this application may be filed within 45 days instead of 30 days.

No. MC 71992 (Sub-No. 2), filed February 24, 1965. Applicant: RAND EXPRESS FREIGHT LINES, INC., 1110 Rutherford Avenue, Lyndhurst, N.J. Applicant's attorney: James E. Wilson, Perpetual Building, 1111 E Street NW., Washington 4, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), (1) between New York, N.Y., and Boston, Mass.; from New York, N.Y., over U.S. Highway 1 to Boston and return over the same route, serving all intermediate points; from New York, N.Y., over Interstate Highway 95 to junction Massachusetts Highway 128; thence over Massachusetts Highway 128 to Boston (also from East Lyme over Connecticut Turnpike to junction U.S. Highway 6; thence over U.S. Highway 6 to Providence, R.I.), and return over the same route, serving all intermediate points; from New York, N.Y., over Interstate Highway 95 (also over U.S. Highway 1) to New Haven, Conn.; thence over Interstate Highway 91 to East Hartford, Conn., thence over Interstate Highway 84 to junction Interstate Highway 90, thence over Interstate Highway 90 to junction Massachusetts Highway 128, thence over Massachusetts Highway 128 to Boston and return over the same route, serving all intermediate points; from New York, N.Y., as specified above to New Haven, Conn., thence over U.S. Highway 5 to Springfield, Mass. (also from junction U.S. Highway 5 and Interstate Highway 91 over Interstate Highway 91 to Springfield), thence over U.S. Highway 20 to Boston and return over the same route, serving all intermediate points; (2) between Springfield, Mass., and Williamstown, Mass.; from Springfield over U.S. Highway 5 to Turners Falls, Mass., thence over Massachusetts Highway 2 to Williamstown and return over the same route, serving all intermediate points; from Springfield over U.S. Highway 5 to junction Interstate Highway 90, thence over Interstate Highway 90 to junction U.S. Highway 20, thence over U.S. Highway 20 to Pittsfield.

Thence over U.S. Highway 7 to Williamstown (also over U.S. Highway 20 from Springfield to Pittsfield) and return over the same route, serving all intermediate points; (3) between Providence, R.I., and New Bedford, Mass.; from Providence over U.S. Highway 6 to Fall River, Mass., thence over Massachusetts Highway 24 to New Bedford and return over the same route, serving all intermediate points; (4) between Boston, Mass., and Gloucester, Mass.; from Boston over Massachusetts Highway 128 to Gloucester and return over the same route, serving all intermediate points; (5) between Boston, Mass., and Lawrence, Mass.; from Boston over Interstate Highway 93 to junction Massachusetts Highway 113, thence over Massachusetts Highway 113 to Lawrence and return over the same route, serving all intermediate points; (6) between Boston, Mass., and Worcester, Mass.; from Boston over Massachusetts Highway 2 to Leominster, Mass., thence over Massachusetts Highway 12 to Worcester and return over the same route, serving all intermediate points. Service is proposed to and from all off-route points in Connecticut, Rhode Island, and Massachusetts except that no service may be performed between any two intermediate and/or off-route points in Connecticut, Rhode Island, and Massachusetts except as otherwise authorized.

NOTE: This application is filed pursuant to MC-C-4366, effective May 1, 1964, which pro-

vides the special rules for conversion of irregular to regular motor carrier operations.

SPECIAL NOTE: Protests to this application may be filed within 45 days instead of 30 days.

No. MC 97429 (Sub-No. 5), filed May 20, 1965. Applicant: ELK VALLEY MOTOR EXPRESS, INC., 1533 Hansford Street, Charleston, W. Va. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, and except dangerous explosives, livestock, household goods, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), serving the off-route points of Amma, Arnoldsburg, Birch River, Bream, Clover, Coco, Dille, Kendalia, Left Hand, Quick, Sanderson, Swandale, and Widen, W. Va., in connection with applicant's authorized regular-route operations between Charleston and Sutton, W. Va.

No. MC 107403 (Sub-No. 620), filed April 16, 1965. Applicant: MATLACK, INC., 10 West Baltimore Avenue, Landsdowne, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Coal tar pitch*, in bulk, from Youngstown, Ohio, to Bethlehem, Pa.

No. MC 118318 (Sub-No. 8), filed February 18, 1965. Applicant: IDA-CAL FREIGHT LINES, INC., 1798 Floral Avenue, Post Office Box 455, Twin Falls, Idaho. Applicant's attorney: Marvin Handler, 625 Market Street, San Francisco 5, Calif. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: (A) *Such merchandise* as is dealt in by wholesale, retail, and chain grocery and food business houses and in connection therewith, *equipment, materials,* and *supplies* used in the conduct of such business, when moving to, from, or between such establishments, (1) from Los Angeles, Calif., to Pocatello, Idaho; from Los Angeles over U.S. Highway 99 to junction California Highway 14, thence over California Highway 14 to junction U.S. Highway 395, thence over U.S. Highway 395 to junction U.S. Highway 6, thence over U.S. Highway 6 to junction Nevada Highway 8A, thence over Nevada Highway 8A to junction U.S. Highway 50, thence over U.S. Highway 50 to junction Nevada Highway 20, thence over Nevada Highway 20 to junction U.S. Highway 40, thence over U.S. Highway 40 to junction U.S. Highway 93, thence over U.S. Highway 93 to Twin Falls, Idaho, thence over U.S. Highway 30 to junction U.S. Highway 30N, thence over U.S. Highway 30N to Pocatello, serving the intermediate points of Burbank and Glendale, Calif., and Twin Falls, Idaho, and the off-route points of Anaheim, El Segundo, Fullerton, Long Beach, the Los Angeles Harbor, San Pedro, South Gate, Terminal Island, and Wilmington, Calif.; (2) from San Francisco, Calif., to Pocatello, Idaho; from San Francisco over U.S. Highway 40 to junction U.S. Highway 93, thence over U.S. Highway 93 to Twin Falls, Idaho.

Thence over U.S. Highway 30 to junction U.S. Highway 30N, thence over U.S. Highway 30N to Pocatello, serving the intermediate points of Crockett, Berkeley, Emeryville, Oakland, and Sacramento, Calif., and Twin Falls, Idaho, and the off-route points of Alameda and Stockton, Calif.; (3) from Oakland, Calif., to Pocatello, Idaho; from Oakland over U.S. Highway 50 to Sacramento, Calif., thence over U.S. Highway 40 to junction U.S. Highway 93, thence to Pocatello as specified above, serving the intermediate points of Stockton and Sacramento, Calif., and Twin Falls, Idaho, and the off-route points of Crockett, Alameda, Berkeley, and Emeryville, Calif.; (4) from San Jose, Calif., to Pocatello, Idaho; from San Jose over U.S. Highway 101 to San Francisco, Calif., thence to Pocatello as described above, serving the intermediate points of Palo Alto and South San Francisco, Calif., and Twin Falls, Idaho; (5) from Fresno, Calif., to Pocatello, Idaho; from Fresno over U.S. Highway 99 to junction U.S. Highway 40, thence over U.S. Highway 40 to junction U.S. Highway 93, thence to Pocatello as specified above, serving the intermediate point of Twin Falls, Idaho, and the off-route points of Fowler, Ivanhoe, and Tulare, Calif.; (6) between Gilroy, Calif., and Los Angeles, Calif., over U.S. Highway 101, serving no intermediate points, as an alternate route for operating convenience only; (7) from Fresno, Calif., to San Jose, Calif.; from Fresno over U.S. Highway 99 to junction California Highway 152, thence over California Highway 152 to junction U.S. Highway 101, thence over U.S. Highway 101 to San Jose, serving no intermediate points, as an alternate route for operating convenience only; (B) *dairy products*, from Jerome, Idaho, to Los Angeles, Calif; from Jerome over Idaho Highway 79 (also Idaho Highway 25) to junction U.S. Highway 93, thence over U.S. Highway 93 through Twin Falls, Idaho, to junction U.S. Highway 40, thence over U.S. Highway 40 to junction Nevada Highway 20, thence over Nevada Highway 20 to junction U.S. Highway 50, thence over U.S. Highway 50 to junction Nevada Highway 8A, thence over Nevada Highway 8A to junction U.S. Highway 6.

Thence over U.S. Highway 6 to junction U.S. Highway 395, thence over U.S. Highway 395 to junction California Highway 14, thence over California Highway 14 to junction U.S. Highway 99, thence over U.S. Highway 99 to Los Angeles, serving the intermediate point of Twin Falls, Idaho; (C) *burlap bags*, from Los Angeles, Calif., to Idaho Falls, Idaho; from Los Angeles to Pocatello, Idaho, as described in (A), (1) above, thence over U.S. Highway 191 to Idaho Falls, serving the intermediate points of Twin Falls, American Falls and Pocatello, Idaho; (D) *meat, meat products and meat byproducts*, (1) from Caldwell, Idaho, to San Jose, Calif.; from Caldwell over Idaho Highway 72 to junction U.S. Highway 95, thence over U.S. Highway 95 to junction U.S. Highway 40, thence over U.S. Highway 40 to San Francisco, Calif., thence over U.S. Highway 101 to San Jose, serving the intermediate points of Reno, Nev., Sacramento, Oakland, San Francisco, Palo Alto, and Santa Clara, Calif.; and (2) from Caldwell, Idaho, to Los Angeles, Calif.; from Caldwell over Idaho Highway 72 to junction U.S. Highway 95, thence over U.S. Highway 95 to junction U.S. Highway 6, thence over U.S. Highway 6 to junction U.S. Highway 395, thence over U.S. Highway 395 to junction California Highway 14, thence over California Highway 14 to junction U.S. Highway 99 to Los Angeles, serving all intermediate points in California and as off-route points, all points in California on the routes described in (A) through (D) above.

NOTE: Common control may be involved. This application is filed pursuant to MC-C-4366, effective May 1, 1964, which provides the special rules for conversion of irregular-route to regular-route motor carrier operations.

SPECIAL NOTE: Protest of this application may be filed within 45 days instead of 30 days.

MOTOR CARRIERS OF PASSENGERS

No. MC 13300 (Sub-No. 80), filed May 19, 1965. Applicant: CAROLINA COACH COMPANY, a corporation, 1201 South Blount Street, Raleigh, N.C. Applicant's attorney: James E. Wilson, 1111 E Street NW., Washington 4, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage, express and newspapers*, in the same vehicle with passengers, between Durham, N.C., and junction North Carolina Highway 1121 and 1959; from Durham over North Carolina Highway 1945 to Few, N.C., thence over North Carolina Highway 1121 through the Research Triangle Park to junction North Carolina Highway 1959 and return over the same route, serving all intermediate points.

NOTE: Common control may be involved.

By the Commission.

[SEAL] BERTHA F. ARMES,
Acting Secretary.

[F.R. Doc. 65-5970; Filed, June 8, 1965; 8:45 a.m.]

[No. 34522,[1] I.S. Docket No. 8230]

IN-CAR STORAGE AT U.S. PORTS

5 Days Free Time

At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D.C., on the 1st day of June A.D. 1965.

It appearing, that by orders dated November 30 and December 16, 22, and 28, 1964, in Nos. 34522 and Sub-Nos. 1, 2, and 3 thereof, the Commission entered upon an investigation concerning the matter of free time allowances on rail shipments, in carloads, moving through ports within the continental limits of the United States as set forth in the schedules designated therein.

It further appearing, that on March 2, 1965, the Commission entered an order broadening the investigation in No. 34522 to include the lawfulness of all

[1] This order embraces Sub-Nos. 1, 2, and 3 of No. 34522, Free Time for In-Car Storage at U.S. Ports.

rules, regulations, and practices pertaining to free time allowances at ports within the continental limits of the United States, contained in any rail tariff schedule on file with this Commission;

It further appearing, that on June 1, 1965, the Commission, Board of Suspension, entered an order to investigate and suspend tariff schedules filed with this Commission containing new free time allowance provisions on rail shipments, in carloads, moving through ports within the continental limits of the United States to determine whether such provisions will result in rules, regulations, and practices that are unjust and unreasonable;

It further appearing, that the issues involved in No. 34522 including Sub-Nos. 1, 2, and 3 thereto and those in I. & S. No. 8230 are of similar nature and that they should be consolidated for hearing and decision;

It further appearing, that special procedure was directed by order dated January 25, 1965, in No. 34522 and Sub-Nos. 1, 2, and 3 thereof and that the consolidation of those proceedings with I. & S. No. 8230 require the adoption of special procedure in accordance with the time schedules to be ordered hereinafter, and for good cause appearing:

It is ordered, That the investigation proceeding No. 34522 including Sub-Nos. 1, 2, and 3 thereof be, and they are hereby, consolidated with I. & S. No. 8230 for the purpose of hearing and decision.

It is further ordered, That these consolidated proceedings be, and they are hereby, assigned to Hearing Examiner Richard S. Ries for hearing and the recommendation of an appropriate order thereon accompanied by the reasons therefor and for administrative handling in connection therewith.

It is further ordered, That any additional person or persons who desire to become a party and participate in these consolidated proceedings shall notify the Commission of their intention on or before June 14, 1965.

It is further ordered, That:

(a) Respondents and all interested parties in support thereof shall file with the Hearing Examiner on or before July 12, 1965, their verified statements with appendices, if any, and serve copies thereof upon all parties. A service list will be mailed to all known parties by the Commission after June 14, 1965;

(b) Protestants and all interested parties in support thereof shall file with the Hearing Examiner on or before August 23, 1965, their verified statements with appendices, if any, and serve copies thereof upon all parties;

(c) Parties desiring to cross-examine any witness must give notice, in writing, of such request to affiant and his counsel, if any, on or before September 7, 1965, a copy of such notice to be filed simultaneously with the Hearing Examiner. Failure of any witness so requested to appear at the hearing for cross-examination shall be considered good cause for the rejection of his evidence;

(d) A hearing or hearings will be held at a place or places to be hereafter designated commencing on or about September 14, 1965, at 9:30 a.m., U.S. standard time (or 9:30 a.m., local daylight saving time if that time is observed) for the purpose of the receipt in evidence of written evidence, cross-examination thereon, if requested, and the introduction of rebuttal evidence. The hearing now scheduled to be held on July 15, 1965, at Washington, D.C., is hereby canceled.

(e) The Commission's order of March 2, 1965, in proceeding No. 34522 with respect to the special procedure to be followed, except as modified herein, remains in full force and effect in all other respects for the purpose of these consolidated proceedings.

And it is further ordered, That a copy of this order be delivered to the Director, Office of the Federal Register, for publication in the FEDERAL REGISTER as notice to all interested persons.

By the Commission, Division 2.

[SEAL] BERTHA F. ARMES, *Acting Secretary.*

[F.R. Doc. 65-5951; Filed, June 8, 1965; 8:45 a.m.]

[Sec. 5a Application No. 91]

WYOMING TRUCKING ASSOCIATION, INC.

Agreement Filed for Approval

JUNE 4, 1965.

The Commission is in receipt of the above-entitled and numbered application for approval of an agreement under the provisions of section 5a of the Interstate Commerce Act.

Filed: May 28, 1965, by: James J. Williams, Suite 305, The Continental Building, 1012 14th Street NW., Washington, D.C., 20005.

Agreement involved: Agreement between common carriers by motor vehicle, members of Wyoming Trucking Association, Inc., relating to joint consideration, initiation, change, and publication of rates, exceptions to classification ratings, rules, regulations, and practices governing the transportation of property between points in the United States.

The complete application may be inspected at the office of the Commission in Washington, D.C.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 20 days from the date of this notice. As provided by the general rules of practice of the Commission, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing.

By the Commission, division 2.

[SEAL] BERTHA F. ARMES, *Acting Secretary.*

[F.R. Doc. 65-5952; Filed, June 8, 1965; 8:45 a.m.]

[Notice 777]

MOTOR CARRIER APPLICATIONS AND CERTAIN OTHER PROCEEDINGS

JUNE 4, 1965.

The following publications are governed by the new Special Rule 1.247 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of December 3, 1963, which became effective January 1, 1964.

APPLICATIONS ASSIGNED FOR ORAL HEARING

MOTOR CARRIERS OF PROPERTY

No. MC 21170 (Sub-No. 79) (CORRECTION), filed April 5, 1965, published in FEDERAL REGISTER issue of April 28, 1965, amended May 21, 1965, republished as amended June 3, 1965, and republished as corrected this issue. Applicant: BOS LINES, INC., 408 South 12th Avenue, Marshalltown, Iowa.

NOTE: The above-entitled application appeared in FEDERAL REGISTER issue of June 3, 1965, under No. MC 21170 (Sub-No. 70). The purpose of this republication is to correctly reflect the applicant's docket number as *MC 21170 (Sub-No. 79)*.

No. MC 119176 (Sub-No. 3), filed May 21, 1965. Applicant: THE SQUAW TRANSIT COMPANY, a corporation, Post Office Box 9415, Tulsa, Okla. Applicant's attorney: Austin L. Hatchell, Suite 1102, Perry-Brooks Building, Austin 1, Tex. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Earth drilling machinery*, and *equipment*, (2) *machinery, equipment, materials, supplies*, and *pipe incidental* to, used in, or in connection with (a) the transportation, installation, removal, operation, repair, servicing, maintenance, and dismantling of drilling machinery and equipment, or (b) digging of slush pits and cleaning, preparing, constructing, or maintaining drilling sites, and (3) *machinery, equipment, materials, supplies, and pipe incidental* to, used in or in connection with (a) the completion of holes or wells drilled, (b) the production, storage, transmission, and distribution of commodities resulting from drilling operations, or (c) injection or removal of commodities into or from holes or wells, (A) between points in Oklahoma; (B) between points in Oklahoma, on the one hand, and, on the other, points in Colorado, Kansas, and Nebraska; (C) between Coffeyville, Kans., and Bartlesville and Tulsa, Okla., on the one hand, and, on the other, points in Arkansas, Illinois, Indiana, Kentucky, Louisiana, Missouri, New Mexico, Ohio, and Texas; (D) between Houston, Tex., on the one hand, and, on the other, points in Arkansas, Colorado, Illinois, Indiana, Kansas, Kentucky, Louisiana, Missouri, Nebraska, New Mexico, Ohio, Oklahoma, and Texas; and (E) between points in Michigan, on the one hand, and, on the other, points in Illinois, Indiana, and Ohio.

NOTE: Applicant states no duplicating authority is requested.

HEARING: June 22, 1965, at the Baker Hotel, Dallas, Tex., before Examiner Jerry F. Laughlin. This assignment for

hearing is pursuant to the special rules of order dated May 10, 1965, in MC-C 4409, et al.

No. MC 126627 (AMENDMENT), filed October 2, 1964, published FEDERAL REGISTER issues of October 21 and November 11, 1964, and republished as amended this issue with part (2) thereof separated and assigned MC 126627 (Sub-No. 1). Applicant: MILLSTONE BUS LINE, INC., Amwell Road, East Millstone, N.J. Applicant's attorney: William C. Mitchell, Jr., 140 Cedar Street, New York 6, N.Y. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage*, and *newspapers* and *express*, in the same vehicle with passengers, between Hopewell, N.J., and New York, N.Y., beginning in Hopewell, thence over County Road 518 to Blawenburg and junction with Blawenburg Bellemead Road through Dutchtown to Plainville and junction with Trenton Avenue, thence over Trenton Avenue to Bellemead and junction with U.S. Highway 206 (also from Dutchtown from the junction of Blawenburg Bellemead Road and Harlingen Road over Harlingen Road to Harlingen and junction with U.S. Highway 206, thence over U.S. Highway 206 to Bellemead and junction with Trenton Avenue), thence over U.S. Highway 206 to Bridgewater Township and junction with U.S. Highway 22, thence over U.S. Highway 22 in Bridgewater Township to junction with Interstate Highway 287, thence over Interstate Highway 287 (via junction New Jersey Highway 27) to Edison Township and junction with U.S. Highway 1.

Thence over U.S. Highway 1 to Woodbridge Township and junction with Green Street, thence over Green Street in Woodbridge Township to junction with U.S. Highway 9, thence over U.S. Highway 9 in Woodbridge Township to access roads and to Entrance No. 11 of New Jersey Turnpike (also from Edison Township from junction of Interstate Highway 287 and U.S. Highway 1 over Interstate Highway 287 to access roads and junction with New Jersey Turnpike), thence over New Jersey Turnpike to Exit No. 16 in Secaucas, thence over access roads and New Jersey Highway 3 and Lincoln Tunnel to New York, N.Y., and return over the same route in the reverse direction with service to and from all intermediate points, except (1) those in Essex, Hudson, and Union Counties, N.J., and those in Middlesex County, N.J., north and east of the junction of Interstate Highway 287 and New Jersey Highway 27 in Edison Township, and (2) restricted against serving any intermediate points located on U.S. Highway 206 and U.S. Highway 22 between the junction of U.S. Highway 206 and the Raritan River, on the one hand, and, on the other, the junction of Interstate Highway 287 and the Raritan River at the Middlesex-Somerset County line.

HEARING: July 19, 1965, in Room 212, State Office Building, 1100 Raymond Boulevard, Newark, N.J., before Joint Board No. 3.

No. MC 126627 (Sub-No. 1), filed October 2, 1964, previously published in FEDERAL REGISTER, issue of October 21, 1964, as a separation of part (2) of MC 126627. Applicant: MILLSTONE BUS LINE, INC., Amwell Road, East Millstone, N.J. Applicant's attorney: William C. Mitchell, Jr., 140 Cedar Street, New York, N.Y. Authority sought as amended, to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage*, and *newspapers* and *express*, in the same vehicle with passengers, between Millstone, N.J., and New York, N.Y.; from Millstone over County Road 514, thence over County Road 514 to Franklin Township-New Brunswick line (also from junction County Road 514 and Demott Lane in Franklin Township, thence over Demott Lane to junction with County Road 527, thence over County Road 527 to junction with Kennedy Boulevard, thence over Kennedy Boulevard to junction with County Road 514 in Franklin Township (also from junction County Road 514 and Franklin Boulevard in Franklin Township), thence over Franklin Boulevard to junction with Highland Avenue, thence over Highland Avenue to junction with County Road 514 in Franklin Township), thence over Hamilton Street in New Brunswick to junction with Division Street, thence over Division Street to junction with Somerset Street, thence over Somerset Street to junction with Little Albany Street.

Thence over Little Albany Street and Easton Avenue to junction with Albany Street (also from junction of Albany Street and Easton Avenue in New Brunswick, thence over Albany Street to junction with Brown Avenue, thence over Brown Avenue to junction with French Street, thence over French Street to junction with Louis Street, thence over Louis Street to junction with Hamilton Street in New Brunswick), thence over Albany Street to junction with Memorial Parkway, thence over Memorial Parkway and New Jersey Highway 18 to East Brunswick Township and access roads to Entrance No. 9 of New Jersey Turnpike, thence over New Jersey Turnpike to Exit No. 16 in Secaucus, thence over access roads and New Jersey Highway 3 and Lincoln Tunnel to New York, and return over the same route in the reverse direction with service to and from all intermediate points (except points in Middlesex, Essex, Hudson, and Union Counties, N.J.).

HEARING: July 12, 1965, in Room 212, State Office Building, 1100 Raymond Boulevard, Newark, N.J., before Joint Board No. 3.

No. MC 126882 (REPUBLICATION), filed January 13, 1965, published FEDERAL REGISTER, issue of February 3, 1965, and republished this issue after order of Commission. Applicant: FERNAND POULIN, Beauce County, Quebec, Canada. By application filed January 13, 1965, as amended, applicant seeks a permit authorizing operations, in interstate or foreign commerce, as a contract carrier by motor vehicle, over irregular routes, of lumber and wood fencing, from and to the points indicated below. The application as previously published, sought, in part, authority from Malone, N.Y., to points in New York and New Jersey, whereas the application as amended seeks authority, in part, from Champlain, N.Y., to points in New York and New Jersey. An Order, Operating Rights Board No. 1, dated May 24, 1965, served May 28, 1965, finds that operation by applicant, in interstate or foreign commerce, as a *contract carrier* by motor vehicle, over irregular routes, of *lumber and wood fencing*, (1) from Jackman, Maine, to points in Maine, New Hampshire, Massachusetts, Connecticut, Rhode Island, New York, and New Jersey, (2) from Norton, Vt., to points in Vermont, New Hampshire, and New York, and (3) from Champlain, N.Y., to points in New York and New Jersey, under continuing contracts with Jean Paul Racine, of St. Honore de Beauce, Quebec, Cedar Products, Ltd., of St. Georges de Beauce, Quebec, will be consistent with the public interest and the national transportation policy; and that because it is possible that other parties, who have relied upon the notice of the application as published, may have an interest in and would be prejudiced by the lack of proper notice of the authority described in the findings in this order, a notice of the authority actually granted will be published in the FEDERAL REGISTER and issuance of a permit in this proceeding will be withheld for a period of 30 days from the date of such publication, during which period any proper party in interest may file an appropriate protest or other pleading.

APPLICATIONS FOR CERTIFICATES OR PERMITS WHICH ARE TO BE PROCESSED CONCURRENTLY WITH APPLICATIONS UNDER SECTION 5 GOVERNED BY SPECIAL RULE 1.240 TO THE EXTENT APPLICABLE

No. MC 114877 (Sub-No. 2), filed May 6, 1965. Applicant: CARGO-IMPERIAL FREIGHT LINES, INC., 257 Fourth Street, Buffalo, N.Y. Applicant's attorney: Howard T. Saperston, Liberty Bank Building, Buffalo, N.Y., 14202. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, Classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), (1) from points in Niagara County, N.Y., to points in Erie County, N.Y.; (2) from points in Eire County, N.Y., to points in Wyoming, Erie, and Cattaraugus Counties, N.Y.; and (3) between points in Erie County, N.Y.

NOTE: This is a matter directly related to MC-F 9087, published in FEDERAL REGISTER issue of April 28, 1965. Application for temporary authority under section 210a(b), filed June 1, 1965, and published this issue.

APPLICATIONS UNDER SECTIONS 5 AND 210a(b)

The following applications are governed by the Interstate Commerce Commission's special rules governing notice of filing of applications by motor carriers of property or passengers under sections 5(a) and 210a(b) of the Interstate Commerce Act and certain other proceedings with respect thereto (49 CFR 1.240).

MOTOR CARRIERS OF PROPERTY

No. MC-F-8998 (correction) (C & H TRANSPORTATION CO., INC.—PUR-

CHASE (PORTION)—FERGUSON TRUCKING CO., INC.), published in the January 20, and May 22, 1965, issues of the FEDERAL REGISTER, on pages 665, and 6958, respectively. The prior notices, concerning the operating rights sought to be transferred, should be amended as follows: *Machinery, materials, supplies, and equipment,* incidental to, or used in the construction, development, operation, and maintenance of facilities for the discovery, development, and production of natural gas and petroleum, as a *common carrier,* over irregular routes, between points in Texas; *machinery, equipment, materials, and supplies,* used in, or in connection with the discovery, development, production, refining, manufacture, processing, storage, transmission, and distribution of natural gas and petroleum and their products and by-products, and *machinery, materials, equipment, and supplies,* used in, or in connection with the construction, operation, repair, servicing, maintenance, and dismantling of pipelines, including the stringing and picking up thereof, between points in New Mexico, Oklahoma, Kansas, and that part of Texas north of U.S. Highway 80 and west of U.S. Highway 75, including points on the indicated portion of the highways specified, between points in Texas within 250 miles of Seagraves, Tex., between points in Eddy, Lea, and Roosevelt Counties, N. Mex., on the one hand, and, on the other, points in Texas within 250 miles of Seagraves, Tex., between points in Kansas, New Mexico, Oklahoma, and that part of Texas north of U.S. Highway 80, and west of U.S. Highway 75, and within 250 miles of Seagraves, Tex., including points on the indicated portions of the highways specified, on the one hand, and, on the other, points in Arizona, Colorado, Utah, and Wyoming; and *heavy or cumbersome commodities,* which, because of size or weight, require the use of special equipment, between Seagraves, Tex., and points in Texas within 250 miles of Seagraves and those in that part of Texas north of U.S. Highway 80 and west of U.S. Highway 75 beyond such 250 mile radius, including points on the indicated portions of the highways specified, on the one hand, and, on the other, points in Arizona.

NOTE: In *C & H TRANSPORTATION CO., INC.—PURCHASE (PORTION)—FERGUSON TRUCKING CO., INC.,* 93 M.C.C. 741, decided February 26, 1964, authority was granted for C & H to purchase certain operating rights of FERGUSON, conditioned upon cancellation of the above-referred-to operating rights. On March 3, 1965, the U.S. District Court for the Northern District of Texas, Dallas Division, in Civil Action No. CA-3-789, issued a temporary restraining order against the order of February 26, 1964.

No. MC-F-9087 (CARGO-IMPERIAL FREIGHT LINES, INC.—PURCHASE (PORTION)—BORDER EXPRESS LINES, INC.), published in the April 28, 1965, issue of the FEDERAL REGISTER on page 5919. Application filed June 1, 1965, for temporary authority under section 210a(b).

No. MC-F-9112 (supplement) (MOTOR FREIGHT EXPRESS—PURCHASE—CLEVELAND-PITTSBURGH FREIGHT LINE, INC.), published in the May 20, 1965, issue of the FEDERAL REGISTER on page 6894. In the prior notice, the restriction contained in the operating rights sought to be transferred, applies only to the route between Cleveland, Ohio, and junction U.S. Highway 21 and Ohio Highway 18, serving all intermediate points and the off-route point of West Richfield, Ohio.

No. MC-F-9135. Authority sought for purchase by CALORE-COOK TRANS. INC., 131 West Exchange Street, Providence, R.I., of the operating rights and property of LUCIAN GAGNON (JOSEPHINE C. GAGNON, CUSTODIAN EXECUTRIX), doing business as SUDDEN TRANSPORTATION CO., 62 Andrews Avenue, West Warwick, R.I., and for acquisition by ERNEST CALORE, 64 Carnation Drive, Cranston, R.I., of control of such rights and property through the purchase. Applicants' attorneys: Grafton H. Willey, III, 10 Dorrance Street, Providence, R.I., and Eugene J. LaFerriere, 1226 Main Street, West Warwick, R.I. Operating rights sought to be transferred: *General commodities,* except those of unusual value, and except dangerous explosives, livestock, household goods (when transported as a separate and distinct service in connection with so-called "household movings"), commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading, as a *common carrier* over a regular route, between Providence, R.I., and Moosup, Conn., serving certain intermediate and off-route points. Vendee is authorized to operate as a *common carrier* in Massachusetts and Rhode Island. Application has been filed for temporary authority under section 210a(b).

No. MC-F-9137. Authority sought for control by NELSON FREIGHTWAYS, INC., 28 East Main Street, Rockville, Conn., of P. D. COAKLEY MOTOR TRANSPORTATION, INC., 845 Morrissey Boulevard, Dorchester (Boston), Mass., and for acquisition by CLIFFORD J. O. NELSON, 9 Old Farm Road, Dover, Mass., CHARLES G. CHILBERG, 33 Reed Street, Rockville, Conn., and KENNETH A. H. NELSON, 32 Earl Street, Manchester, Conn., of control of P. D. COAKLEY MOTOR TRANSPORTATION, INC., through the acquisition by NELSON FREIGHTWAYS, INC. Applicants' attorney: Vernon V. Baker, 1411 K Street NW., Washington, D.C., 20005. Operating rights sought to be controlled: *General commodities,* excepting, among others, commodities in bulk, but not excepting household goods, as a *common carrier* over irregular routes between Boston, Mass., on the one hand, and, on the other, points in Massachusetts, Connecticut, Maine, New Hampshire, Rhode Island, and that part of New York east of the Hudson River and south of a line beginning at Newburgh, N.Y., and extending east through Patterson, N.Y., to the New York-Connecticut State line, including New York, N.Y., and points in Nassau County, N.Y.

General commodities, except those of unusual value, and except livestock, dangerous explosives, fresh fish (including shellfish), household goods as defined in *Practices of Motor Common Carriers of Household Goods,* 17 M.C.C. 467, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading, between points in Massachusetts within 15 miles of Boston, Mass., on the one hand, and, on the other, points in Massachusetts, Connecticut, Maine, New Hampshire, Rhode Island, and those in New York east of the Hudson River and south of a line beginning at Newburgh, N.Y., and extending east through Patterson, N.Y., to the New York-Connecticut State line, including New York, N.Y., and points in Nassau County, N.Y.; *wool* and *woolen products,* between Boston, Mass., on the one hand, and, on the other, Providence, Greystone, Woonsocket, and North Smithfield, R.I., and points in Massachusetts within 75 miles of Boston; and *hides,* from Boston, Mass., to Peabody, Mass. NELSON FREIGHTWAYS, INC. is authorized to operate as a *common carrier* in New Jersey, Pennsylvania, New York, Delaware, Maryland, Virginia, Connecticut, Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, and the District of Columbia; and as a *contract carrier* in New York, Pennsylvania, Maryland, New Jersey, Massachusetts, Rhode Island, Connecticut, Delaware, Virginia, and the District of Columbia. Application has been filed for temporary authority under section 210a(b).

No. MC-F-9138. Authority sought for purchase by EARL BRAY, INC., Post Office Box 1191, Cushing, Okla., 74023, of the operating rights and certain property of H. L. MANESS, doing business as H. L. MANESS TRUCK LINE, Post Office Box 207, Neodesha, Kans., and for acquisition by the ESTATE OF CLARA E. BRAY (FRANK E. COCHRAN, EXECUTOR), MARY BRAY COCHRAN, SAM E. CARPENTER, and FRANK E. COCHRAN, of Post Office Box 1191, Cushing, Okla., of control of such rights and property through the purchase. Applicants' attorney: Marion F. Jones, 420 Denver Club Building, Denver, Colo., 80202. Operating rights sought to be transferred: *Petroleum and petroleum products,* in packages and containers, as a *common carrier,* over irregular routes, from Houston, Tex., to points in Kansas (with exceptions); *petroleum products,* as defined by the Commission, in containers, from Houston, Tex., to points in that part of Missouri south of the Missouri River (with exceptions), from El Dorado, Kans., to points in Louisiana (with exceptions); *dry fertilizers,* in packages and containers, from Horn, Mo., to points in Kansas, Colorado, and Nebraska.

RESTRICTION: The separate grants of authority contained herein shall not be tacked or joined, directly or indirectly, for the purpose of performing any through service; *manufactured and processed animal, poultry and fish feed,* in bags and containers, and in bulk, from the plantsite of the Consumers Cooperative Association, at or near Muncie, Kans., to points in Missouri (with exceptions), Oklahoma, and Arkansas; *dry fertilizer* (except urea), in bulk, from the plantsite of the Consumers Cooperative Association at or near Horn,

Mo., to points in Kansas, Nebraska, and Colorado; *animal and poultry feed* and *feed ingredients*, from Memphis, Tenn., certain points in Arkansas, and Missouri, to points in that part of Kansas on and east of U.S. Highway 81, RESTRICTION: The authority granted herein is restricted against the transportation of animal and poultry feed and feed ingredients in hopper or tank vehicles. Vendee is authorized to operate as a *common carrier* in Kansas, Texas, Oklahoma, Missouri, Arkansas, Illinois, Iowa, Mississippi, Nebraska, Indiana, Kentucky, Tennessee, Minnesota, South Dakota, Louisiana, New Mexico, Wisconsin, North Dakota, Colorado, Wyoming, Montana, Michigan, California, and Wisconsin. Application has not been filed for temporary authority under section 210a(b).

No. MC–F–9139. Authority sought for purchase by FOX & GINN, INC., 12 Howard Lane, Bangor, Maine, of the operating rights and property of ARTHUR FISH, doing business as ART'S MOTOR EXPRESS, Newcastle, Maine, and for acquisition by C. L. FOX, 302 Ohio Street, Bangor, Maine, C. L. FOX, JR., 84 Fifth Street, Bangor, Maine, D. W. FOX, 73 Washington Street, Brewer, Maine, M. W. GINN and S. E. GINN, both of 14 Montgomery Street, Bangor, Maine, H. E. GINN, 19 Rocky Hill Road, Cape Elizabeth, Maine, R. E. GINN, 224 Perkins Row, Topsfield, Mass., and M. E. AVERILL, 20 Montgomery Street, Bangor, Maine, of control of such rights and property through the purchase. Applicants' representative: David W. Fox, 12 Howard Lane, Bangor, Maine. Operating rights sought to be transferred: Under a certificate of registration, in Docket No. MC–56948 (Sub-No. 1), covering the transportation of freight, as a common carrier, in intrastate commerce, within the State of Maine. Vendee is authorized to operate as a *common carrier* in Massachusetts, Maine, and New Hampshire. Application has been filed for temporary authority under section 210a(b).

NOTE: Docket No. MC–28536 Sub–10 is a matter directly related.

No. MC–F–9140. Authority sought for purchase by ANTONI TRUCK LINES, 1700 24th Street, Oakland, Calif., of the operating rights and property of SRDS INC., Post Office Box 1602, Santa Rosa, Calif., and for acquisition by JOHN A. PIFER, also of Oakland, Calif., of control of such rights and property through the purchase. Applicants' attorney: Marvin Handler, 625 Market Street, San Francisco, Calif. Operating rights sought to be transferred: Under a certificate of registration in Docket No. MC–121375 Sub-1, covering the transportation of property, as a common carrier, in intrastate commerce, within the State of California. Vendee holds no authority from this Commission. However, its controlling stockholder JOHN A. PIFER, is also the controlling stockholder of ASSOCIATED FREIGHT LINES, 1700 24th Street, Oakland, Calif., which is authorized to operate as a *common carrier* in the State of California. Application has been filed for temporary authority under section 210a(b).

NOTE: See also MC–F–9007.

No. MC–F–9141. Authority sought for continuance in control by BERNARR F. BALSER, 8332 Wilcox Avenue, South Gate, Calif., of BULK FREIGHTWAYS, 8332 Wilcox Avenue, South Gate, Calif., and BALSER TRUCK CO., 8332 Wilcox Avenue, South Gate, Calif. Applicants' attorney: Wyman C. Knapp, 740 West Seventh Street, Los Angeles, Calif., 90017. Operating rights sought to be controlled: (BULK FREIGHTWAYS) In pending Docket No. MC–125417 Sub 3, covering the transportation of lime, in bulk, in hopper-type vehicles, as a common carrier over irregular routes, from Sloan, Nev. (a point located approximately 15 miles south of Las Vegas, Nev., on or closely adjacent to U.S. Highway 91), Henderson, Nev., and Apex (Arrolime), Nev., to points in that portion of California south of the northern boundaries of San Luis Obispo, Kern, and San Bernardino Counties; and (BALSER TRUCK CO.) *raw and manufactured chemicals*, in containers, as a *common carrier* over irregular routes, between Los Angeles, Los Angeles Harbor, South Gate, and Long Beach, Calif. Application has not been filed for temporary authority under section 210a(b).

NOTE: Application filed pursuant to order dated April 28, 1965, in Docket No. MC–125417 Sub-3, which granted the application, subject to the condition that the person or persons who control the operations both of applicant and any other carrier operating in interstate or foreign commerce shall first obtain approval of such control under the provisions of section 5(2) of the act.

No. MC–F–9142. Authority sought for purchase by YANKEE LINES, INC., 1400 East Archwood Avenue, Akron, Ohio, 44306, of the operating rights and property of GEORGE E. SMITH AND THOMAS M. SMITH, doing business as E. W. SMITH & SONS, 26 Mt. Pleasant Avenue, Newark, N.J., and for acquisition by HOWARD C. RODGERS, FLORENCE G. RODGERS, and JACK A. RODGERS, all of Akron, Ohio, of control of such rights and property through the purchase. Applicants' attorneys: Harvey B. Levin, 1835 Land Title Building, Broad & Chestnut Streets, Philadelphia, Pa., 19110, Edward J. Santoro, 304 Maple Avenue, South Plainfield, N.J., Bowes & Millner, 1060 Broad Street, Newark, N.J., 07102, and William Mitchell, 140 Cedar Street, New York, N.Y., 10006. Operating rights sought to be transferred: *General commodities*, excepting, among others, household goods and commodities in bulk, as a *common carrier*, over regular routes, between Newark, N.J., and New York, N.Y., between Newark, N.J., and Morrisville, Pa., serving all intermediate points, and the off-route point of Hightstown, N.J. Vendee is authorized to operate as a *common carrier* in Ohio, West Virginia, Maryland, New Jersey, Pennsylvania, Delaware, and the District of Columbia. Application has been filed for temporary authority under section 210a(b).

No. MC–F–9143. Authority sought for purchase by MOEY LIHN, doing business as TRI-STATE TRANSPORTATION CO., West and Railroad Avenues, Vineland, N.J., of a portion of the operating rights and property of HENRY R. TOMKINSON ASSOCIATES, INC., doing business as HENRY'S EXPRESS, Egg Harbor City, N.J. Applicants' representatives: Charles H. Trayford, 220 East 42d Street, New York, N.Y., 10017, C. Raymond Kears, Kears Building, Egg Harbor City, N.J., and Thomas K. J. Tuso, National Bank Building, Vineland, N.J. Operating rights sought to be transferred: *General commodities*, excepting, among others, household goods and commodities in bulk, as a *common carrier*, over regular routes, between Philadelphia, Pa., and Egg Harbor City, N.J., serving all intermediate points, and the offroute points of Tansboro, Cedar Brook, Blue Anchor, and Winslow, N.J., and those within 5 miles of Egg Harbor City; and *general commodities*, excepting, among others, household goods and commodities in bulk, over irregular routes, between Egg Harbor City, N.J., and points within 20 miles thereof, on the one hand, and, on the other, Philadelphia, Pa. Vendee is authorized to operate as a *common carrier* in Pennsylvania, New Jersey, New York, Massachusetts, West Virginia, Maryland, and the District of Columbia. Application has not been filed for temporary authority under section 210a(b).

By the Commission.

[SEAL] BERTHA F. ARMES,
Acting Secretary.

[F.R. Doc. 65–5953; Filed, June 8, 1965; 8:45 a.m.]

[Notice 779]

MOTOR CARRIER APPLICATIONS AND CERTAIN OTHER PROCEEDINGS

JUNE 4, 1965.

The following publications are governed by the new Special Rule 1.247 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of December 3, 1963, which became effective January 1, 1964.

APPLICATIONS ASSIGNED FOR ORAL HEARING

MOTOR CARRIERS OF PROPERTY

The applications immediately following are assigned for hearing at the time and place designated in the notice of filing as here published in each proceeding. All of the proceedings are subject to the Special Rules of Procedure for Hearing outlined below:

SPECIAL RULES OF PROCEDURE FOR HEARING

(1) All of the testimony to be adduced by applicant's company witnesses shall be in the form of written statements which shall be submitted at the hearing at the time and place indicated.

(2) All of the written statements by applicant's company witnesses shall be offered in evidence at the hearing in the same manner as any other type of evidence. The witnesses submitting the written statements shall be made available at the hearing for cross-examination, if such becomes necessary.

(3) The written statements by applicant's company witnesses, if received in evidence, will be accepted as exhibits. To the extent the written statements refer to attached documents such as copies of operating authority, etc., they should be referred to in written statement as numbered appendices thereto.

(4) The admissibility of the evidence contained in the written statements and the appendices thereto, will be at the time of offer, subject to the same rules as if the evidence were produced in the usual manner.

(5) Supplemental testimony by a witness to correct errors or to supply inadvertent omissions in his written statement is permissible.

No. MC 111231 (Sub-No. 65), filed May 27, 1965. Applicant: JONES TRUCK LINES, INC., 610 East Emma Avenue, Springdale, Ark. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, dairy products, articles distributed by meat packinghouses*, and *such commodities as are used by meat packers, in the conduct of their business*, when destined to and for use by meat packers (except hides and commodities in bulk, in tank vehicles), from Garden City, Kans., and points within 10 miles thereof, to points in Arkansas, Louisiana, Kentucky, Mississippi, Missouri, Oklahoma, Tennessee, Texas, Indiana, Illinois, Nebraska, and Iowa.

HEARING: June 21, 1965, at the Pickwick Motor Inn, McGee and 10th Street, Kansas City, Mo., before Examiner Francis A. Welch.

No. MC 114457 (Sub-No. 32), filed May 20, 1965. Applicant: DART TRANSIT COMPANY, a corporation, 780 North Prior Avenue, St. Paul, Minn. Applicant's attorney: Charles W. Singer, Tower Suite 3600, 33 North La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, and articles distributed by meat packinghouses* as described in sections A and C, Appendix I, in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Garden City, Kans., and points within ten (10) miles thereof, to points in Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Nebraska, North Dakota, South Dakota, and Wisconsin.

HEARING: June 21, 1965, at the Pickwick Motor Inn, McGee and 10th Street, Kansas City, Mo., before Examiner Francis A. Welch.

No. MC 118130 (Sub-No. 15), filed June 1, 1965. Applicant: BEN HAMRICK, INC., 2000 Chelsea Drive West, Fort Worth, Tex. Applicant's attorney: M. Ward Bailey, 24th Floor, Continental Life Building, Fort Worth, Tex., 76102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products and meat byproducts, dairy products, and articles* distributed by meat packinghouses as described in sections A, B, and C of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from Garden City, Kans., and points within a 10 mile radius thereof to points in Alabama, Arkansas, California, Colorado, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Mississippi, Missouri, North Carolina, Ohio, Oklahoma, South Carolina, Tennessee, Texas, Virginia, West Virginia, and Wisconsin, and *exempt commodities*, on return.

HEARING: June 21, 1965, at the Pickwick Motor Inn, McGee and 10th St., Kansas City, Mo., before Examiner Francis A. Welch.

No. MC 119741 (Sub-No. 14) (REPUBLICATION), filed March 12, 1965, published in FEDERAL REGISTER issue of April 1, 1965, amended April 22, 1965, republished as amended May 5, 1965, and republished this issue. Applicant: GREEN FIELD TRANSPORT COMPANY, INC., Post Office Box 1453, Winter Haven, Fla. Applicant's attorney: Paul M. Daniell, 1600 First Federal Building, Atlanta, Ga., 30303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts, dairy products, articles distributed by meat packinghouses*, and *such commodities* as are used by meat packers in the conduct of their business when destined to and for use by meat packers, as described in sections A, B, C, and D of Appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 (766) (except hides and liquid commodities, in bulk, in tank vehicles), from Garden City, Kans., and points within 10 miles thereof, to points in Iowa, Illinois, Indiana, Ohio, Missouri, Nebraska, Georgia, Alabama, and Florida.

NOTE: The purpose of this republication is to show hearing information.

HEARING: June 21, 1965, at the Pickwick Motor Inn, McKee and 10th Street, Kansas City, Mo., before Examiner Francis A. Welch.

By the Commission.

[SEAL] BERTHA F. ARMES, *Acting Secretary.*

[F.R. Doc. 65-5955; Filed, June 8, 1965; 8:46 a.m.]

NOTICE OF FILING OF MOTOR CARRIER INTRASTATE APPLICATIONS

JUNE 4, 1965.

The following applications for motor common carrier authority to operate in intrastate commerce seek concurrent motor carrier authorization in interstate or foreign commerce within the limits of the intrastate authority sought, pursuant to section 206(a)(6) of the Interstate Commerce Act, as amended October 15, 1962. These applications are governed by special rule 1.245 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of April 11, 1963, page 3533, which provides, among other things, that protests and requests for information concerning the time and place of State Commission hearings or other proceedings, any subsequent changes therein, and any other related matters shall be directed to the State Commission with which the application is filed and shall not be addressed to or filed with the Interstate Commerce Commission.

State Docket No. assigned 9600, filed May 27, 1965. Applicant: CAMERON FREIGHT LINE, INC., Post Office Box 148, Lake Charles, La. Applicant's representative: E. M. Nichols, 910 Ford Street, Lake Charles, La. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of: *General commodities*, from, to and between Johnson's Bayou and the Texas State line over Louisiana Highway 82. The above authority is sought as an extension of authority now held in LPSC No. 298-C (MC 96904 Sub 2).

HEARING: Date, time, and place of hearing not known at this time. Requests for procedural information, including the time for filing protests, concerning this application should be addressed to the Louisiana Public Service Commission, Box 4035 Capitol Station, Baton Rouge, La., 70804, and should not be directed to the Interstate Commerce Commission.

By the Commission.

[SEAL] BERTHA F. ARMES, *Acting Secretary.*

[F.R. Doc. 65-5957; Filed, June 8, 1965; 8:46 a.m.]

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